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Agencies in this issue—

The President
Agricultural Research Service
Business and Defense Services Administration
Civil Aeronautics Board
Commodity Credit Corporation
Consumer and Marketing Service
Emergency Planning Office
Federal Aviation Administration
Federal Communications Commission
Federal Crop Insurance Corporation
Federal Power Commission
Federal Trade Commission
Immigration and Naturalization Service
Indian Affairs Bureau
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Land Management Bureau
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Securities and Exchange Commission
Small Business Administration

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Title 3—THE PRESIDENT

Proclamation 3818

TERMINATION OF FURTHER STAGING OF CERTAIN CONCESSIONS IN INTERIM TRADE AGREEMENTS WITH CANADA, THE UNITED KINGDOM, AND JAPAN

By the President of the United States of America

A Proclamation

1. WHEREAS, pursuant to Section 201(a) of the Trade Expansion Act of 1962 (19 U.S.C. 1821(a)), I entered into and proclaimed the following Interim Agreements Relating to the Renegotiation of Schedule XX (United States) to the General Agreement on Tariffs and Trade (61 Stat. (pt. 5) A1157):

(a) Agreement of December 17, 1965, with Canada (TIAS 5912), which was proclaimed by Proclamation No. 3694 of December 27, 1965 (30 F.R. 17147),

(b) Agreement of April 5, 1966, with the United Kingdom (TIAS 5975), which was proclaimed by Proclamation No. 3712 of April 5, 1966 (31 F.R. 5543), and

(c) Agreement of September 6, 1966, with Japan (TIAS 6106), which was proclaimed by Proclamation No. 3744 of September 13, 1966 (31 F.R. 12391);

2. WHEREAS Article II of, and Annex II to, the agreements identified in the first recital of this proclamation provide, for each of the items in the Tariff Schedules of the United States listed in the annex to this proclamation, a rate reduction less than the maximum rate reduction authorized by Section 201(b)(1) of the Trade Expansion Act of 1962 (19 U.S.C. 1821(b)(1)), or than the duty elimination authorized by Section 202 of that Act (19 U.S.C. 1822);

3. WHEREAS Part I of Schedule XX (United States) to the Geneva (1967) Protocol, of June 30, 1967, to the General Agreement on Tariffs and Trade (GATT, 6th Round of Trade Negotiations, Schedule XX: United States, June 1967) provides, for each of the items listed in the annex to this proclamation, a rate reduction greater than that provided for in any of the agreements identified in the first recital of this proclamation, or a duty elimination;

4. WHEREAS, by separate agreements of June 30, 1967, with Canada (TIAS 6316), the United Kingdom (TIAS 6318), and Japan (TIAS 6317), it was agreed that, in the case of each item listed in the annex to this proclamation for which a reduction was provided for in the agreement with that country identified in the first recital to this proclamation, the level of reduction in effect on June 30, 1967, shall be the final level of reduction under that agreement for purposes of staging the further reduction or elimination of duty provided for in Part I of Schedule XX (United States) referred to in the third recital of this proclamation; and

5. WHEREAS Section 255(b) of the Trade Expansion Act of 1962 (19 U.S.C. 1885(b)) provides that the President may at any time terminate, in whole or in part, any proclamation made under Section 201(a) of that Act:

NOW, THEREFORE, I, LYNDON B. JOHNSON, President of the United States of America, acting under the authority vested in me by the Constitution and the statutes, including Section 255(b) of the Trade Expansion Act of 1962, do proclaim that:

(1) Proclamation Nos. 3694, 3712, and 3744 identified in the first recital of this proclamation are terminated to the extent that they provide, on and after July 1, 1967, for any item in the Tariff Schedules of the United States identified in the annex to this proclamation, a rate of duty lower than the rate set forth opposite thereto in the annex.

(2) The Tariff Schedules of the United States shall be modified, with respect to each item identified in the annex to this proclamation, to provide for such item, effective on and after July 1, 1967, the continuation, until modified or amended, of the rate of duty set forth opposite thereto in the annex.

IN WITNESS WHEREOF, I have hereunto set my hand this sixth day of November in the year of our Lord nineteen hundred and sixty-seven, and of the Independence of the United States of America the one hundred and ninety-second.

Lyndon B. Johnson

ANNEX

ITEMS ON WHICH FURTHER REDUCTIONS ARE BEING TERMINATED, LEVEL OF RATE REDUCTION IN EFFECT ON JUNE 30, 1967, AND DATE ON WHICH SUCH LEVEL BECAME EFFECTIVE

TSUS Item Number	June 30, 1967, Rate	Date June 30, 1967, Rate Became Effective	Interim Agreement or Agreements
222.60	23% ad val.	May 1, 1967	United Kingdom.
245.30	26% ad val.	Jan. 1, 1967	Canada.
245.90	4% ad val.	Jan. 1, 1966	Canada.
535.31	28% ad val.	Oct. 1, 1966	Japan.
544.51	33% ad val.	Oct. 1, 1966	Japan.
607.50	0.72¢ per lb. on silicon content	Jan. 1, 1967	Canada and Japan.
607.51	0.84¢ per lb. on silicon content	Jan. 1, 1967	Canada.
646.92	17% ad val.	Jan. 1, 1967	Canada and Japan.
648.97	21.5% ad val.	Oct. 1, 1966	Japan.
651.37	21.5% ad val.	Oct. 1, 1966	Japan.
660.10	13% ad val.	Jan. 1, 1966	Canada.
660.22	13% ad val.	Jan. 1, 1966	Canada.
661.20	11% ad val.	Jan. 1, 1966	Canada.
685.42	13% ad val.	Jan. 1, 1967	Canada and Japan.
694.60	9% ad val.	Jan. 1, 1966	Canada and United Kingdom.
708.72	33% ad val.	Oct. 1, 1966	Japan.
722.40	33% ad val.	Oct. 1, 1966	Japan.
734.20	10% ad val.	Jan. 1, 1967	Canada.
737.50	41% ad val.	Oct. 1, 1966	Japan.
737.80	41% ad val.	Oct. 1, 1966	Japan.
745.70	48% ad val.	Oct. 1, 1966	Japan.
745.72	38% ad val.	Oct. 1, 1966	Japan.
756.04	48% ad val.	Oct. 1, 1966	Japan.
760.10	32¢ per gross & 30.5% ad val.	Oct. 1, 1966	Japan.
770.80	24% ad val.	Oct. 1, 1966	Japan.
773.05	16% ad val.	Oct. 1, 1966	Japan.
792.60	11% ad val.	May 1, 1966	United Kingdom.

[F.R. Doc. 67-13243; Filed, Nov. 6, 1967; 11:19 a.m.]

Rules and Regulations

Title 8—ALIENS AND NATIONALITY

Chapter I—Immigration and Naturalization Service, Department of Justice

MISCELLANEOUS AMENDMENTS TO CHAPTER

The following amendments to Chapter I of Title 8 of the Code of Federal Regulations are hereby prescribed:

PART 103—POWERS AND DUTIES OF SERVICE OFFICERS; AVAILABILITY OF SERVICE RECORDS

The first sentence of § 103.4 *Certifications* is amended to read as follows: "The Commisioner, regional commissioners, associate commissioners, deputy associate commissioners, assistant commissioners, and district directors outside the United States, within their respective areas of responsibility, may direct that any case or classes of cases be certified for decision."

PART 212—DOCUMENTARY REQUIREMENTS: NONIMMIGRANTS; WAIVERS; ADMISSION OF CERTAIN INADMISSIBLE ALIENS; PAROLE

1. The fourth, fifth, and sixth sentences of paragraph (a) *Applications under section 212(d)(3)(A)* of § 212.4 *Applications for the exercise of discretion under section 212(d)(3)* are amended to read as follows: "The recommendation shall specify (1) the reasons for inadmissibility and each section of law under which the alien is inadmissible; (2) each intended date of arrival; (3) the length of each proposed stay in the United States; (4) the purpose of each stay; (5) the number of entries which the alien intends to make, and (6) the justification for exercising the authority contained in section 212(d)(3) of the Act. If the alien desires to make multiple entries and the consular officer or other State Department official believes that the circumstances justify the issuance of a visa valid for multiple entries rather than for a specified number of entries, and recommends that the alien be accorded an authorization valid for multiple entries, the information required by items (2) and (3) shall be furnished only with respect to the initial entry. Item (2) does not apply to a bona fide crewman."

2. The first, second, third, and seventh sentences of paragraph (c) *Terms of authorization* of § 212.4 *Applications for the exercise of discretion under section 212(d)(3)* are amended to read as follows: "Each authorization under section 212(d)(3)(A) or (B) of the Act shall specify (1) the reasons for inadmissibility and each section of law under which the alien is inadmissible; (2) the intended date of each arrival; (3) the length of each stay authorized in the United States; (4) the purpose of each stay; (5) the number of entries for which the authorization is valid; (6) the dates on or between which each application for admission at ports of entry in the United States is valid, and (7) the justification for exercising the authority contained in section 212(d)(3) of the Act. If the consular officer has recommended under section 212(d)(3)(A), or an applicant under section 212(d)(3)(B) seeks, the issuance of an authorization valid for multiple entries rather than for a specified number of entries, and it is determined that the circumstances justify the issuance of the authorization valid for multiple entries, the information required by items (2) and (3) shall be specified only with respect to the initial entry. Item (2) does not apply to a bona fide crewman. * * * The period for which the alien's admission is authorized pursuant to item (3) shall not exceed the period justified, subject to the limitations specified in Part 214 of this chapter for each class of nonimmigrants."

PART 238—CONTRACTS WITH TRANSPORTATION LINES

The listing of transportation lines under "At Nassau" of § 238.4 *Preinspection outside the United States* is amended by adding the following transportation line in alphabetical sequence: "Trans Caribbean Airways, Inc."

(Sec. 103, 66 Stat. 173; 8 U.S.C. 1103)

This order shall be effective on the date of its publication in the FEDERAL REGISTER. Compliance with the provisions of section 553 of title 5 of the United States Code (P.L. 89-554, 80 Stat. 383), as to notice of proposed rule making and delayed effective date, is unnecessary in this instance because the amendment to § 103.4 is clarifying in nature; the amendment to § 212.4 relieves a restriction, and the amendment to § 238.4 adds a transportation line to the listing under "At Nassau."

Dated: November 1, 1967.

RAYMOND F. FARRELL,
Commissioner of Immigration and Naturalization.

[F.R. Doc. 67-13145; Filed, Nov. 6, 1967; 8:49 a.m.]

Title 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

SUBCHAPTER E—VIRUSES, SERUMS, TOXINS, AND ANALOGOUS PRODUCTS; ORGANISMS AND VECTORS

PART 131—HANDLING OF ANTI-HOG-CHOLERA SERUM AND HOG-CHOLERA VIRUS

Termination of Marketing Agreement and Marketing Order and Discharging Control Agency

A notice was issued by the Acting Administrator for Agricultural Research Service, and published in the FEDERAL REGISTER of September 29, 1967 (32 F.R. 13668), in which was announced a proposal to terminate the provisions of § 131.113 of the Marketing Agreement, as amended, and Marketing Order, as amended, Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus (9 CFR Part 131), and to discharge the members of the Control Agency.

An order was issued by the Assistant Secretary of Agriculture on December 13, 1966 (31 F.R. 16185), terminating the provisions of the Marketing Agreement Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended, and the Marketing Order Regulating Handling of Anti-Hog-Cholera Serum and Hog-Cholera Virus, as amended (9 CFR Part 131), except the provisions thereof concerning liquidation of the affairs of the Control Agency (9 CFR 131.113).

The affairs of the Control Agency have been liquidated, and any funds collected for expenses and held by the Control Agency over and above the amounts necessary to meet outstanding obligations and expenses necessarily incurred by the Control Agency have been returned to the contributing handlers, all in accordance with the provisions of the said § 131.113 (9 CFR 131.113).

The aforesaid notice also gave opportunity to interested persons to file any written data, views, or arguments concerning the proposal to terminate said § 131.113. No such communications were received within the prescribed time.

The foregoing being considered, thirty days notice of the effective date hereof will serve no practical purpose, is unnecessary, and contrary to the public interest and good cause exists for making this order effective upon publication in the FEDERAL REGISTER.

It is, therefore, ordered, That the members of the Control Agency be and they are herewith discharged and the

provisions of § 131.113, Title 9, Code of Federal Regulations are hereby terminated.

Issued at Washington, D.C., this 1st day of November 1967, to be effective as aforesaid.

GEORGE L. MEHREN,
Assistant Secretary.

[F.R. Doc. 67-13138; Filed, Nov. 6, 1967; 8:48 a.m.]

Title 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket No. C-1262]

PART 13—PROHIBITED TRADE PRACTICES

La Salle Quilting Co., Inc., and Arthur D. Rifas

Subpart—Invoicing products falsely: § 13.1108 *Invoicing products falsely:* 13.1108–80 Textile Fiber Products Identification Act. Subpart—Misbranding or mislabeling: § 13.1185 *Composition:* 13.1185–80 Textile Fiber Products Identification Act; 13.1185–90 Wool Products Labeling Act; § 13.1212 *Formal regulatory and statutory requirements:* 13.1212–80 Textile Fiber Products Identification Act; 13.1212–90 Wool Products Labeling Act.

(Sec. 6, 38 Stat. 721; 15 U.S.C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; secs. 2–5, 54 Stat. 1128–1130, 72 Stat. 1717; 15 U.S.C. 45, 68, 70) [Cease and desist order, La Salle Quilting Co., Inc., et al, Chicago, Ill., Docket C-1262, Oct. 10, 1967]

Consent order requiring a Chicago, Ill., manufacturer of bedding and quilted fabrics to cease misbranding its wool and textile fiber products and failing to maintain required records.

The order to cease and desist, including further order requiring report of compliance therewith, is as follows:

It is ordered, That respondents La Salle Quilting Co., Inc., a corporation, and its officers, and Arthur D. Rifas, individually and as an officer of said corporation, and respondents' representatives, agents, and employees, directly or through any corporate or other device, in connection with the introduction, or manufacture for introduction, into commerce, or the offering for sale, sale, transportation, distribution, delivery for shipment or shipment, in commerce, of wool products, as "commerce" and "wool product" are defined in the Wool Products Labeling Act of 1939, do forthwith cease and desist from misbranding such products by:

1. Falsely and deceptively stamping, tagging, labeling, or otherwise identifying such products as to the character or amount of the constituent fibers contained therein.

2. Failing to securely affix to, or place on, each such product a stamp, tag, label, or other means of identification showing in a clear and conspicuous manner each element of information required to be disclosed by section 4(a)(2) of the Wool Products Labeling Act of 1939.

It is further ordered, That respondents La Salle Quilting Co., Inc., a corporation, and its officers, and Arthur D. Rifas, individually and as an officer of said corporation, and respondents' representatives, agents, and employees, directly or through any corporate or other device, in connection with the introduction, delivery for introduction, manufacture for introduction, sale, advertising, or, offering for sale, in commerce, or the transportation or causing to be transported in commerce, or the importation into the United States, of any textile fiber product; or in connection with the sale, offering for sale, advertising, delivery, transportation, or causing to be transported, of any textile fiber product which has been advertised or offered for sale in commerce; or in connection with the sale, offering for sale, advertising, delivery, transportation, or causing to be transported, after shipment in commerce, of any textile fiber product, whether in its original state or contained in other textile fiber products, as the terms "commerce" and "textile fiber product" are defined in the Textile Fiber Products Identification Act, do forthwith cease and desist from:

A. Misbranding textile fiber products by:

1. Falsely or deceptively stamping, tagging, labeling, invoicing, advertising, or otherwise identifying such products as to the name or amount of constituent fibers contained therein.

2. Failing to affix a stamp, tag, label, or other means of identification to each such product showing in a clear, legible, and conspicuous manner each element of information required to be disclosed by section 4(b) of the Textile Fiber Products Identification Act.

B. Failing to maintain and preserve proper records showing the fiber content of the textile fiber products manufactured by said respondents, as required by section 6 of the Textile Fiber Products Identification Act and Rule 39 of the regulations promulgated thereunder.

It is further ordered, That the respondents herein shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with this order.

Issued: October 10, 1967.

By the Commission.

[SEAL] JOSEPH W. SHEA,
Secretary.

[F.R. Doc. 67-13110; Filed, Nov. 6, 1967; 8:46 a.m.]

PART 15—ADMINISTRATIVE OPINIONS AND RULINGS

Corsage Wearing Apparel Under Flammable Fabrics Act

§ 15.148 Corsage wearing apparel under Flammable Fabrics Act.

(a) The Commission was requested to render an advisory opinion as to whether a corsage made of wood fiber chips is considered to be wearing apparel under the Flammable Fabrics Act.

(b) The Commission has advised the requesting party that in its opinion a corsage made of wood fiber chips is an article of wearing apparel as the term "article of wearing apparel" is defined in the Flammable Fabrics Act, and is subject to the Act.

(38 Stat. 717, as amended; 15 U.S.C. 41–58; 67 Stat. 111; 15 U.S.C. 1191)

Issued: November 6, 1967.

By direction of the Commission.

[SEAL] JOSEPH W. SHEA,
Secretary.

[F.R. Doc. 67-13062; Filed, Nov. 6, 1967; 8:45 a.m.]

Title 17—COMMODITY AND SECURITIES EXCHANGES

Chapter II—Securities and Exchange Commission

PART 200—ORGANIZATION; CONDUCT AND ETHICS; AND INFORMATION AND REQUESTS

Delegation of Authority to Director of Division of Corporate Regulation; Correction

In F.R. Doc. 66-4776, filed May 2, 1966, appearing at 31 F.R. 6588, a correction is hereby made in subparagraph (1) of paragraph (b) of § 200.30-2 of Chapter II of Title 17 of the Code of Federal Regulations by adding immediately following subdivision (xxiii) a new subdivision (xxiv) reading as follows:

§ 200.30-2 Delegation of authority to Director of Division of Corporate Regulation.

* * * * *

(b) * * *

(1) * * *

(xxiv) Section 3(b)(2), 15 U.S.C. 80a-3(b)(2).

* * * * *

The foregoing will conform such section to the regulation as adopted by the Commission in its Release Nos. 33-4828, 34-7873, 35-15455, 39-231, 40-4578, and IA-200, dated April 27, 1966.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

NOVEMBER 1, 1967.

[F.R. Doc. 67-13120; Filed, Nov. 6, 1967; 8:47 a.m.]

Title 20—EMPLOYEES' BENEFITS

Chapter II—Railroad Retirement Board

SUBCHAPTER E—REGULATIONS ON EMPLOYEE RESPONSIBILITIES AND CONDUCT

PART 396—EMPLOYEE RESPONSIBILITIES AND CONDUCT

Pursuant to and in accordance with sections 201 through 209 of Title 18 of the United States Code, Executive Order 11222 of May 8, 1965 (30 F.R. 6469), and Title 5, Chapter I, Part 735 of the Code of Federal Regulations, Part 396 of Title 20 of the Code of Federal Regulations is amended to read as follows:

Sec.
396.735–101 Adoption of regulations.
396.735–102 Review of statements of employment and financial interests.
396.735–103 Disciplinary and other remedial action.
396.735–104 Gifts, entertainment, and favors.
396.735–105 Specific provisions governing special Government employees.
396.735–106 Statements of employment and financial interest.
396.735–107 Supplementary statements.
396.735–108 Statements of employment and financial interest of special Government employees.

AUTHORITY: The provisions of this Part 396 issued under E.O. 11222, 30 F.R. 6469, 3 CFR, 1965 Supp.; 5 CFR 735.101 et seq.

§ 396.735–101 Adoption of regulations.

Pursuant to 5 CFR 735.104(f), the Railroad Retirement Board (referred to hereinafter as the Board) hereby adopts the following sections of Part 735 of Title 5, Code of Federal Regulations: §§ 735.–101–735.102, 735.201a, 735.202 (a), (d), (e), (f)–735.210, 735.302, 735.303(a), 735.304, 735.305(a), 735.403(a), 735.404, 735.405, 735.407–735.411, 735.412 (b) and (d). These adopted sections are modified and supplemented as set forth in this part.

§ 396.735–102 Review of statements of employment and financial interests.

Each statement of employment and financial interests submitted under this part shall be reviewed by the Secretary of the Board. When this review indicates a conflict between the interests of an employee or special Government employee of the Board and the performance of his services for the Government, the Secretary of the Board shall have the indicated conflict brought to the attention of the employee or special Government employee, grant the employee or special Government employee an opportunity to explain the indicated conflict, and attempt to resolve the indicated conflict. If the indicated conflict cannot be resolved, the Secretary of the Board shall forward a written report on the indicated conflict to the Board.

§ 396.735–103 Disciplinary and other remedial action.

An employee or special Government employee of the Board who violates any of the regulations in this part or adopted under § 396.735–101 may be disciplined. The disciplinary action may be in addition to any penalty prescribed by law for the violation. In addition to or in lieu of disciplinary action, remedial action to end conflicts or appearance of conflicts of interest may include but is not limited to:

(a) Changes in assigned duties;

(b) Divestment by the employee or special Government employee of his conflicting interest; or

(c) Disqualification for a particular assignment.

§ 396.735–104 Gifts, entertainment, and favors.

The Board authorizes the exceptions to 5 CFR 735.202(a) set forth in 5 CFR 735.202(b) (1)–(4).

§ 396.735–105 Specific provisions governing special Government employees.

(a) Special Government employees of the Board shall adhere to the standards of conduct applicable to employees as set forth in this part and adopted under § 396.735–101, except 5 CFR 735.203(b).

(b) Special Government employees of the Board may teach, lecture, or write in a manner not inconsistent with 5 CFR 735.203(c).

(c) Pursuant to 5 CFR 735.305(b), the Board authorizes the same exceptions concerning gifts, entertainment, and favors for special Government employees as are authorized for employees by § 396.735–104.

§ 396.735–106 Statements of employment and financial interest.

(a) Employees in the following named positions shall submit statements of employment and financial interest:

(1) Chief Executive Officer.

(2) Director of Bureau of Retirement Claims.

(3) Director of Unemployment and Sickness Insurance.

(4) Director of Bureau of Data Processing and Accounts.

(5) Director of Budget and Fiscal Operations.

(6) Director of Supply and Service.

(b) Each statement of employment and financial interest required by this section shall be submitted to the Secretary of the Board, 844 Rush Street, Chicago, Ill. 60611.

(c) An employee who feels that his position has been improperly included in this section as one requiring the submission of a statement of employment and financial interest may obtain a review of his complaint under the Board's grievance procedure.

§ 396.735–107 Supplementary statements.

Notwithstanding the filing of the annual supplementary statement required by 5 CFR 735.406, each employee shall at all times avoid acquiring a financial interest that could result, or taking an action that would result, in a violation of the conflicts-of-interest provisions of section 208 of title 18, United States Code or the regulations in this part or adopted under § 396.735–101.

§ 396.735–108 Statements of employment and financial interest of special Government employees.

Pursuant to 5 CFR 735.412(c), special Government employees who are not consultants or experts as defined in 5 CFR 735.412(c) are not required to submit statements of employment and financial interest.

This amended Part 396 was approved by the Civil Service Commission on September 25, 1967, and is effective upon publication in the FEDERAL REGISTER.

Dated: November 1, 1967.

By authority of the Board.

LAWRENCE GARLAND,
Secretary of the Board.

[F.R. Doc. 67–13144; Filed, Nov. 6, 1967; 8:49 a.m.]

Title 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

SUBCHAPTER F—ENROLLMENT

PART 41—PREPARATION OF ROLLS OF INDIANS

Requirements for Enrollment and Deadlines for Filing Applications

The following amendment is made to Title 25—Indians, Part 41, incident to the preparation of a roll of Brotherton Indians entitled to share in the funds appropriated to pay judgments in favor of the Emigrant New York Indians as authorized by the Act of September 27, 1967 (P.L. 90–93).

To include requirements for enrollment and establish a deadline for filing applications, § 41.3 is amended by adding a new paragraph designated as (i) which reads as follows:

§ 41.3 Qualifications for enrollment and the deadline for filing applications.

* * * * *

(i) Brotherton Indians of Wisconsin: All persons who establish to the satisfaction of the Secretary of the Interior that they are Brotherton Indians of Wisconsin of at least one-fourth degree Emigrant New York Indian blood shall be eligible for enrollment to share in the distribution of the judgment funds awarded the Emigrant New York Indians in Indian Claims Commission Docket 75 provided:

(1) They were born on or prior to and living on September 27, 1967.

(2) They are not members of either the Oneida Tribe of Indians of Wisconsin or the Stockbridge-Munsee Indian Community of Wisconsin.

(3) Applications for enrollment are filed with the Superintendent, Bureau of Indian Affairs, Great Lakes Agency, Ashland, Wis., on forms provided for that purpose. Applications for enrollment must be postmarked no later than July 1, 1968.

In the absence of proof to the contrary, for the purposes of determining degree of Emigrant New York Indian blood, all persons listed on the roll of "Brothertown Allottees of Wisconsin Lands in 1839" will be considered as possessing 4/4 degree Emigrant New York Indian blood.

No further changes are made in the text of Part 41.

Notice of proposed rule making would cause undue delay in the preparation of the roll and would be contrary to the public interest. Therefore, notice and public procedure imposed by 5 U.S.C. 553 (Supp. II, 1965–66), are dispensed with under the exceptions provided in that section. Accordingly, this amendment shall become effective on the date of publication in the FEDERAL REGISTER.

ROBERT L. BENNETT,
Commissioner.

[F.R. Doc. 67-13111; Filed, Nov. 6, 1967; 8:46 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 67-1190]

PART 0—COMMISSION ORGANIZATION

Memorandum Opinion and Order Regarding Multiple-City AM and FM Station Identification

In the matter of amendment of Part 0 of the Commission's rules, Commission Organization, to delegate to the Chief, Broadcast Bureau, authority to waive the provisions of §§ 73.117 and 73.287 to the extent of allowing multiple-city AM and FM station identification, upon proper request therefor.

1. The Commission has before it a number of applications and waiver requests from AM and FM broadcast stations looking toward on-the-air identification with one or more communities other than the community to which the station is assigned. Most seek dual-city identification, without the establishment of additional studios or other technical changes.

2. These applications and requests have been reviewed in light of the purposes and objectives of our Report on AM and FM Program Origination, 1 RR (Part Three) 91:465 (1950) and all subsequent case law and policy statements, as well as changes in AM and FM operating practices and program sources which are known to have occurred over the past 17 years. As a result of this study, we have concluded that the AM and FM practice should be aligned with television practice to the extent of permitting on-the-air identification with all communities lying within the pertinent principal city contours (5 and 25 mv/m for AM; 3.16 mv/m for FM). Further, we have concluded that this can best be accomplished by delegating to the Chief, Broadcast Bureau, authority to waive the AM and FM station identification requirements (§§ 73.117 and 73.287, respectively) on the same footing as the provisions of § 73.652 are waived for the benefit of television stations under the delegation contained in § 0.281(d)(17) of the rules. As in the case of television stations receiving such waivers, however, the station's primary obligation to the community of license will in no way be affected by the grant of a waiver.

3. The amendment herein ordered is a relaxation of existing requirements, and will improve efficiency by achieving greater consistency in the administration of the aural and television services. For these reasons, the notice and effective date provisions of section 4 of the Administrative Procedure Act (5 U.S.C. 553) need not be followed. Authority for the adoption of this amendment is contained in sections 4(i), 303(d), 303(r), and 307(b) of the Communications Act of 1934, as amended.

4. *Accordingly, it is ordered*, That, effective November 8, 1967, §0.281 of the Commission's rules and regulations is amended as set forth below.

(Secs. 4, 303, 307, 48 Stat., as amended, 1066, 1082, 1083; 47 U.S.C. 154, 303, 307)

Adopted: October 25, 1967.

Released: November 2, 1967.

FEDERAL COMMUNICATIONS COMMISSION,[1]
[SEAL] BEN F. WAPLE,
Secretary.

In Part 0 of Chapter I of Title 47, Code of Federal Regulations, § 0.281 is amended by adding the following:

§ 0.281 Authority delegated.

* * * * *

(kk) For waiver of the provisions of §§ 73.117 and 73.287 of this chapter to permit multiple-city identification, where the additional community or communities with which identification is sought are provided with the minimum principal city signal intensity specified in §§ 73.188(b) and 73.315(a) of this chapter for AM and FM broadcast stations, respectively.

[F.R. Doc. 67-13152; Filed, Nov. 6, 1967; 8:50 a.m.]

[1] Concurring statement of Commissioner Johnson filed as part of the original document; Commissioners Bartley and Wadsworth absent.

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

SUBCHAPTER C—AIRCRAFT

[Docket No. 8516; Amdt. 21-18]

PART 21—CERTIFICATION PROCEDURES FOR PRODUCTS AND PARTS

Delegation Option Authorization

The purpose of this amendment is to clarify Part 21 of the Federal Aviation Regulations with respect to the authority of delegation option manufacturers to issue airworthiness certificates.

Present § 21.273(a) limits a manufacturer holding a delegation option authorization to the issuance of standard airworthiness certificates for aircraft produced by him under his authorization. The word "standard" was inadvertently incorporated into § 21.273(a) during the adoption of Amendment 21-5 to the delegation option procedures. The provisions of § 21.251 covering the limits of applicability for delegation option authorizations contain no such limitation and the delegation option manufacturers have been issuing airworthiness certificates other than standard certificates for many years without any adverse effect on safety. For these reasons, the FAA considers it appropriate to correct the provisions of § 21.273(a) to make it clear that delegation option manufacturers are not limited to the issuance of standard airworthiness certificates.

Since this amendment is clarifying in nature and imposes no additional burden on any person, notice and public procedure thereon are unnecessary and the amendment may be made effective immediately.

In consideration of the foregoing, § 21.273(a) of Part 21 is amended effective November 1, 1967, by striking out the words "a standard" and inserting the word "an" in place thereof.

(Secs. 313(a), 314, 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354, 1355, 1421, 1423)

Issued in Washington, D.C., on November 1, 1967.

WILLIAM F. MCKEE,
Administrator.

[F.R. Doc. 67-13127; Filed, Nov. 6, 1967; 8:48 a.m.]

[Docket No. 67-EA-83; Amdt. 39-493]

PART 39—AIRWORTHINESS DIRECTIVES

Fairchild Hiller Aircraft

Correction

In F.R. Doc. 67-12467 appearing at page 14647 in the issue of Saturday, Oc-

tober 21, 1967, paragraph 1 is corrected to read as follows:

1. Airworthiness Directive 66-30-4 is amended by deleting the applicability and insert in lieu thereof "Applies to F-27 Type Airplanes Equipped with Upper Engine Mount Support Tube Assemblies, P/N 27-503105-11, -31, -41, or -51; Upper Engine Mount Support Tube Brackets, P/N 27-110105-11, -12, -31, -32, -41, -42, -51, -52, -61, or -62; or Lower Engine Mount Support Tube Assemblies, P/N 27-503101-11, -31, -41, -51, -61, or -71."

SUBCHAPTER F—AIR TRAFFIC AND GENERAL OPERATING RULES

[Reg. Docket No. 8479; Amdt. 565]

PART 97—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to the standard instrument approach procedures contained herein are adopted to become effective when indicated in order to promote safety. The amended procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the complete procedure is republished in this amendment indicating the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice and procedure provisions of the Administrative Procedure Act is impracticable and that good cause exists for making this amendment effective within less than 30 days from publication.

In view of the foregoing and pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 97 (14 CFR Part 97) is amended as follows:

1. By amending the following automatic direction finding procedures prescribed in § 97.11(b) to read:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Mentor Int	Stadium RBn	Direct	3000	T-dn	300-1	300-1	200-½
Sharon Int	Stadium RBn	Via STG VOR, R 183° and STG VOR, R 036°.	3000	C-dn	700-1	700-1	700-1½
				S-dn-23L/R	700-1	700-1	700-1
				A-dn	800-2	800-2	800-2
CLE RBn	Stadium RBn	Direct	3000				
Vermilion Int	Stadium RBn	Direct	3000				

Radar available.
Procedure turn N side of crs, 054° Outbnd, 234° Inbnd, 3000' within 10 miles of Stadium RBn.
Minimum altitude over facility on final approach crs, 3000'.
Crs and distance, facility to airport, 234°—6.8 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.8 miles after passing SUM RBn, make right-climbing turn to 3000' direct to CLE VOR. Hold SW, 1-minute right turns, 069° Inbnd.
CAUTION: 1971' towers approximately 6 miles ESE of airport.
MSA within 25 miles of facility: 000°-090°—2600'; 090°-270°—3000'; 270°-360°—1900'.

City, Cleveland; State, Ohio; Airport name, Cleveland-Hopkins International; Elev., 792'; Fac. Class., MHW; Ident., SUM; Procedure No. NDB(ADF) Runway 23 L/R, Amdt. 6; Eff. date, 25 Nov. 67; Sup. Amdt. No. ADF 2, Amdt. 5; Dated, 29 Feb. 64

Fort Riley Int	FRI NDB	Direct	2900	T-dn	300-1	300-1	*300-1
				C-dn#	600-1	600-1	600-1½
				A-dn	1000-2	1000-2	1000-2

Procedure turn S side of crs, 211° Outbnd, 031° Inbnd, 2900' within 10 miles.
Minimum altitude over facility on final approach crs, 1900'.
Crs and distance, facility to airport, 031°—1.8 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 1.8 miles after passing FRI NDB, climb to 2900' on a crs of 050° from the NDB within 15 miles. Turn right and return to FRI NDB.
NOTES: (1) Authorized for military use only except by prior arrangement. (2) Final approach from holding pattern not authorized. Procedure turn required.
CAUTION: Restricted area R-3602 adjacent to airport NW. Small arms firing range 2.4 miles N.
*Takeoff minimums 200-½ on Runway 22 only.
#All circling approaches will be made to the E of the airport. See caution note.
MSA within 25 miles of the facility: 000°-360°—2800'.

City, Fort Riley; State, Kans.; Airport name, Marshall AAF; Elev., 1062'; Fac. Class., MHW; Ident., FRI; Procedure No. NDB(ADF) Runway 4, Amdt. 5; Eff. date, 25 Nov. 67; Sup. Amdt. No. ADF 1, Amdt. 4; Dated, 5 Sept. 64

PROCEDURE CANCELED, EFFECTIVE 25 NOV. 1967.

City, Lancaster; State, Pa.; Airport name, Garden Spot Airpark; Elev., 423'; Fac. Class., MHW; Ident., LRP; Procedure No. 1, Amdt. 2; Eff. date, 31 Oct. 64; Sup. Amdt. No. 1; Dated, 29 Sept. 62

Grand Beach Int	MGC RBn (final)	Direct	1250	T-dn	300-1	300-1	200-½
North Liberty Int	MGC RBn	Direct	2300	C-dn	600-1	600-1	600-1½
Westville Int	MGC RBn	Direct	2300	S-dn-20	600-1	600-1	600-1
				A-dn	NA	NA	NA

Procedure turn E side of crs, 010° Outbnd, 190° Inbnd, 2300' within 10 miles.
Minimum altitude over facility on final approach crs, 1250'.
Facility on airport.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile of MGC RBn, climb to 2300' on crs 190° and return to RBn.
NOTE: Use South Bend altimeter setting.
CAUTION: 730' MSL (80' AGL) light pole 450' W of Runway 20 centerline and 400' past threshold.
MSA within 25 miles of facility: 000°-090°—2100'; 090°-180°—2900'; 180°-360°—2100'.

City, Michigan City; State, Ind.; Airport name, Michigan City; Elev., 650'; Fac. Class., MHW; Ident., MGC; Procedure No. NDB(ADF) Runway 20, Amdt. 1; Eff. date, 25 Nov. 67; Sup. Amdt. No. NDB(ADF) Runway 20, Orig.; Dated, 14 Sept. 67

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
OKM VOR	MKO RBn	Direct	3000	T-d	300-1	300-1	200-½
Mazie Int	MKO RBn	Direct	3000	C-d	800-1	800-1½	800-1½
				S-d-31	800-1	800-1	800-1
				A-d	NA	NA	NA

Procedure turn S side of crs, 120° Outbnd, 300° Inbnd, 2000' within 10 miles.
Minimum altitude over facility on final approach crs, 1400'.
Facility on airport.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished make immediate left turn, return to the MKO RBn climbing to 2500'. Hold SE bearing 120°, 300° Inbnd. Left turns, 1-minute.
NOTE: Use Tulsa, Okla., altimeter setting.
MSA within 25 miles of facility: 000°-270°—2300'; 270°-360°—3700'.

City, Muskogee; State, Okla.; Airport name, Davis; Elev., 610'; Fac. Class., MHW; Ident., MKO; Procedure No. NDB(ADF) Runway 31, Amdt. 4; Eff. date, 25 Nov. 67; Sup. Amdt. No. ADF 1, Amdt. 3; Dated, 19 Nov. 66

PVU VOR	PVU RBn	Direct	9800	T-dn%	300-1	300-1	200-½
PVU 188/14 DME Fix counter-clockwise	PVU 157/14 DME Fix	14-mile DME Arc.	9600	C-dn	3000-3	3000-3	3000-3
				S-dn	NA	NA	NA
PVU 157/14 DME Fix	Lincoln Int (final)	Direct	7500	A-dn	NA	NA	NA
				VOR minimums:			
				C-dn	900-1½	900-1½	900-2

Procedure turn W side of crs, 202° Outbnd, 022° Inbnd, 8000' within 10 miles.
Minimum altitude over Lincoln Int on final approach crs, 7500'.
Facility on airport. Crs and distance, Lincoln Int to airport, 026°—5.4 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing PVU RBn, turn left, climb to 7100' on bearing 312° from PVU RBn, reverse crs, continue climb to 9500' on 312° bearing from PVU RBn. Hold NW on 312° bearing PVU RBn, 1-minute right turns. All maneuvering W of crs.
CAUTION: Use SLC altimeter. High terrain all quadrants.
%Takeoffs all runways: Climb between PVU RBn and a point 5 miles NW on PVU RBn 312° bearing to sufficient altitude to cross PVU RBn for direction of flight; northwestbound on crs, 312° to intercept V21 northbound 5500'; westbound direct PVU VOR 7000'. All maneuvering W of crs.
MSA within 25 miles of facility: 320°-050°—12,800'; 050°-140°—12,100'; 140°-230°—12,900'; 230°-320°—11,700'.

City, Provo; State, Utah; Airport name, Provo Municipal; Elev., 4490'; Fac. Class., MHW; Ident., PVU; Procedure No. NDB(ADF)-1, Amdt. Orig.; Eff. date, 25 Nov. 67

PVU VOR	Orem Int	Direct	9800	NDB(ADF) minimums not authorized. NDB(ADF)/ VOR minimums:			
SLC VOR	Riverton Int	Direct	8800				
PVU VOR	PVU VOR 341/9 DME Fix	Direct	9800	T-dn%	300-1	300-1	200-½
PVU VOR 341/9 DME Fix clockwise	Williams Int	9-mile DME Arc.	8800	C-dn	600-1	600-1	600-1½
				S-dn-13	600-1	600-1	600-1
Williams Int	Orem Int (final)	Direct	6400	A-dn	NA	NA	NA
Riverton Int	Williams Int	Direct	8800				

Procedure turn W side of crs, 312° Outbnd, 132° Inbnd, 8800' within 12 miles of Orem Int.
Minimum altitude over Williams Int on final approach crs, 8800' over Orem Int, 6400'.
Facility on airport. Crs and distance, Orem Int to airport, 132°—5.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0 mile after passing PVU RBn, turn right, climb to 7100' on bearing 312° from PVU RBn, reverse crs, continue climb to 9500' on 312° bearing from PVU RBn. Hold NW on 312° bearing PVU RBn, 1-minute right turns. All maneuvering W of crs.
CAUTION: Use SLC altimeter. High terrain all quadrants.
%Takeoffs all runways: Climb between PVU RBn and a point 5 miles NW of PVU RBn 312° bearing to sufficient altitude to cross PVU RBn for direction of flight; northwestbound on crs, 312° to intercept V21 northbound 5500'; westbound direct PVU VOR 7000'. All maneuvering W of crs.
MSA within 25 miles of facility: 320°-050°—12,800'; 050°-140°—12,100'; 140°-230°—12,900'; 230°-320°—11,700'.

City, Provo; State, Utah; Airport name, Provo Municipal; Elev., 4490'; Fac. Class., MHW; Ident., PVU; Procedure No. NDB(ADF) Runway 13, Amdt. Orig.; Eff. date, 25 Nov. 67

PIE VORTAC	LOM	Direct	1700	T-dn*	300-1	300-1	200-½
AMP RBn	LOM	Direct	1700	C-dn#	600-1	600-1	600-1½
				S-dn-18L	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar available.
Procedure turn W side of crs, 001° Outbnd, 181° Inbnd, 1700' within 10 miles.
Minimum altitude over facility on final approach crs, 1700'.
Crs and distance, facility to airport, 181°—5.9 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.9 miles after passing LOM, right-climbing turn to 1700', proceed direct to PIE VORTAC via PIE VORTAC R 065° or, when directed by ATC, climb to 2000' on direct bearing to AMP RBn.
CAUTION: 210' radio tower, 1 mile WSW of airport.
*200-½ absolute minimum for takeoff Runway 27. RVR 2400' authorized Runway 18L.
#Circling ceiling minimum 500' authorized W of centerline extended of Runways 18L-36R.
MSA within 25 miles of facility: 000°-090°—1500'; 090°-180°—2600'; 180°-270°—1600'; 270°-360°—1600'.

City, Tampa; State, Fla.; Airport name, Tampa International; Elev., 27'; Fac. Class., LOM; Ident., TP; Procedure No. NDB(ADF) Runway 18L, Amdt. 22; Eff. date, 25 Nov. 67; Sup. Amdt. No. NDB(ADF) Runway 18L, Amdt. 21; Dated, 30 Sept. 67

2. By amending the following very high frequency omnirange (VOR) procedures prescribed in § 97.11(c) to read:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
AM LOM	AMA VOR	Direct	5000	T-dn	300-1	300-1	200-½
ARO VOR	AMA VOR	Direct	5000	C-dn	500-1	500-1	500-1½
				S-dn-21*	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Radar available.
Procedure turn N side of crs, 030° Outbnd, 210° Inbnd, 5000' within 10 miles.
Minimum altitude over facility on final approach crs, 4600'.
Crs and distance, facility to airport, 210°—4.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing AMA VOR, climb to 5000' on R 210° within 15 miles or, when directed by ATC, turn left, climb to 5000' on R 076° within 15 miles.
CAUTION: 3764' grain elevator located adjacent to SW boundary of airport.
*Runway 21: 400-¾ authorized with operative HIRL, except for 4-engine turbojets.
MSA within 25 miles of facility: 000°-180°—4900'; 180°-360°—5400'.

City, Amarillo; State, Tex.; Airport name, Amarillo AAF/Municipal; Elev., 3605'; Fac. Class., H-BVORTAC; Ident., AMA; Procedure No. VOR Runway 21, Amdt. 14; Eff. date, 25 Nov. 67; Sup. Amdt. No. VOR Runway 21, Amdt. 13; Dated, 11 Nov. 67

Fort Riley Int	FRI VOR	Direct	2900	T-dn	300-1	300-1	*300-1
				C-dn#	700-1	700-1	700-1½
				S-dn-4	600-1	600-1	600-1
				A-dn	1000-2	1000-2	1000-2

Procedure turn S side of crs, 213° Outbnd, 033° Inbnd, 2900' within 10 miles.
Minimum altitude over facility on final approach crs, 2600'.
Crs and distance, facility to airport, 033°—6.3 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.3 miles after passing VOR, climb to 2900' on FRI VOR, R 050° within 15 miles. Turn right and return to FRI VOR.
NOTE: Authorized for military use only except by prior arrangement.
CAUTION: Restricted area R-3602 adjacent to airport NW. Small arms firing range 2.4 miles N.
*Takeoff minimums 200-½ on Runway 22 only.
#All circling approaches will be made to the E of the airport. See caution note.
MSA within 25 miles of the facility: 000°-360°—2800'.

City, Fort Riley; State, Kans.; Airport name, Marshall AAF; Elev., 1062'; Fac. Class., L-VOR; Ident., FRI; Procedure No. VOR Runway 4, Amdt. 3; Eff. date, 25 Nov. 67; Sup. Amdt. No. VOR 1, Amdt. 2; Dated, 5 Sept. 64

PROCEDURE CANCELED, EFFECTIVE 25 NOV. 1967.

City, Lancaster; State, Pa.; Airport name, Garden Spot Airpark; Elev., 423'; Fac. Class., BVOR; Ident., LRP; Procedure No. 1, Amdt. 1; Eff. date, 31 Oct. 64; Sup. Amdt. No. Orig.; Dated, 18 Aug. 62

				T-dn	700-1½		
				C-dn	1100-2		
				S-dn			
				A-dn	NA	NA	NA
				DME Minimums:			
				C-dn	900-1½		

Procedure turn S side of crs, 308° Outbnd, 128° Inbnd, 4000' within 10 miles.
Minimum altitude over facility on final approach crs, 4000'; over 6-mile DME Fix, R 128°, 2341'.
Crs and distance, facility to airport, 128°—7.6 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 7.6 miles after passing PSB VOR, make right-climbing turn to 4000', proceed direct to PSB VOR. Hold NW, 1-minute right turns, Inbnd crs, 128°.
NOTE: Use Philipsburg, Pa., altimeter setting.
CAUTION: Boundary lights only on Runways 6/24.
MSA within 25 miles of facility: 000°-090°—3600'; 090°-180°—3600'; 180°-270°—3900'; 270°-360°—3800'.

City, State College; State, Pa.; Airport name, University Park; Elev., 1241'; Fac. Class., H-BVORTAC; Ident., PSB; Procedure No. VOR-1, Amdt. 1; Eff. date, 25 Nov. 67; Sup. Amdt. No. VOR-1, Orig.; Dated, 8 Aug. 64

R 288°, TLH VORTAC clockwise	R 352°, TLH VORTAC	8-mile DME Arc TLH, R 338°, lead radial.	2000	T-d*	300-2	300-2	NA
				C-d*	800-2	800-2	NA
R 080°, TLH VORTAC counterclockwise	R 352°, TLH VORTAC	8-mile DME Arc TLH, R 006°, lead radial.	2000	A-dn*	NA	NA	NA
				DME Minimums:			
				C-d*	700-2	700-2	NA
8-mile DME, R 352°	TLH VORTAC (final)	R 352°	957				

Procedure turn W side of crs, 352° Outbnd, 172° Inbnd, 2000' within 10 miles.
Minimum altitude over 3-mile DME Fix, R 352° on final approach crs, 957'.
Facility on airport. Crs and distance, 3-mile DME Fix, R 352° to airport, 172°—3 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished immediately after passing TLH VORTAC, climb to 2000' on R 172° within 15 miles and return to TLH VORTAC; or, when directed by ATC, proceed direct to TL LOM at 2000'.
NOTES: (1) Use Tallahassee, Fla., altimeter setting. (2) Sod field, no runways.
*Night instrument operations not authorized.
MSA within 25 miles of facility: 000°-090°—2300'; 090°-180°—1600'; 180°-270°—1900'; 270°-360°—1700'.

City, Tallahassee; State, Fla.; Airport name, Tallahassee Commercial; Elev., 157'; Fac. Class., H-BVORTAC; Ident., TLH; Procedure No. VOR-1, Amdt. Orig.; Eff. date, 25 Nov. 67

3. By amending the following very high frequency omnirange—distance measuring equipment (VOR/DME) procedures prescribed in § 97.15 to read:

VOR/DME STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
R 031°, AHN VORTAC clockwise	R 139°	Via 10-mile DME Arc.	2500	T-dn	300-1	300-1	NA
				C-dn	500-1	500-1	NA
R 192°, AHN VORTAC counterclockwise	R 139°	Via 10-mile DME Arc.	2500	S-dn-34	400-1	400-1	NA
				A-dn	NA	NA	NA
10-mile DME, R 139°	AHN VORTAC (final)	R 139°	2300				

Procedure turn E side of crs, 139° Outbnd, 319° Inbnd, 2300' within 10 miles.
Minimum altitude over facility on final approach crs, 2300'; over 6-mile DME Fix, R 319°, 2300'; over 15-mile DME Fix, R 319°, 1500'.
Crs and distance, facility to airport, 319°—17.7 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 17.7 miles after passing AHN VORTAC, make climbing left turn to 2300' and proceed to AHN VORTAC via R 319°.
NOTES: (1) Contact Anderson area radio via AHN VORTAC. (2) Use AHN altimeter setting. (3) Close IFR flight plan with AND area radio when landing is assured or by telephone upon landing.
MSA within 25 miles of facility: 000°-090°—2000'; 090°-180°—2400'; 180°-270°—3100'; 270°-360°—2600'.

City, Jefferson; State, Ga.; Airport name, Jackson County; Elev., 948'; Fac. Class., L-BVORTAC; Ident., AHN; Procedure No. VOR/DME Runway 34, Amdt. Orig.; Eff. date, 25 Nov. 67

4. By amending the following instrument landing system procedures prescribed in § 97.17 to read:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Mentor Int	Stadium RBn (8.1 DME Fix)	Direct	3000	T-dn	300-1	300-1	300-1½
Cleveland RBn	Stadium RBn	Direct	3000	C-dn	700-1	700-1	700-1½
Sharon Int	Stadium RBn	Via STG VOR, R 183° and STG VOR, R 036°.	3000	S-dn-23 L & R	700-1	700-1	700-1
				A-dn	800-2	800-2	800-2
Vermillion Int	Stadium RBn	Direct	3000	If 4-mile Radar Fix (5.3 DME Fix) is received, the following minimums apply:			
				C-dn	400-1	500-1	500-1½
				S-dn-23 L & R*	400-1	400-1	400-1

Radar available.
Procedure turn N side of NE crs, 054° Outbnd, 234° Inbnd, 3000' within 10 miles of SUM RBn.
Minimum altitude over Stadium RBn on final approach crs, 3000'.
Crs and distance, Stadium RBn to airport, 234°—6.8 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6.8 miles after passing Stadium RBn or 4 miles after passing 4-mile Radar Fix (5.3 DME Fix) make right-climbing turn to 3000', proceed direct to Cleveland VOR, hold SW, 1-minute right turns, 060° Inbnd.
NOTES: (1) Minimum altitude 1500' after SUM RBn Inbnd until 4-mile Radar Fix (5.3 DME Fix) is received. (2) Four-mile Radar Fix not provided by ATC unless weather is 700-2 or below.
CAUTION: TV towers 1971' approximately 6 miles ESE of airport. DME indication at SUM 8.1; at 4-mile Radar Fix—5.3 miles. DME should not be used to determine aircraft position over the runway threshold or touchdown point. DME located at glide slope site.
*400-¾ authorized, with operative high-intensity runway lights, except for 4-engine turbojets.
MSA within 25 miles of SUM RBn: 000°-090°—2600'; 090°-270°—3000'; 270°-360°—1900'.

City, Cleveland; State, Ohio; Airport name, Cleveland-Hopkins International; Elev., 792'; Fac. Class., ILS; Ident., I-CLE; Procedure No. LOC (BC) Runways 23L/R, Amdt. 3; Eff. date, 25 Nov. 67; Sup. Amdt. No. LOC (BC) Runways 23L/R, Amdt. 2; Dated, 25 Mar. 67

LSF VOR	XLE RBn	Direct	2000	T-dn*	300-1	300-1	300-1½
Lumpkin Int	XLE RBn	Direct	2000	C-dn	600-1	600-1	600-1½
EUF VOR	XLE RBn	Direct	2000	S-dn-32‰	200-½	200-½	200-½
AWS RBn	XLE RBn	Direct	2000	A-dn	600-2	600-2	600-2
Omaha Int	XLE RBn	Direct	2000				
XLE RBn	LSF OM (final)	Direct	1500				

Radar available.
Procedure turn not authorized. Enter localizer final approach from XLE RBn holding pattern (143° Outbnd, 323° Inbnd, left turns, 1 minute, 2000') or radar vectors.
Minimum altitude at glide slope intercept Inbnd, 1500'.
Altitude of glide slope and distance to approach end of runway at OM, 1462'—4.4 miles, at MM, 430'—0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 12.1 miles after passing XLE RBn, or 4.4 miles after passing OM, climb to 2000' on 202° bearing from AWS RBn within 15 miles or, when directed by ATC, climb to 1500', turn right, climb to 3200', and proceed to Flat Rock Int via 024° bearing from AWS RBn.
NOTE: Authorized for military use only except by prior arrangement.
CAUTION: Jump tower 580', 1½ miles NE; R-3002 E and SE of Lawson AAF.
‰400-¾ (RVR 4000') required when glide slope not utilized. 400-½ (RVR 2400') authorized with operative ALS, except for 4-engine turbojets.
#RVR 2400'. Descent below 432' not authorized unless ALS are visible.
*RVR 2400' authorized Runway 32.
MSA within 25 miles of XLE RBn: 000°-090°—3300'; 090°-180°—2600'; 180°-270°—1900'; 270°-360°—3300'.

City, Fort Benning; State, Ga.; Airport name, Lawson AAF; Elev., 232'; Fac. Class., ILS; Ident., I-LSF; Procedure No. ILS Runway 32, Amdt. Orig.; Eff. date, 25 Nov. 67

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
JHW VOR	JHW OM	Via JHW VOR, R 277°, 1.9 miles.	3600	T-dn-7 & 25	300-1	300-1	200-1½
				C-dn*	500-1	500-1	500-1½
				S-dn-25*&	300-¾	300-¾	300-¾
				A-dn	NA	NA	NA
				With glide slope inoperative:			
				C-dn*	500-1	500-1	500-1½
				S-dn-25*	500-1	500-1	500-1
				A-dn	NA	NA	NA

Procedure turn N side of crs, 066° Outbnd, 246° Inbnd, 3600' within 10 miles of JHW OM.
Minimum altitude at glide slope interception Inbnd, 3300'.
Altitude of glide slope and distance to approach end of runway at OM, 3238'—4.6 miles; at MM, 1950'—0.6 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.6 miles after passing the outer marker, climb to 3600', right turn, direct to JHW VOR. Hold NE, R 078°, 1-minute right turns, 258° Inbnd.
*When control zone not effective, increase straight-in and circling ceiling minimum 100'; use Bradford FSS altimeter setting.
&Increase visibility values ¼ mile when control zone not effective.

City, Jamestown; State, N.Y.; Airport name, Jamestown Municipal; Elev., 1723'; Fac. Class., ILS; Ident., I-JHW; Procedure No. ILS Runway 25, Amdt. Orig.; Eff. date, 25 Nov. 67

PIE VORTAC	LOM	Direct	1700	T-dn**	300-1	300-1	200-½
AMP RBn	LOM	Direct	1700	C-dn#	600-1	600-1	600-1½
				S-dn-18L*%	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

Radar available.
Procedure turn W side of crs, 001° Outbnd, 181° Inbnd, 1700' within 10 miles.
Minimum altitude at glide slope interception Inbd, 1700'.
Altitude of glide slope and distance to approach end of runway at LOM, 1689'—5.9 miles; at MM, 215'—0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, right-climbing turn to 225° to 1700' on R 080°/R 260° PIE VORTAC within 15 miles or, when directed by ATC, climb to 2000' on S crs of ILS within 15 miles.
CAUTION: 210' radio tower 1 mile WSW of airport.
**200-½ absolute minimum for takeoff Runway 27. RVR 2400' authorized Runway 18L.
#Circling ceiling minimum 500' authorized W of centerline extended of Runways 18L-36R.
*RVR 2400'. Descent below 227' not authorized unless approach lights are visible.
%400-½ (RVR 4000') required when glide slope not utilized, 400-½ (RVR 2400') authorized with operative ALS, except for 4-engine turbojets.
MSA within 25 miles of LOM: 000°-090°—1500'; 090°-180°—2600'; 180°-270°—1600'; 270°-360°—1600'.

City, Tampa; State, Fla.; Airport name, Tampa International; Elev., 27'; Fac. Class., ILS; Ident., I-TPA; Procedure No. ILS Runway 18L, Amdt. 24; Eff. date, 25 Nov. 67 Sup. Amdt. No. ILS Runway 18L, Amdt. 23; Dated, 30 Sept. 67

5. By amending the following radar procedures prescribed in § 97.19 to read:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
300°	175°	0-6 miles	2300				
175°	300°	0-6 miles	3000	Surveillance approach			
300°	010°	6-15 miles	3000	T-dn#	300-1	300-1	200-½
010°	175°	6-15 miles	2700	C-dn-15*	700-1	700-1	700-1½
175°	300°	6-15 miles	3500	C-dn-33*	600-1	600-1	700-1½
				S-dn-15	700-1	700-1	700-1
				S-dn-33	600-1	600-1	600-1½
				A-dn	800-2	800-2	800-2
				Precision approach			
				T-dn#	300-1	300-1	200-½
				C-dn*	600-1	600-1	700-1½
				S-dn-15, 33	300-1	300-1	300-1
				A-dn	600-2	600-2	600-2

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished: Runway 15—Climb to 2700' on runway heading. Intercept STJ VOR, R 170°, proceed to Lansing Int. Runway 33—Make right turn, climbing to 2700', intercept STJ VOR, R 170°, proceed to Lansing Int.
NOTE: Procedure authorized for military use only except by prior arrangement.
CAUTION: Hills and towers with elevations to 1148' adjacent to airport W and NW.
*All circling approaches will be made to the E of the airport.
#When 1293' tower, 3 miles SW is not visible on takeoff, climb to 1800' before turning toward tower.

City, Fort Leavenworth; State, Kans.; Airport name, Sherman AAF; Elev., 770'; Fac. Class. and Ident., Radar FLV; Procedure No. 1, Amdt. 1; Eff. date, 25 Nov. 67; Sup. Amdt. No. 1, Amdt. Orig.; Dated, 5 Sept. 64

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
000°.....	360°.....	Within 0-20 miles.	3000	T-dn.....	300-1	300-1	**300-1
				#Precision approach			
				C-d*.....	600-1	600-1	600-1½
				C-n*.....	600-2	600-2	600-2
				S-d-4-22.....	400-1	400-1	400-1
				S-n-4.....	400-2	400-2	400-2
				S-n-22.....	500-2	500-2	500-2
				A-dn.....	1000-2	1000-2	1000-2
				#Surveillance approach			
				C-d*.....	600-1	600-1	600-1½
				C-n*.....	600-2	600-2	600-2
				S-d-4-22.....	600-1	600-1	600-1
				S-n-4-22.....	600-2	600-2	600-2
				A-dn.....	1000-2	1000-2	1000-2

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished: Runway 4—Turn right, climb to 3000' on 050° bearing from FRI NDB within 15 miles, make right turn and return to FRI NDB. Runway 22—Turn left, climb to 3000' on 050° bearing from FRI NDB within 15 miles, make right turn and return to FRI NDB.

NOTE: Procedure authorized for military use only except by prior arrangement.

CAUTION: Restricted Area R-3602 adjacent to airfield NW. Small arms firing ranges 2.4 miles N of airfield.

*Circling approaches will be made E of the airfield.

**Takeoff minimums 200-½ on Runway 22 only.

#CAUTION: On approach to Runway 4 do not descend below 2100' until Radar advises passing 1780' tower 5 miles SW of airport.

City, Fort Riley; State, Kans.; Airport name, Marshall AAF; Elev., 1062'; Fac. Class. and Ident., Marshall Radar; Procedure No. 1, Amdt. 4; Eff. date, 25 Nov. 67; Sup. Amdt. No. 1, Amdt. 3; Dated, 5 Sept. 64

These procedures shall become effective on the dates specified therein.

(Secs. 307(c), 313(a), 601, Federal Aviation Act of 1958; 49 U.S.C. 1348(c), 1354(a), 1421; 72 Stat. 749, 752, 775)

Issued in Washington, D.C., on October 18, 1967.

W. E. ROGERS,
Acting Director, Flight Standards Service.

[F.R. Doc. 67-12361; Filed, Nov. 6, 1967; 8:45 a.m.]

Title 29—LABOR

Chapter XIII—Bureau of Labor Standards, Department of Labor

PART 1500—CHILD LABOR REGULATIONS, ORDERS AND STATEMENTS OF INTERPRETATION

Employment of Minors Between 14 and 16 Years of Age in Economic Opportunity Programs

A proposal to amend 29 CFR 1500.35 was published in the FEDERAL REGISTER June 22, 1967 (32 F.R. 8919). After consideration of all matter submitted in response, it has been decided to modify only the requirement that work be confined to periods outside of school hours, and to do this only when there is other adequate assurance that the employment is restricted to periods which will not interfere with the children's schooling and to conditions which will not interfere with their health and well-being.

Accordingly, 29 CFR 1500.35 is amended to read as set out below. As this amendment relieves restriction, delay in its effective date is not required by 5 U.S.C. 553, and there is need for it to be in effect for the 1967-68 school year. This amendment shall, therefore, be effective immediately.

As amended, 29 CFR 1500.35 reads as follows:

§ 1500.35 Periods and conditions of employment.

(a) Except as provided in paragraph (b) of this section, employment in any of the occupations to which this subpart is applicable shall be confined to the following periods:

(1) Outside school hours;

(2) Not more than 40 hours in any 1 week when school is not in session;

(3) Not more than 18 hours in any 1 week when school is in session;

(4) Not more than 8 hours in any 1 day when school is not in session;

(5) Not more than 3 hours in any 1 day when school is in session;

(6) Between 7 a.m. and 7 p.m. in any 1 day, except during the summer (June 1 through Labor Day) when the evening hour will be 9 p.m.

(b) In the case of enrollees in work training programs conducted under Part B of Title I of the Economic Opportunity Act of 1964, there is an exception to the requirement of paragraph (a)(1) of this section if the employer has on file with his records kept pursuant to Part 516 of this title an unrevoked written statement of the Administrator of the Bureau of Work Programs or his representative setting out the periods which the minor will work and certify that his employment confined to such periods will not interfere with his health and well-being, countersigned by the principal of the school which the minor is attending with his certificate that such employment will not interfere with the minor's schooling.

(52 Stat. 1061 as amended; 29 U.S.C. 203)

Signed at Washington, D.C., this 1st day of November 1967.

W. WILLARD WIRTZ,
Secretary of Labor.

[F.R. Doc. 67-13161; Filed, Nov. 6, 1967; 8:50 a.m.]

PART 1500—CHILD LABOR REGULATIONS, ORDERS AND STATEMENTS OF INTERPRETATION

Certain Hazardous Occupations

A proposal was published at 32 F.R. 6102 to make several amendments to 29 CFR Part 1500 as a first step in an updating of all of the Hazardous Occupation Orders and Child Labor regulations in light of current working conditions, safety improvements and the contemporary work situation. Upon consideration of all matter presented in response to the proposal, several of the proposed amendments are adopted subject to certain changes and modifications in form and manner as set out below. As each of these amendments grants an exemption or relieves a restriction, each is excepted from the 30 days delayed effective date otherwise required by 5 U.S.C. 533(d) and these amendments shall be effective immediately. The effect of these changes will be to provide increased opportunity for employment to young persons without hazard or detriment to their health or well-being.

1. In § 1500.52 the heading, paragraph (a), and paragraph (b) are amended as follows:

§ 1500.52 Motor-vehicle driver and outside helper (Order 2).

(a) *Finding and declaration of fact.* The occupations of motor-vehicle driver and outside helper on any public road, highway, in or about any mine (including open pit mine or quarry), place where logging or sawmill operations are in progress, or in any excavation of the

type identified in § 1500.68(a) are particularly hazardous for the employment of minors between 16 and 18 years of age.

(b) *Definitions.* * * *

(3) The term "outside helper" shall mean any individual, other than a driver, whose work includes riding on a motor vehicle outside the cab for the purpose of assisting in transporting or delivering goods.

2. In § 1500.58 a new paragraph (c) is added to read as follows:

§ 1500.58 Occupations involved in the operation of power-driven hoisting apparatus (Order 7).

* * * * *

(c) *Exception.* (1) This section shall not prohibit the operation of an automatic elevator and an automatic signal operation elevator provided that the exposed portion of the car interior (exclusive of vents and other necessary small openings), the car door, and the hoistway doors are constructed of solid surfaces without any opening through which a part of the body may extend; all hoistway openings at floor level have doors which are interlocked with the car door so as to prevent the car from starting until all such doors are closed and locked; the elevator (other than hydraulic elevators) is equipped with a device which will stop and hold the car in case of overspeed or if the cable slackens or breaks; and the elevator is equipped with upper and lower travel limit devices which will normally bring the car to rest at either terminal and a final limit switch which will prevent the movement in either direction and will open in case of excessive over travel by the car.

(2) For the purpose of this exception the term "automatic elevator" shall mean a passenger elevator, a freight elevator, or a combination passenger-freight elevator, the operation of which is controlled by pushbuttons in such a manner that the starting, going to the landing selected, leveling and holding, and the opening and closing of the car and hoistway doors are entirely automatic.

(3) For the purpose of this exception, the term "automatic signal operation elevator" shall mean an elevator which is started in response to the operation of a switch (such as a lever or pushbutton) in the car which when operated by the operator actuates a starting device that automatically closes the car and hoistway doors—from this point on, the movement of the car to the landing selected, leveling and holding when it gets there, and the opening of the car and hoistway doors are entirely automatic.

Signed at Washington, D.C., this 1st day of November 1967.

W. WILLARD WIRTZ,
Secretary of Labor.

[F.R. Doc. 67-13162; Filed, Nov. 6, 1967 8:50 a.m.]

PART 1500—CHILD LABOR REGULATIONS, ORDERS AND STATEMENTS OF INTERPRETATION

Hazardous Occupations in Agriculture; Employment of Children Below Age of 16

On April 19, 1967 there was published in the FEDERAL REGISTER a proposal to amend 29 CFR Part 1500 by finding and declaring certain occupations in agriculture to be particularly hazardous for the employment of children below the age of sixteen (32 F.R. 6144). After consideration of all oral and written matter presented in response to the proposal, 29 CFR Part 1500 is amended in the manner set out below, effective January 1, 1968.

In the table of contents and text of Part 1500, immediately subsequent to § 1500.69 (Reserved) a new Subpart E–1 is established as follows:

Subpart E–1—Occupations in Agriculture Particularly Hazardous for the Employment of Children Below the Age of 16

Sec.
1500.70 General.
1500.71 Interim determinations.

AUTHORITY: The provisions of this Subpart E–1 issued under 29 U.S.C. 213, 218.

Subpart E–1—Occupations in Agriculture Particularly Hazardous for the Employment of Children Below the Age of 16

§ 1500.70 General.

(a) *Higher standards.* Nothing in this subpart shall authorize noncompliance with any Federal or State law, regulation, or municipal ordinance establishing a higher standard. If more than one standard within this subpart applies to a single activity the higher standard shall be applicable.

(b) *Definition.* As used in this subpart, the term "agriculture" shall mean farming in all its branches, including among other things the cultivation and tillage of the soil, dairying, the production, cultivation, growing, and harvesting of any agricultural or horticultural commodities (including commodities defined as agricultural commodities in section 15(g) of the Agricultural Marketing Act, as amended), the raising of livestock, bees, fur-bearing animals, or poultry, and any practices (including any forestry or lumbering operations) performed by a farmer or on a farm as an incident to or in conjunction with such farming operations, including preparation for market, delivery to storage or to market or to carriers for transportation to market.

(c) *Exception.* This subpart shall not prohibit the employment of a child below the age of 16 by his parent or by a person standing in the place of his parent on a farm owned or operated by such parent or person.

(d) *Student-learners.* The findings in this subpart shall not apply to persons employed as vocational agriculture student-learners when all of the following requirements are met: (1) The student-learner is enrolled in a course of study and training in a cooperative vocational education training program in agriculture under a recognized State or local educational authority or in a course of study in a substantially similar program conducted by a private school and; (2) such student-learner is employed under a written agreement which provides: (i) That the work of the student-learner in the occupations declared particularly hazardous shall be incidental to his training; (ii) that such work shall be intermittent and for short periods of time, and under the direct and close supervision of a qualified and experienced person; (iii) that safety instructions shall be given by the school and correlated by the employer with on-the-job training and; (iv) that a schedule of organized and progressive work processes to be performed on the job shall have been prepared. Each such written agreement shall contain the name of the student-learner, and shall be signed by the employer and a person authorized to represent the school. Copies of each agreement shall be kept on file by both the school and the employer. This exemption for the employment of student-learners may be revoked in any individual situation where it is found that reasonable precautions have not been observed for the safety of minors employed thereunder.

(e) *Applications for exclusion.* Any person or organization may at any time file with the Secretary of Labor written application for exclusion from certain findings in this subpart of work pursuant to an educational or training program or portion thereof. Such an application shall identify the program, number of youth enrolled, and provisions of this subpart from which exclusion is sought. It shall describe the program, including the safety training and supervision the minors will receive. It shall be signed and give the title of any person who signs on behalf of an organization.

§ 1500.71 Interim determinations.

(a) *Effective period.* The determinations in this section are made on an interim basis pending a study in greater depth of the occupations in agriculture particularly hazardous for the employment of children below the age of 16. This section shall expire January 1, 1970 unless this paragraph is amended or revoked after further proceedings of the type presently described in Subpart D of this part.

(b) *Finding and declaration of fact.* Subject to § 1500.70 and for the period provided in paragraph (a) of this section, the following occupations in agriculture are particularly hazardous for the employment of children below the age of 16:

(1) Handling or applying anhydrous ammonia, organic arsenic herbicides, organic phosphate pesticides, halogenated hydrocarbon pesticides, or heavy-metal fungicides, including cleaning or decontaminating equipment used in application or mixing of such chemicals.

(2) Handling or using a blasting agent. For the purpose of this subparagraph, the term "blasting agent" shall

include explosives such as, but not limited to, dynamite, black powder, sensitized ammonium nitrate, blasting caps, and primer cord.

(3) Serving as flagman for aircraft.

(4) Working as—

(i) Driver of a truck or automobile on a public road or highway.

(ii) Driver of a bus.

(5) Operating, driving, or riding on a tractor (track or wheel) over 20-belt horsepower, or attaching or detaching an implement or power-take-off unit to or from such tractor while the motor is running.

(6) Operating or riding on a self-unloading bunk feeder wagon, a self-unloading bunk feeder trailer, a self-unloading forage box wagon, a self-unloading forage box trailer, a self-unloading auger wagon, or a self-unloading auger trailer.

(7) Operating or riding on a dump wagon, hoist wagon, fork lift, rotary tiller (except walking type), or power-driven earthmoving equipment or power-driven trenching equipment.

(8) Operating or unclogging a power-driven combine, field baler, hay conditioner, corn picker, forage harvester, or vegetable harvester.

(9) Operating, feeding, or unclogging any of the following machines when power-driven; Stationary baler, thresher, huller, feed grinder, chopper, silo filler, or crop dryer.

(10) Feeding materials into or unclogging a roughage blower or auger conveyor.

(11) Operating a power-driven post-hole digger or power-driven driver.

(12) Operating, adjusting, or cleaning a power-driven saw.

(13) Felling, bucking, skidding, loading, or unloading timber with a butt diameter of more than 6 inches.

(14) Working from a ladder or scaffold at a height over 20 feet.

(15) Working inside a gas-tight type fruit enclosure, gas-tight type grain enclosure or gas-tight type forage enclosure, or inside a silo when a top unloading device is in operating position.

(16) Working in a yard, pen, or stall occupied by a dairy bull, boar, or stud horse.

Signed at Washington, D.C., this 1st day of November 1967.

W. WILLARD WIRTZ,
Secretary of Labor.

[F.R. Doc. 67-13163; Filed, Nov. 6, 1967; 8:51 a.m.]

Title 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 821—OFFICE OF THE POSTMASTER GENERAL AND DEPUTY POSTMASTER GENERAL

PART 822—BUREAUS AND OFFICES

Office of International Postal Affairs and Bureau of Operations

The organizational statement of the Post Office Department is amended as follows:

I. Section 821.6 is reorganized and redesignated as the Office of International Postal Affairs. This office is the Department's focal point for all international affairs relationships.

§ 821.6 Office of International Postal Affairs.

(a) *Director.* (1) Provides expert advice to the Postmaster General/Deputy Postmaster General in making policy decisions affecting international postal affairs.

(2) Participates in and directs representation of the Department in its postal relationships with other countries, with the United Nations, and with international postal organizations.

(3) Participates in, or directs U.S. participation in meetings of international postal organizations or their suborganizational units. Serves as chairman or officer of suborganizational units as required or requested.

(4) Directs development of U.S. policy and position on proposals of other governments submitted to postal congresses; directs preparation of similar U.S. proposals.

(5) Directs the negotiation of postal agreements with other countries.

(6) Gives overall direction to the international exchange program; recommends U.S. postal officials (retired or active) to the Postmaster General/Deputy Postmaster General for assignments in other countries, when such assistance is requested.

(7) Furnishes overall policy guidance to those activities of the Department's Bureaus and Offices concerning training programs for visitors from other countries and in other areas affecting the Department's international postal affairs.

(8) Furnishes overall direction to those phases of the Postal Service Institute which apply to and affect the exchange program and the training of postal officials and students from other countries.

(9) Furnishes overall policy guidance in maintaining liaison with the Department of State, the Agency for International Development and other Federal departments and agencies in matters related to international postal affairs.

(10) Arranges for the designation of International Relations officers (IRO) as vacancies occur by establishing procedures to be followed by Bureaus and Offices in making recommendations. Provides advice to the Postmaster General in designating those officers.

(11) Directs the translation of official documents and other papers relating to the functions of the Office of International Postal Affairs.

(b) *UPU and PUAS Affairs Division.* (1) Furnishes advice and substantive information to the Director, Office of International Postal Affairs upon which the Postmaster General/Deputy Postmaster General can base policy decisions affecting international postal relations.

(2) Coordinates the continuing contact of the Department in its postal relations (except day-to-day operational work involved in such areas as finance, transportation, mailability, classification, insurance, registry, etc.) with other countries, with the United Nations, and with international postal organizations, including the Universal Postal Union (UPU) the Postal Union of the Americas and Spain (PUAS), and their suborganizational units. Coordinates any necessary contacts with international regional postal organizations, such as the African Postal Union (UPAF), the Arab Postal Union (APU), and the African and Malagasy Postal and Telecommunications Union (AMPTU).

(3) Develops and recommends to the Director U.S. policy and position on proposals of other governments submitted to postal congresses; develops and recommends similar U.S. proposals.

(4) Represents the United States and participates in meetings of international postal organizations or their suborganizational units, and serves as chairman or officer of those units as required or requested.

(5) Negotiates postal agreements with other countries.

(6) Coordinates, through Departmental Bureau and Office international relations officers, those activities having to do with the Department's international postal relations as they relate to the UPU and PUAS.

(7) Maintains active liaison with the Department of State and other Federal departments and agencies in matters concerning UPU and PUAS.

(c) *Exchange Program Division.* (1) Furnishes advice and information to the Director, Office of International Postal Affairs upon which the Postmaster General/Deputy Postmaster General can base policy decisions affecting the exchange program.

(2) Develops, coordinates, and directs the international visitor exchange and training program; recommends to the Director, U.S. postal officials (retired or active) for assignments in other countries.

(3) Actively directs and participates in those phases of the Postal Service Institute affecting the exchange program and the training of postal officials and students from other countries.

(4) Maintains active liaison with the Agency for International Development and other Federal agencies on matters concerning the exchange program.

NOTE: The corresponding Postal Manual section is 821.6.

II. In § 822.3 paragraph (e)(3) is revised to show that the Classification and Special Services Division in the Bureau of Operations will assume the responsibility for admissibility, classification, application of rates and fees for international mail, as well as for international insured and registered mail, and related matter.

§ 822.3 Bureau of Operations.

* * * * *

(e) *Office of the Deputy Assistant Postmaster General—Postmasters and patron relations.* * * *

(3) *Classification and Special Services Division.* (i) Recommends policies, prescribes standards, and issues regulations for the management and control of the admissibility, classification, and application of rates and fees for domestic

mail and the disposition of undeliverable mail.

(ii) Makes final departmental determination, subject to appeal and hearing under the Administrative Procedure Act, on sufficiency of applications for—

(a) Entry of newspapers and other periodical publications as second-class matter;

(b) Acceptance into the mail of controlled circulation publications and matter for use by the blind; and

(c) Granting of mailing privileges of news agents.

(iii) Directs the administration of all standards, regulations, and procedures established by the Universal Postal Convention, the Convention and Parcel Post Agreement of the Postal Union of the Americas and Spain, and bilateral agreements, as they affect classification, rates and fees, and related matter concerning the international mail service; recommends proposals for consideration at international postal congresses concerning such standards, regulations and procedures; directs the establishment of procedures relating to customs treatment of international and military mail and admissibility of such mail under controls established by other agencies of the Government.

(iv) Recommends policies and prescribes regulations governing the domestic c.o.d. and certified mail services, and the domestic and international registry and insurance services including filing, processing, and administrative settlement of indemnity claims arising therefrom; the operation of the post office lock box service; and the disposal of dead mail. Maintains controls over the manufacture, distribution and use of postage meter equipment.

(a) *Domestic Mail Classification Branch.* (*1*) Prescribes standards and regulations covering admissibility of matter to the mail, classification, and application of rates; addressing, preparation and packaging, and weight and size limitations for domestic free mail, official Government mail, use of penalty and franking privileges, and acceptance of mail for the Armed Forces.

(2) Prescribes the regulations and procedures for collection of postage by various permit methods, such as postage permit imprints and postage meter stamps, etc.; interprets the laws and regulations pertaining to refunds of postage.

(3) Performs staff work pertaining to the adequacy of applications for entry of newspapers and other periodical publications as second-class matter, acceptance into the mail of controlled circulation publications and matter for use by the blind, granting of mailing privileges to news agents, and authorization of nonprofit organizations to enter second- and bulk third-class matter at reduced postage rates.

(*4*) Administers provisions of law requiring filing and publication of statements of ownership, management, and circulation of second-class publications.

(5) Prescribes standards and regulations governing management and control of mail forwarding and return, disposition of undeliverable matter, exceptional dispatch of publisher's second-class mail, approval of additional mailing places for second-class publications, newspaper handling, mailing list correction, and handling of short-paid and unpaid mail.

(*6*) Administers the annual migratory waterfowl kill survey.

(*7*) Administers the annual alien address report program.

(*8*) Transportation of Radioactive Material and on the Advisory Committee formed by the Surgeon General to advise the Post Office Department regarding toxicity of materials when mailability is concerned.

(b) *International Mail Classification Branch.* (*1*) Administers standard and promulgates regulations applying the provisions of international conventions and agreements as they relate to classification, admissibility, addressing, preparation and packaging, size and weight limits, postage rates and special charges, forms used, recall or change of address, forwarding, and treatment of undeliverable, shortpaid, unpaid, and improperly accepted international mail. Administers regulations and procedures relating to refunds of postage, fees and charges, and to purchase, sale, and exchange of international reply coupons.

(2) Maintains liaison with Bureau of Customs, U.S. Treasury Department, relating to measures for submitting international and military mail for customs treatment; corresponds with postal authorities in other countries and with postal installations in the United States concerning makeup of mail subject to customs treatment, and initiates and administers regulations and procedures for postal service handling of such mail and for collection of duty thereon; maintains liaison with other agencies of the Government relative to application of their international control measures as may be applicable to shipments by mail.

(3) Corresponds with postal authorities in other countries concerning interpretation of provisions of international postal conventions and agreements as they apply to the operating aspects of the international mail service assigned as its responsibility. Informs the International Bureau of the Universal Postal Union and the International Office of the Postal Union of the Americas and Spain about conditions in the U.S. postal service for dissemination to other countries of the world.

(*4*) Develops material for informing the postal service and the public about international postage rates, fees, and other mailing conditions; collaborates with the Bureau of Finance and Administration concerning adjustments in international postage rates and fees and the Bureau of Transportation on any operational matters that might affect international mail transportation.

(c) *Special Mail Services Branch.* (*1*) Prescribes rules for the acceptance and handling of domestic registered, insured, special delivery, certified, c.o.d., and special handling mail, and for the application of the fees and other charges required by law, regulation, or conventions and agreements with other countries. Maintains liaison with other Government agencies and the Federal Reserve Board concerning use of the special mail services.

(2) Administers the laws, conventions and agreements under which postal insurance is paid for the loss or rifling of, or damage to, registered, insured, and c.o.d. mail. Maintains actuarial data and controls.

(3) Prescribes procedures and regulations governing the use of post office lockboxes.

(*4*) Develops and prescribes criteria for the placement in post offices of postage metering and vending equipment for stamps and other accountable stock.

(5) Prescribes standards and maintains controls over the manufacture, distribution and use of all postage meter equipment and the use of meter advertising dies.

(*6*) Administers the law and prescribes regulations for the authorization, use, and disposition of special cancellation dies used to print advertising slogans on postmarked mail.

(*7*) Administers the application of fees for special delivery and special handling mail.

(*8*) Administers the law under which certificates of mailing are issued for ordinary mail of any class, and for duplicate receipts for registered, insured, certified, and c.o.d. mail.

(*9*) Develops and prescribes procedures for the preparation and use of Parcel Post Zone Guides and the standardization of Parcel Post Zone Keys.

(*10*) Prescribes the regulations for treatment of dead mail and management of dead letter and dead parcel post branches.

* * * * *

NOTE: The corresponding Postal Manual section is 822.353.

(5 U.S.C. 301, 39 U.S.C. 501, 505)

TIMOTHY J. MAY,
General Counsel.

NOVEMBER 2, 1967.

[F.R. Doc. 67-13141; Filed, Nov. 6, 1967; 8:49 a.m.]

PART 822—BUREAUS AND OFFICES

Bureau of Transportation

The regulations of the Post Office Department are amended as follows:

I. In Part 822 change the "Bureau of Transportation, and International Services," to read "Bureau of Transportation" wherever it appears.

II. In § 822.4, *Bureau of Transportation and International Services* make the following changes:

Paragraph (f)(2)(viii) is amended to read as set forth below for clarification, paragraph (g)(7) is deleted, and paragraph (g)(6) is revised to read as follows:

§ 822.4 Bureau of Transportation.

* * * * *

(f) *Distribution and routing division.* * * *

(2) *Schemes and routing branch.* * * *

(viii) Develops policies and issues instructions for the handling of registered mail of unusual value, including the routing and protecting in transit.

* * * * *

NOTE: The corresponding Postal Manual section is 822.462h.

(g) *International Services Division.* * * *

(6) Implements international postal agreements relating to transportation of mail and administers regulations resulting therefrom.

(7) [Deleted]

* * * * *

NOTE: The corresponding Postal Manual sections are 822.47f and 822.47g, respectively.

(5 U.S.C. 301, 39 U.S.C 501, 505)

TIMOTHY J. MAY,
General Counsel.

OCTOBER 31, 1967.

[F.R. Doc. 67-13119; Filed, Nov. 6, 1967; 8:47 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4314]

[Nevada 051778]

NEVADA

Revocation of Air Navigation Site Withdrawal No. 213

By virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The departmental order of December 13, 1943, which withdrew the following described public land as Air Navigation Site Withdrawal No. 213, is hereby revoked:

MOUNT DIABLO MERIDIAN

T. 31 N., R. 46 E.,
Sec. 28, S½NW¼NW¼SE¼, N½SW¼NW¼SE¼.

The area described contains 10 acres in Lander County.

The land is located on the east side of northern Reese River Valley, approximately 10 miles southeast of Battle Mountain, Nev.

2. The lands are withdrawn by a departmental order of October 24, 1919, as a part of Stock Driveway Withdrawal No. 101, Nevada No. 26. They will be open to location under the mining laws, subject to the regulations in 43 CFR 3400.3, at 10 a.m. on December 6, 1967.

3. The land has been open to applications and offers under the mineral leasing laws.

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nev.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

OCTOBER 31, 1967.

[F.R. Doc. 67-13112; Filed, Nov. 6, 1967; 8:46 a.m.]

[Public Land Order 4315]

[Nevada 051755]

NEVADA

Revocation of Airmail Beacon Site Withdrawal

By virtue of the authority contained in section 4 of the Act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. Executive Order No. 4702 of August 10, 1927, which withdrew 160 acres in Nevada for an airmail beacon site, is hereby revoked so far as it affects the following described lands:

MOUNT DIABLO MERIDIAN

T. 19 S., R. 63 E.,
Sec. 4, S½SW¼NE¼.

The area described contains 20 acres in Clark County. Public Land Order No. 1630 of May 7, 1958, eliminated 140 acres from the withdrawal.

The land is located south of Apex, Nev. The topography is rough and rocky. Vegetative cover consists of typical desert shrubs.

2. At 10 a.m. on December 6, 1967, the land shall be open to operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on December 6, 1967, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The land has been open to applications and offers under the mineral leasing laws.

Inquiries concerning the land should be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nev.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

OCTOBER 31, 1967.

[F.R. Doc. 67-13143; Filed, Nov. 6, 1967; 8:49 a.m.]

[Public Land Order 4316]

[Idaho 822]

IDAHO

Revocation of Air Navigation Site Withdrawal

By virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), as amended, it is ordered as follows:

1. The departmental order of January 24, 1935, withdrawing the following described land for use by the Department of Commerce in the maintenance of air navigation facilities, is hereby revoked:

BOISE MERIDIAN

T. 48 N., R. 4 E.,
Sec. 22, NW¼SW¼SE¼NE¼, SW¼NW¼SE¼NE¼, SE¼NE¼SW¼NE¼, SE¼SW¼NE¼.

The area described contains 17.50 acres in Shoshone County.

This steeply sloping, rocky, timbered tract lies on the north facing slope of a mountain top 1½ miles north of Wallace, Idaho. The commercial timber is medium to small saw-timber comprised primarily of Douglas Fir, Grand Fir, Western Larch, and Western White Pine, with an understory of native brush, grasses, and forbs. The soils are shallow, rocky, typical of coniferous forest they support.

2. At 10 a.m. on January 31, 1968, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law, and to the rights of the State of Idaho in an airways beacon it maintains upon the lands, with rights of access thereto. All valid applications received at or prior to 10 a.m. on January 31, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

The State of Idaho has waived the preference right of application granted to certain States by R.S. 2276 as amended (43 U.S.C. 852).

3. The lands will be open to location under the U.S. mining laws at 10 a.m. on January 31, 1968. They have been open to applications and offers under the mineral leasing laws.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Boise, Idaho.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

[F.R. Doc. 67-13113; Filed, Nov. 6, 1967; 8:47 a.m.]

[Public Land Order 4317]

[Utah 0146674; 828; 1836]

UTAH

Partial Revocation of Executive Order No. 8652

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8652 of January 28, 1941, which reserved the public lands within described areas in Utah for use of the Department of the Air Force as an aerial bombing and gunnery range,

is hereby revoked so far as it affects the following described areas:

SALT LAKE MERIDIAN

T. 1 S., R. 18 W.,
Secs. 1, 3, 4, 5, 6, 7, 8, and 9.
T. 1 S., R. 19 W.,
Secs. 1, 3, 4, 5, 6, 7, and 8.
T. 2 S., R. 19 W.,
Secs. 3, 10, 13, 14, and 15.

The public lands in the areas described aggregate 11,378 acres, of which the following tracts have been restored by Public Land Order Nos. 4236 of June 22, 1967, and 4266 of September 6, 1967:

T. 1 S., R. 18 W.,
Sec. 7.
T. 1 S., R. 19 W.,
Sec. 12;
Sec. 14, N½;
Sec. 17, SE¼NE¼.

Aggregating 1,577 acres in Toole County.

2. Until 10 a.m. on January 31, 1968, the State of Utah shall have a preferred right of application to select the lands as provided by R.S. 2276 as amended (43 U.S.C. 852). After that time the lands shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on January 31, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. A microwave relay station has been erected by the United States on lands in the southwest corner of the NE¼ of sec. 8, T. 1 S., R. 19 W. The United States also is maintaining obstruction lights on mountain peaks in secs. 17 and 18, T. 1 S., R. 19 W., and has constructed a water pipeline and reservoir over some of the lands for the Wendover Water System Annex. These improvements, together with sufficient land necessary for the maintenance and operation thereof, constitute an appropriation of the land by the United States and bar private appropriation thereof. The tracts, together with access ways, are identified upon the records of the Bureau of Land Management at Salt Lake City, Utah.

4. Secs. 4 to 8, and 17 and 18, T. 1 S., R. 19 W., are rolling desert foothills and mountains, with salt desert shrubs and a light understory of grasses. The rest of the lands are flat, with a high content of salt, and are devoid of vegetative growth.

The lands have been open to applications and offers under the mineral leasing laws.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

OCTOBER 31, 1967.

[F.R. Doc. 67-13114; Filed, Nov. 6, 1967; 8:47 a.m.]

[Public Land Order 4318]
[Montana 2105]

MONTANA

Reservation for Constructed Forest Service Road

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights and to the provisions of existing withdrawals (and except as provided in paragraph 2 hereof), the following described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, nor the disposal of materials under the Act of July 31, 1947 (61 Stat. 681; 30 U.S.C. 601–604), as amended, for use of the Department of Agriculture for the granting of easements for road rights-of-way as authorized by section 2 of the Act of October 13, 1964 (78 Stat. 1089; 16 U.S.C. 532, 533):

PRINCIPAL MERIDIAN
LOLO NATIONAL FOREST
Harvey Creek Road

T. 11 N., R. 14 W.,
Sec. 20, lot 3, SE¼SW¼.

A strip of land 60 feet in width, being 30 feet on each side of the centerline of Harvey Creek Road No. 307 in and through the above subdivisions as shown on a map or plat filed in the Regional Forester's office in Missoula, Mont., and the land office, Bureau of Land Management, Billings, Mont.

T. 11 N., R. 14 W.,
Sec. 20, NW¼SW¼.

A tract of land of variable width in the above subdivision in accordance with the figures and measurements as shown on a map or plat filed in the Regional Forester's office in Missoula, Mont., and the land office, Bureau of Land Management, Billings, Mont.

The areas described aggregate 3.64 acres in Granite County.

2. The jurisdiction of the Secretary of the Interior over the lands shall not otherwise be affected by this order. Entries may be allowed and disposals made of the lands under the public land laws, but any disposal shall be subject to the rights of the United States in the road, and if an easement has been granted for rights-of-way over said road, then subject also to such easement and to the rights of the easement holder, all of which rights shall be reserved in the instrument of conveyance.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

OCTOBER 31, 1967.

[F.R. Doc. 67-13142; Filed, Nov. 6, 1967; 8:49 a.m.]

Title 26—INTERNAL REVENUE

Chapter I—Internal Revenue Service, Department of the Treasury

SUBCHAPTER F—PROCEDURE AND ADMINISTRATION

[T.D. 6933]

PART 301—PROCEDURE AND ADMINISTRATION

Change in Location of Internal Revenue Service Center and Modification of Seal

In order to conform the Regulations on Procedure and Administration (26 CFR Part 301) under section 7514 of the Internal Revenue Code of 1954 to reflect the changes of location of the offices of the Directors, Internal Revenue Service Center, Central Region, and North-Atlantic Region, from Cincinnati, Ohio, and Lawrence, Mass., respectively, to Covington, Ky., and Andover, Mass., respectively, and in order to modify the seals of office for the directors of such internal revenue service centers, such regulations are amended as follows:

Section 301.7514–1 is amended by revising paragraph (a)(5)(ii) to read as follows:

§ 301.7514–1 Seals of office.

(a) *Establishment of seals.* * * *

(5) *Directors of internal revenue service centers.* * * *

(ii) The offices of director of internal revenue service center for which seals are established in subdivision (i) of this subparagraph are as follows:

Director, Internal Revenue Service Center, Central Region, Covington, Ky.
Director, Internal Revenue Service Center, Mid-Atlantic Region, Philadelphia, Pa.
Director, Internal Revenue Service Center, Midwest Region, Kansas City, Mo.
Director, Internal Revenue Service Center, North-Atlantic Region, Andover, Mass.
Director, Internal Revenue Service Center, Southeast Region, Chamblee, Ga.
Director, Internal Revenue Service Center, Southwest Region, Austin, Tex.
Director, Internal Revenue Service Center, Western Region, Ogden, Utah.

Because this Treasury decision constitutes a general statement of policy and establishes rules of Treasury Department practice and procedure, it is found that it is unnecessary to issue this Treasury decision with notice and public procedure thereon under section 553(b) of title 5 of the United States Code, or subject to the effective date limitation of subsection (d) of such section.

(Sec. 7805, Internal Revenue Code of 1954 (68A Stat. 917; 26 U.S.C. 7805))

[SEAL] SHELDON S. COHEN,
Commissioner of Internal Revenue.

Approved: November 2, 1967.

STANLEY S. SURREY,
Assistant Secretary of the Treasury.

[F.R. Doc. 67-13128; Filed, Nov. 6, 1967; 8:48 a.m.]

Title 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission and Department of Transportation

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[Ex Parte No. 253]

PART 103—CARRIER AGREEMENTS RELATING TO RATES, FARES, ETC.

Public Notice of Tariff Publication Proposals

Order. At a general session of the Interstate Commerce Commission, held at its office in Washington, D.C., on the 24th day of October, 1967.

Notice of independent action—regulations governing the giving of public notice of tariff publication proposals by individual carriers where publication is to be effected by a rate conference.

It appearing, that by notice and order of September 21, 1966, published on page 13392 of the FEDERAL REGISTER issue of October 15, 1966, the Commission instituted this proceeding under sections 5a and 12(1) of Part I of the Interstate Commerce Act, to inquire into the operations of conferences, bureaus, committees, and other organizations operating pursuant to approved agreements by this Commission in accordance with the provisions of section 5a, with a view to determining whether it is necessary and desirable to adopt rules and regulations requiring them to establish uniform procedures for giving public notice of proposals initiated as the independent action of a member of such organizations but in which other members are given the opportunity to join;

And it further appearing, that the Commission, on the date hereof, has made and filed its report herein setting forth the basis for its conclusions and findings, which report is hereby referred to and made a part hereof; therefore:

It is ordered, That Part 103 of Chapter I, Subtitle B, of Title 49 of the Code of Federal Regulations be amended by adding a new § 103.5, reading as follows:

§ 103.5 Public notice.

When independent action is announced and tariff publication is to be made by a publishing agent operating pursuant to an agreement under section 5a of the Interstate Commerce Act, notification thereof will be given by the agent to the same extent and in the same manner that the agent gives notice of actions proposed under procedures for collective consideration of the parties to the agreement; and no other joint or collective procedures under the agreement are thereby invoked.

(Sec. 12, 24 Stat. 383, as amended; 49 U.S.C. 12. Interpret or apply sec. 1, 62 Stat. 472; 49 U.S.C. 5b)

It is further ordered, That this addition will become effective on November 15, 1967.

And it is further ordered, That notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D.C., and by filing with the Director, Office of the Federal Register.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-13146; Filed, Nov. 6, 1967; 8:49 a.m.]

[No. 34861]

PART 114—ELECTRIC RAILWAYS; UNIFORM SYSTEM OF ACCOUNTS

Miscellaneous Amendments

Order. At a session of the Interstate Commerce Commission, Division 2, held at its office in Washington, D.C., on the 20th day of October 1967.

On August 19, 1967, notice of proposed rule making regarding proposed amendments of the Uniform System of Accounts for Electric Railways, pertaining to the accounting treatment of extraordinary and prior period items in the determination of net income, was published in the FEDERAL REGISTER (32 F.R. 12008). After consideration of all such relevant matter as was submitted by interested persons, the amendments as so proposed are hereby adopted.

It is ordered, That the amendments to Part 114 as proposed are adopted subject to the following changes:

1. In the last sentence of paragraph (a), instruction 114.01–6, the words "ordinary income accounts" are changed to read "ordinary income are to be entered directly in the income accounts".

2. In the first sentence of § 114.01–8, the words "value of the carrier" are changed to read "value to the carrier".

It is further ordered, That these amendments are effective January 1, 1967.

And it is further ordered, That service of this order shall be made on all Electric Railways which are affected hereby and notice thereto shall be given the general public by depositing a copy of this order in the Office of the Secretary of the Commission at Washington, D.C., and by filing the order with the Director, Office of the Federal Register.

(Secs. 12, 20, 24 Stat. 383, 386, as amended; 49 U.S.C. 12, 20)

By the Commission, Division 2.

[SEAL] H. NEIL GARSON, *Secretary.*

I. The Table of Contents is amended as follows:

(a)

	CHANGE	
	From	*To*
114.01–6	Delayed items.	114.01–6 Extraordinary and prior period items.
114.02–3	Delayed items.	114.02–3 Extraordinary and prior period items.
114.03–2	Delayed items.	114.03–2 Extraordinary and prior period items.
114.306	Miscellaneous credits.	114.306 Other credits to earned surplus.
114.317	Miscellaneous debits.	114.317 Other debits to earned surplus.

(b) The following lines are deleted:

114.51–2	Retirements; power.
114.212–1	Delayed income credits.
114.226	Income applied to sinking and other reserve funds.
114.227	Income appropriated for investment in physical property.
114.228	Miscellaneous appropriations of income.
114.229	Delayed income debits.
114.312	Stock discount extinguished through surplus.
114.419	Retirements.

(c) After Income Accounts add:

ORDINARY ITEMS

(d) The following lines are added after § 114.225:

EXTRAORDINARY AND PRIOR PERIOD ITEMS

114.270	Extraordinary items (net).
114.280	Prior period items (net).
114.290	Income taxes on extraordinary and prior period items.

II. Operating expenses; instructions and Accounts Amended:

Item No. 1. Section 114.01–6 is revised to read as follows:

§ 114.01–6 Extraordinary and prior period items.

(a) All items of profit and loss recognized during the year are includible in ordinary income except nonrecurring items which in the aggregate for the same class are both material in relation to operating revenues and ordinary income, and are clearly not identified with or do not result from the usual business operations for the year. Important items of the kind which occur from time to time and which, when material in amount, are to be excluded from ordinary income are those resulting from unusual sales of property and investment securities other than temporary cash investments, from company bonds, reacquired, from change in the application of accounting principles, and from prior period items (other than ordinary adjustments of a recurring nature). Material items are those which, unless excluded from ordinary income, would distort the accounts and impair the significance of ordinary income for the year. Items so excludible from ordinary income are to be entered directly in the income accounts provided for extraordinary and prior period items upon approval of the Commission.

(b) Adjustments, constituting items of a character typical of customary business activities or representing corrections or refinements resulting from the natural use of estimates inherent in the accounting process, shall not be considered extraordinary or prior period items regardless of amount.

(c) In determining materiality, items of a similar nature should be considered in the aggregate; dissimilar items should be considered individually. As a general standard, an item to qualify for inclusion as an extraordinary or prior period item shall exceed one percent of total operating revenues and ten percent of ordinary income for the year.

(d) Ordinary delayed items and adjustments arising during the current year which are applicable to or related to transactions of prior years shall be included in the same accounts which would

have been charged or credited if the item had been taken up or adjusted in the period to which it pertained. Ordinary delayed items excludes items of the character described in paragraph (a).

Item No. 2. The first sentence of § 114.01–8 *Salvage and value of material removed,* is revised to read as follows: "As used in this system of accounts, the terms 'salvage' and 'value of material removed' include the value to the carrier (not to exceed cost, estimated if not known), recovered or removed in the process of repairing, renewing, replacing or abandoning roadway, structures, and equipment."

Item No. 3. The last sentence of § 114.01–9, "Insurance recovered" is deleted.

Item No. 4. Section 114.01–10 *Property retired,* is amended by revising the first sentence of the second paragraph as follows: "When the amount chargeable to operating expenses in connection with the retirement of nondepreciable property is so material that its inclusion would distort the ordinary income for the year, the service value shall be recorded in account 270, 'Extraordinary items', when authorized by the Commission. See instruction 1–6."

Item No. 5. The last sentence of the second paragraph of § 114.01–14 *Depreciation,* is revised as follows: "The carrier may request, or the Commission may direct, that special accounting be applied in situations causing undue inflation or deflation of depreciation reserves, such as premature or unusual retirements or sales of depreciable property, or related insurance recoveries. A carrier's request for special accounting shall contain full particulars concerning the situation, including the basis for its proposal. Alternative accounting techniques shall be applied to the extent approved or directed by the Commission."

Item No. 6. Section 114.28–2 *Retirements; way and structures,* is revised to read as follows:

§ 114.28–2 Retirements; way and structures.

(a) This account shall include the service value of nondepreciable way and structure retired and not replaced, the ledger value of which is credited to account 401, "Road and equipment". It shall also include the service value of nondepreciable property which the carrier has been authorized by the Commission to charge to operating expenses in anticipation of its ultimate retirement from service.

(b) When the amounts referred to in paragraph (a) of this account are sufficiently large to constitute an extraordinary item, pursuant to section 114.01–6, they shall be credited to account 270, "Extraordinary items".

Item No. 7. Section 114.51–2 *Retirements; power,* is deleted.

Item No. 8. Section 114.0–7 *Accounts for small carriers, Class II,* is amended by deleting line 51–2, "Retirements—Power."

Item No. 9. Section 114.0–8 *Accounts for small carriers, Class III,* is amended by deleting line 51–2, "Retirements—Power."

III. Operating revenues; instructions amended:

Item No. 1. Section 114.02–3 is revised as follows:

§ 114.02–3 Extraordinary and prior period items.

See § 114.01–6 *Extraordinary and prior period items.*

IV. Income instructions and accounts amended:

Item No. 1. Section 114.03–2 is revised as follows:

§ 114.03–2 Extraordinary and prior period items.

See § 114.01–6 *Extraordinary and prior period items.*

Item No. 2. The last sentence of § 114.03–4 *Income from sinking and reserve funds,* is deleted.

Item No. 3. Section 114.03–6 *Form of income statement,* is amended as follows:

(a) Add the caption "Ordinary Items" above "Operating Income".

(b) Delete line 212–1, "Delayed income credits" and line 229, "Delayed income debits".

(c) Delete all lines between "Total deductions from gross income", and "Income Accounts" and add the following line items:

ORDINARY INCOME

EXTRAORDINARY AND PRIOR PERIOD ITEMS

270 Extraordinary items (net)
280 Prior period items (net)
290 Income taxes on extraordinary and prior period items.
Total extraordinary and prior period items.
Net income (or loss).

Item No. 4. Above § 114.201 *Railway operating revenues,* add center caption "Ordinary Items" between "Income Accounts" and "Credit".

Item No. 5. Section 114.212 *Miscellaneous income,* is amended by adding the following: Among the items which shall be included in this account are:

Profits from sale or transfer of land.
Profits from sale of investment securities.
Profits for sale or retirement of property assignable to account 404, "Miscellaneous physical property".
Unreleased premiums on funded debt securities reacquired before maturity.
Cancellation of balance sheet accounts representing unclaimed wages and vouchered accounts written off because of inability to locate creditors.
Credit from adjustments to bring funded debt securities issued or assumed to par when reacquired at less than par.
Collection of old accounts previously written off to profit and loss.

When the profits or adjustments resulting from any of the first four items are of an amount sufficiently large to constitute extraordinary items, pursuant to instruction 1–6, such profit or proceeds shall be credited to account 270, "Extraordinary Items."

Item No. 6. Section 114.212–1 *Delayed income credits,* is deleted.

Item No. 7. The first paragraph of § 114.215 *Taxes assignable to transportation operations,* is designated paragraph (a) and the next two paragraphs are revised to read as follows:

* * * * *

(b) The taxes on leased property shall be included in this account by the carrier obligated to assume such expenses under the terms of the lease.

(c) Monthly accruals of income taxes applicable to ordinary income shall be included in this account. See texts of account 290, "Income taxes on extraordinary and prior period items", account 306, "Other credits to earned surplus", and account 317, "Other debits to earned surplus", for recording other income tax consequences.

(d) Details pertaining to the income tax consequences of other unusual and significant items, and also cases where tax consequences are disproportionate to related amounts included in income accounts, shall be submitted to the Commission for consideration and decision as to proper accounting.

(e) Income taxes which are refundable or reduced as the result of carryback or carry-forward of operating loss shall be credited to this account, if a carry-back, in the year in which the loss occurs, or if a carry-forward, in the year in which such loss is applied to reduce taxes. However, when the amount constitutes an extraordinary item, pursuant to section 114.01–6, it shall be included in account 280, "Prior period items".

Item No. 8. Section 114.225 *Miscellaneous debits,* is amended by adding the following: "Among other items which shall be included in this account are:

Losses from sale or transfer of land.
Losses from sale of investment securities.
Losses from sale or retirement of property assignable to account 404, "Miscellaneous physical property".
Unextinguished discount on funded debt securities reacquired before maturity.
Debits from adjustments to bring funded debt securities issued or assumed to par when reacquired at less than par.
Payment of old accounts previously written off to profit and loss.

When the profits or adjustments resulting from any of the first four tabulated items are of an amount sufficiently large to constitute extraordinary items, pursuant to instruction 1–6, such profits or proceeds shall be credited to account 270, "Extraordinary items"."

Item No. 9. Sections 114.226 to 114.229 are deleted.

Item No. 10. The system of accounts following § 114.225 is amended by adding the following:

EXTRAORDINARY AND PRIOR PERIOD ITEMS

§ 114.270 Extraordinary items (net).

(a) This account shall include extraordinary items accounted for during the current accounting year in accordance with § 114.01–6, upon approval of the Commission. Among the items which shall be included in this account are:

Net gain or loss on sale of land used for transportation purposes and of noncarrier property.

Net gain or loss on sale of securities acquired for investment purposes, and charges to write down the ledger value of such securities because of impairment of value.

Net gain or loss on reacquisition of company bonds.

Loss on retirement of transportation property because of abandonment or other cause for which depreciation reserve has not been provided.

Changes in application of accounting principles.

(b) Income tax consequences of charges and credits to this account shall be included in account 290, "Income taxes on extraordinary and prior period items".

(c) This account shall be maintained in a manner sufficient to identify the nature and gross amount of each debit and credit.

§ 114.280 Prior period items (net).

(a) This account shall include unusual delayed items accounted for during the current accounting year in accordance with the text of § 114.01–6, upon approval of the Commission. Among the items which shall be included in this account are:

Unusual adjustments, refunds or assessments of income taxes of prior years.

Unusual adjustments of reserves of prior years determined to be excessive or deficient.

Similar items representing transactions of prior years which are not identifiable with or do not result from business operations of the current year.

(b) Income tax consequences of charges and credits to this account shall be included in account 290, "Income taxes on extraordinary and prior period items".

(c) This account shall be maintained in a manner sufficient to identify the nature and gross amount of each debit and credit.

§ 114.290 Income taxes on extraordinary and prior period items.

This account shall include the estimated income tax consequences (debit or credit) assignable to the aggregate of items of both taxable income and deductions from taxable income which, for accounting purposes, are classified as unusual and extraordinary and are includible in account 270, "Extraordinary items", or 280 "Prior period items", as appropriate.

V. Earned surplus instructions and accounts amended:

Item No. 1. Section 114.306 *Miscellaneous credits,* is revised to read as follows:

§ 114.306 Other credits to earned surplus.

(a) This account shall include other credit adjustments, net of assigned income taxes, not provided for elsewhere in this system but only after such inclusion has been authorized by the Commission.

(b) The records supporting entries in this account shall be so maintained that an analysis thereof may be readily made available.

Item No. 2. Section 114.312 *Stock discount extinguished through surplus,* is deleted.

Item No. 3. Section 114.317 *Miscellaneous debits,* is revised to read as follows:

§ 114.317 Other debits to earned surplus.

(a) This account shall include (1) losses on resale of reacquired capital stock, (2) charges which reduce or write off discount on capital stock issued by the company, and (3) in pooling of equity interests situations, the excess of the value of the surviving company's capital stock over the aggregate total of the capital stock of the separate companies before such merger or consolidation, but only to the extent that capital surplus is not available for such purposes. (See § 114.05–2.)

(b) This account shall include other debit adjustments, net of assigned income taxes, not provided for elsewhere in this system, but only after such inclusion has been authorized by the Commission.

(c) The records supporting entries in this account shall be so maintained that an analysis thereof may be readily made available.

VI. General balance sheet instructions and accounts amended:

Item No 1. The first sentence of the second paragraph of § 114.05–2 *Discount and premium on capital stock,* is revised to read as follows: "Entries in these accounts representing discounts shall be carried therein until offset (a) by premiums realized on subsequent sales of the same class of stock, (b) by assessments levied on the stockholders, (c) by charges to account 448, 'Unearned surplus', to the extent of the credit balance carried therein, (d) by charges to account 317, 'Other debits to earned surplus'; or discount may be retained in account 423–1, 'Discount on capital stock', until the stock to which the discount applies is reacquired or retired."

Item No. 2. The last sentence of the fourth paragraph of § 114.05–2 *Discount and premium on capital stock,* is revised to read as follows: "*Provided, however,* That the excess of a debit over the balance carried in unearned surplus shall be charged to account 317, 'Other debits to earned surplus'."

* * * * *

Item No. 3. The fourth paragraph of § 114.05–3 is revised to read as follows:

Except as provided in this section, the balance in each of the discount, expense, and premium accounts shall be carried therein until the reacquirements of the securities to which they relate, at which time the proportion (based on the ratio of the amount of funded debt reacquired to the actual outstanding before reacquirement) of discount, expense, and premium for the class of funded debt reacquired shall be cleared to account 212, "Miscellaneous income", account 225, "Miscellaneous debits", or to account 270, "Extraordinary items", as appropriate, in accordance with the text of these accounts.

Item No. 4. Section 114.05–7 *Form of general balance sheet statements,* is amended by deleting line 419, "Retirements".

Item No. 5. The note to § 114.401–3 *Reserve for depreciation—Road and equipment,* is deleted and the following paragraph is added:

A carrier may request, or the Commission may direct, that special accounting be applied in situations causing undue inflation or deflation of depreciation reserves, such as premature or unusual retirements or sales of depreciable property, or related insurance recoveries. A carrier's request for special accounting shall contain full particulars concerning the situation, including the basis for its proposal. Alternative accounting techniques shall be applied to the extent approved or directed by the Commission.

Item No. 6. The second paragraph of § 114.406–1 is revised to read as follows: "When such investments are written down, written off, sold, or otherwise disposed of at a loss, the losses sustained shall be charged to this account to the extent of the total credit balance in the account and the remainder, if any, shall be charged to account 225, 'Miscellaneous debits', or account 270, 'Extraordinary items', as appropriate."

Item No. 7. The second paragraph of § 114.418 *Discount on funded debt,* is revised to read as follows:

* * * * *

When an issue of funded debt, or any part thereof, is canceled and at the date of cancellation there is a balance of unamortized discount and expense relating thereto, the amount of such balance, together with any premium paid in retiring the debt, shall be charged to account 225, "Miscellaneous debits", or account 270, "Extraordinary items", as appropriate.

Item No. 8. Section 114.419 *Retirements,* is deleted.

Item No. 9. NOTE D of § 114.423 *Capital stock,* is revised to read as follows:

* * * * *

NOTE D: When par value capital stock is exchanged for capital stock without par value, any sums resting in discount, expense, and premium accounts with respect thereto shall be charged to account 448–1, "Paid-in surplus": *Provided,* That any debit in excess of the credit balance carried in that account shall be included in account 317, "Other debits to earned surplus".

Item No. 10. The second paragraph of § 114.440 *Premium on funded debt,* is revised to read as follows:

* * * * *

When an issue of funded debt or any part thereof is cancelled and at the date of cancellation there is a balance of unamortized premium relating thereto, the amount of such balance shall be credited to account 212, "Miscellaneous income",

or account 270, "Extraordinary items", as appropriate.

VII. Road and equipment instructions and accounts amended:

Item No. 1. The first paragraph of § 114.06–7 *Land sold or reclassed*, is revised to read as follows:

If any land the cost of which has been included in these accounts is sold, the appropriate account shall be credited with the amount at which such property stands charged therein at the time of the disposal, and the difference between the amount thus credited and the amount received from the sale or disposal of the property shall be included in account 212, "Miscellaneous income", account 225, "Miscellaneous debits", or account 270, "Extraordinary items", pursuant to § 114.01–6, as appropriate.

* * * * *

Item No. 2. The last sentence of Note B of § 114.50 *Engineering*, is amended to read as follows:

* * * * *

NOTE B: * * * If the project is continued, expenditures for all surveys in connection therewith shall then be transferred to this account, and, if abandoned, to appropriate income accounts.

[F.R. Doc. 67–13147; Filed, Nov. 6, 1967; 8:49 a.m.]

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 907]

NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

Notice of Proposed Amendment of Rules and Regulations

Notice is hereby given that the Department is considering proposed amendments, as hereinafter set forth, to the rules and regulations (7 CFR 907.100 et seq.; Subpart—Rules and Regulations) of the Navel Orange Administrative Committee, currently in effect pursuant to the applicable provisions of the marketing agreement, as amended, and Order No. 907, as amended (7 CFR Part 907), regulating the handling of Navel oranges grown in Arizona and designated part of California. This is a regulatory program effective under the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674).

Consideration is also being given to making any amendments resulting from this notice effective on November 17, 1967, the time when the handling of the current crop of Navel oranges is expected to begin. The committee proposed that these changes be made prior to or at the time shipments start so that the records for the entire crop will reflect the new proposed weekly period.

The amendment of said rules and regulations was proposed by the Navel Orange Administrative Committee, established under the said marketing agreement and order as the agency to administer the terms and provisions thereof. The proposed amendments would (1) define the term week or weekly regulation period to mean the period from Friday through Thursday, and (2) make changes in the rules and regulations to make such rules and regulations in conformance with the new weekly period.

The proposed amendments are as follows:

1. Add a new paragraph (f) to § 907.100 *Definitions* reading as follows:

§ 907.100 Definitions.

* * * * *

(f) Whenever the term week or weekly appears in this Part 907, it shall mean the period from Friday through Thursday.

2. Amend § 907.111(d) to read as follows:

§ 907.111 Allotment loans.

* * * * *

(d) *Confirmation.* All allotment loans made on Saturday shall be confirmed as required by § 907.57 but not later than 5 p.m. on the following Monday.

§ 907.113 [Amended]

3. Delete the word "Monday" whenever it appears in § 907.113(b) and substitute in lieu thereof the word "Friday."

§ 907.120 [Amended]

4. Delete the word "Friday" whenever it appears in § 907.120(a) and substitute in lieu thereof the word "Wednesday."

§ 907.140 [Amended]

5. Delete the word "Monday" whenever it appears in § 907.140 and substitute in lieu thereof the word "Friday."

6. Amend § 907.142 (32 F.R. 7839) by designating the present provisions as paragraph (a) and adding thereto a new paragraph (b) reading as follows:

§ 907.142 Other reports.

* * * * *

(b) Each handler, upon request, shall furnish on NOAC Form No. 29, Inventory Report of Oranges Controlled, the date of inventory, variety, field boxes picked to date, estimated number of field boxes to be picked, field boxes in the house, rail cars and trucks loaded for Friday shipment in cartons, cartons in storage, cartons on the floor, loose fruit on hand converted to cartons, products fruit on hand converted to cartons, including date when he plans to complete picking. Such report shall be signed by the handler or by his authorized representative.

All persons who desire to submit written data, views, or arguments for consideration in connection with the proposed amendment shall file the same, in quadruplicate, with the Hearing Clerk, U.S. Department of Agriculture, Room 112, Administration Building, Washington, D.C. 20250, not later than November 11, 1967. All written submissions made pursuant to this notice will be made available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

Dated: November 1, 1967.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 67-13140; Filed, Nov. 6, 1967; 8:49 a.m.]

[7 CFR Part 989]

RAISINS PRODUCED FROM GRAPES GROWN IN CALIFORNIA

Proposed Modification of Free and Reserve Percentages Applicable to Natural Thompson Seedless Raisins for 1967–68 Crop Year

Notice is hereby given of a proposal to modify the preliminary free tonnage percentage and the preliminary reserve tonnage percentage applicable to standard natural (sun-dried) Thompson Seedless raisins acquired by handlers during the 1967–68 crop year (§ 989.225; 32 F.R. 14272). The modification would increase, from 60 percent to 80 percent, the preliminary free tonnage percentage and decrease, from 40 percent to 20 percent, the preliminary reserve tonnage percentage. The preliminary free tonnage and reserve tonnage percentages were designated, and the modification would be, pursuant to § 989.55 of the marketing agreement, as amended, and Order No. 989, as amended (7 CFR Part 989; 32 F.R. 12157, 12555, 12710), regulating the handling of raisins produced from grapes grown in California. The amending marketing agreement and order are effective under the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674).

Section 989.222 (32 F.R. 14272) fixes 142,500 tons as the desirable free tonnage for natural Thompson Seedless raisins. The present preliminary free tonnage percentage of 60 percent was intended to release, based on the then estimated 1967 production of 155,000 tons of such varietal type, approximately 65 percent of the desirable free tonnage. Initial release of less than the desirable free tonnage is intended to prevent excessive supplies of free tonnage in the early part of the crop year from depressing field prices. A final free tonnage percentage which will tend to release the full desirable free tonnage of 142,500 tons is to be recommended by the Raisin Administrative Committee no later than February 15, 1968. Meanwhile, this program permits interim percentage changes before February 15 to release less than the full 142,500 tons.

Field prices to raisin producers now appear to be firmly established. The Committee has recommended, pursuant to § 989.54(b), an interim increase in the preliminary free tonnage percentage. The increase would permit handlers to use more of their raisin acquisitions as free tonnage and would permit earlier payment to producers on the additional free tonnage.

The California Crop and Livestock Reporting Service recently revised its estimate of the 1967 production of natural Thompson Seedless raisins from 155,000 tons to 164,000 tons. However, industry sources indicate that, mainly due to crop damage, the quantity of standard raisins of this varietal type will be closer to 155,000 tons than to 164,000 tons. Based on this information, designation of the preliminary free tonnage at 80 percent and the preliminary reserve percentage at 20 percent, as proposed, would release somewhat less than 90 percent of the desirable free tonnage of 142,500 tons.

All persons who desire to submit written data, views, or arguments in connection with the aforesaid proposal should file the same, in quadruplicate, with the Hearing Clerk, U.S. Department of Agriculture, Room 112, Administration Building, Washington, D.C. 20250, not later than the eighth day after publication of this notice in the FEDERAL REGISTER. All written submissions made pursuant to this notice will be made available for public inspection during regular business hours (7 CFR 1.27(b)).

The proposal is to revise § 989.225 to read as follows:

§ 989.225 **Free and reserve percentages for the 1967–68 crop year.**

The preliminary percentages of standard (sun-dried) Thompson Seedless raisins acquired by handlers during the crop year beginning September 1, 1967, which shall be free tonnage and reserve tonnage, respectively, are designated as follows: Preliminary free tonnage percentage, 80 percent; and preliminary reserve tonnage percentage, 20 percent.

Dated: November 1, 1967.

FLOYD F. HEDLUND,
Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 67-13139; Filed, Nov. 6, 1967; 8:49 a.m.]

[7 CFR Part 1049]

[Docket No. AO 319-A10]

MILK IN INDIANAPOLIS, IND., MARKETING AREA

Notice of Recommended Decision and Opportunity To File Written Exceptions on Proposed Amendments to Tentative Marketing Agreement and to Order

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), and the applicable rules of practice and procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of this recommended decision with respect to proposed amendments to the tentative marketing agreement and order regulating the handling of milk in the Indianapolis, Ind., marketing area.

Interested parties may file written exceptions to this decision with the Hearing Clerk, U.S. Department of Agriculture, Washington, D.C. 20250, by the third day after publication of this decision in the FEDERAL REGISTER. The exceptions should be filed in quadruplicate. All written submissions made pursuant to this notice will be made available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

Preliminary statement. The hearing on the record of which the proposed amendment, as hereinafter set forth, to the tentative marketing agreement and to the order as amended, was formulated, was conducted at Indianapolis, Ind., on October 5, 1967, pursuant to notice thereof issued September 19, 1967 (32 F.R. 13418).

The material issue on the record of the hearing relates to the elimination of location differentials for plants in Ohio.

Findings and conclusions. The following findings and conclusions on the material issue are based on evidence presented at the hearing and the record thereof:

The location of differential provisions should be revised to eliminate minus location adjustments on milk received at plants located in Ohio.

Under the present order, minus location adjustments apply at plants located 70 miles or more in any direction from Monument Circle in Indianapolis. Class I prices and blend (uniform) prices to producers are reduced 10 cents if the plant is 70 miles but less than 80 miles from Indianapolis, plus 1.5 cents for each additional 10 miles or fraction thereof.

Three producer associations, representing about 75 percent of the producers delivering to the market, joined in support of a proposal to eliminate the location differential for any plant located in the State of Ohio. The representative of the cooperatives testified that the higher prices to producers prevailing in Ohio markets causes price misalignment at a distributing plant at Greenville, Ohio, regulated by the Indianapolis order. Such plant presently has a minus location adjustment of 13 cents applicable because of its location in the 90–100-mile zone from Indianapolis. The cooperative operating the plant stated that the relatively low price level at this location has necessitated the payment of "premiums" to its producers over the Indianapolis minimum blend price for the zone to raise the plant's price to about the level of the Miami Valley, Ohio, market (formerly Dayton-Springfield market).

The Indianapolis marketing area includes 34 central Indiana counties, in an area extending from the Ohio-Indiana State line to the Indiana-Illinois boundary. Although the main concentration of Indianapolis regulated plants is in Indianapolis, several are located in 12 widely scattered cities from Greenville, Ohio, to Brazil, Ind., near the Illinois boundary.

The production area for Indianapolis order plants other than Greenville is either within the marketing area or primarily west and north of the marketing area. Such handlers generally draw supplies from more than 60 of the 92 counties in the State of Indiana, five counties in Illinois and about 12 counties in Wisconsin. This is an area where Class I prices and uniform prices tend to be less than in the Ohio markets. There are no location adjustments applicable at any of these plants other than Greenville.

In contrast, Greenville is located in Darke County, Ohio, an area where dairy farmers deliver to plants regulated by the Northwestern Ohio, Miami Valley, Ohio, Columbus, Ohio, and Greater Cincinnati markets, as well as to the Greenville plant. In December 1966, 85 percent of the farms of the 261 producers supplying the Greenville plant were located in the four Ohio counties of Darke, Mercer, Miami, and Shelby. The remaining 39 producers supplying the plant were from two nearby Indiana counties, Jay and Wayne. All such producer farms are located less than 50 miles from Greenville.

This distributing plant is the only one presently under the regulation which would be affected by the proposal although potentially other plants in Ohio might be in similar position. Most of the milk handled by the Greenville plant (over 86 percent in 1966) is used for fluid milk products. It packages milk for sale through outlets in both Indiana and Ohio. At the present time, over 70 percent of the fluid milk products at such plant is distributed within the Indianapolis marketing area, 15 percent in the Miami Valley, Ohio, Federal order market and the remainder in unregulated areas in Ohio.

Class I prices under the Ohio Federal orders generally have exceeded those under the Indianapolis order. For example, in 1966 the nearby Miami Valley, Ohio, order Class I price ($5.32) averaged 9 cents over the Indianapolis "base zone"[1] Class I price ($5.23). Class I prices in 1966 for all other Ohio orders also exceeded the Indianapolis Class I price.

When compared to the price at Greenville the difference is greater. For example, the Miami Valley, Ohio, Class I price for 1966 averaged 22 cents higher than the Indianapolis Class I price for the Greenville location. The Class I price at this location tends to run counter to prices in the Ohio markets east and southeast of Indianapolis since the latter increase gradually with distance from the heavy milk production areas of northern Indiana and Wisconsin.

A closer Class I price alignment with the Ohio markets is desirable. This is because of the competition for Class I sales between the Greenville plant and Miami Valley market plants both inside and outside the Miami Valley marketing area. As previously stated, Class I prices under the Miami Valley order for 1966 averaged 22 cents more than the Indianapolis Class I price at Greenville even though the Greenville plant is only 37 miles from Dayton. Only 9 cents difference will prevail under the provision adopted.

Within this area of Ohio milk can move directly from farms either to the Greenville distributing plant or to plants regulated by other Ohio Federal orders. Since quite comparable farm-to-plant hauling rates prevail for producers delivering to either the Greenville plant or such other plants, minus location adjustments for Ohio locations do not provide appropriate location values under the Indianapolis order for milk delivered to such locations. In 1966 the blend price for the Miami Valley order ($4.97) averaged 21 cents over the Indianapolis zone

[1] The area in which no location adjustments apply to plants—within 70 miles of Monument Circle, Indianapolis.

price at Greenville ($4.76). The average blend prices in 1966 for most other Ohio orders likewise exceeded the Indianapolis blend price.

The change herein adopted will not eliminate all differences in either Class I or blend prices between the Indianapolis order and the several nearby Ohio orders. However, such differences computed at the Greenville location will be reduced by 13 cents and will substantially improve price alignment among competing plants.

No opposition to the proposed amendment was presented. The proposal should be adopted.

Rulings on proposed findings and conclusions. A brief with proposed findings and conclusions was filed on behalf of certain interested parties. This brief, proposed findings and conclusions and the evidence in the record were considered in making the findings and conclusions set forth above. To the extent that the suggested findings and conclusions filed by interested parties are inconsistent with the findings and conclusions set forth herein, the requests to make such findings or reach such conclusions are denied for the reasons previously stated in this decision.

General findings. The findings and determinations hereinafter set forth are supplementary and in addition to the findings and determinations previously made in connection with the issuance of the aforesaid order and of the previously issued amendments thereto; and all of said previous findings and determinations are hereby ratified and affirmed, except insofar as such findings and determinations may be in conflict with the findings and determinations set forth herein.

(a) The tentative marketing agreement and the order, as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the Act;

(b) The parity prices of milk as determined pursuant to section 2 of the Act are not reasonable in view of the price of feeds, available supplies of feeds, and other economic conditions which affect market supply and demand for milk in the marketing area, and the minimum prices specified in the proposed marketing agreement and the order, as hereby proposed to be amended, are such prices as will reflect the aforesaid factors, insure a sufficient quantity of pure and wholesome milk, and be in the public interest; and

(c) The tentative marketing agreement and the order, as hereby proposed to be amended, will regulate the handling of milk in the same manner as, and will be applicable only to persons in the respective classes of industrial and commercial activity specified in, a marketing agreement upon which a hearing has been held.

Recommended marketing agreement and order amending the order. The following order amending the order as amended regulating the handling of milk in the Indianapolis, Ind., marketing area is recommended as the detailed and appropriate means by which the foregoing conclusions may be carried out. The recommended marketing agreement is not included in this decision because the regulatory provisions thereof would be the same as those contained in the order, as hereby proposed to be amended:

Section 1049.53(a) is revised to read as follows:

§ 1049.53 Location differentials to handlers.

(a) For producer milk which is received at a pool plant located outside the State of Ohio and 70 miles or more from Monument Circle in Indianapolis, Ind., by the shortest hard-surfaced highway distance as determined by the market administrator and which milk is classified as Class I milk or assigned Class I location adjustment credit pursuant to paragraph (b) of this section, and for other source milk for which a location adjustment credit is applicable, the price specified in § 1049.51(a) shall be reduced at a rate set forth in the following schedule.

	Rate per hundredweight (cents)
Distance (miles):	
70 but less than 80	10.0
For each additional 10 miles or fraction thereof	1.5

* * * * *

Signed at Washington, D.C., on November 2, 1967.

JOHN C. BLUM,
Deputy Administrator, Regulatory Programs.

[F.R. Doc. 67-13158; Filed, Nov. 6, 1967; 8:50 a.m.]

[7 CFR Part 1064]

MILK IN GREATER KANSAS CITY MARKETING AREA

Notice of Proposed Suspension of Certain Provisions of Order

Notice is hereby given that, pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601 et seq.), the suspension of certain provisions of the order regulating the handling of milk in the Greater Kansas City marketing area is being considered for a temporary period.

The provisions proposed to be suspended are related to the supply-demand adjustment to the Class I price.

This proposed suspension would temporarily suspend the supply-demand adjustor pending a public hearing on proposals to revise the presently effective provisions.

The specific provisions proposed to be suspended are:

(1) In § 1064.51(a), in the language preceding subparagraph (1), the words "and plus or minus a supply-demand adjustment of not more than 45 cents, computed as follows:"; and

(2) In § 1064.51(a), subparagraphs (1), and (2), and (3).

This action was requested by seven cooperative associations representing in excess of two-thirds of the producers supplying milk to the Greater Kansas City market. These associations contend that this suspension action is necessary to maintain orderly marketing conditions pending a public hearing to consider a proposal to revise the supply-demand adjustor.

The supply-demand adjustment for November 1967 is calculated to be minus 7 cents. The cooperative associations expect the supply-demand adjustor to continue to reduce the Class I price during the coming months. Additionally, the cooperatives indicate that suspension of supply-demand adjustments in nearby orders has created a Class I price alignment problem. They indicate that these factors jeopardize the supply of milk for the Greater Kansas City market.

All persons who desire to submit written data, views, or arguments in connection with the proposed suspension should file the same with the Hearing Clerk, Room 112-A, Administration Building, U.S. Department of Agriculture, Washington, D.C. 20250, not later than 3 days from the date of publication of this notice in the FEDERAL REGISTER. All documents filed should be in quadruplicate.

All written submissions made pursuant to this notice will be made available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

Signed at Washington, D.C., on November 2, 1967.

JOHN C. BLUM,
Deputy Administrator, Regulatory Programs.

[F.R. Doc. 67-13159; Filed, Nov. 6, 1967; 8:50 a.m.]

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

[14 CFR Part 39]

[Docket No. 8499]

AIRWORTHINESS DIRECTIVES

Certain Bristol Siddeley de Havilland Model Gipsy Queen Series 70 Engines

The Federal Aviation Administration is considering amending Part 39 of the Federal Aviation Regulations by adding an airworthiness directive applicable to Bristol Siddeley de Havilland Model Gipsy Queen Series 70 Engines with crankshafts with modification 1399 (R.155), 1609 (R.259), 2289 (R.155 and R.259), 2931 (R.563 and R.564), or repair schemes R.155 and R.259 incorporated. There have been reports of failures of the Gipsy Queen 70 crankshafts due to cracks which could result in loss of the propeller. Since this condition is likely to exist or develop in other engines of the same type design,

the airworthiness directive would require periodic inspection of the crankshafts for cracks, the replacement of cracked crankshafts, and the discontinuance of the inspections after the incorporation of Modification 2925 (R.550) which must be accomplished not later than the next engine overhaul.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the docket number and be submitted in duplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. All communications received on or before December 7, 1967, will be considered by the Administrator before taking action upon the proposed rule. The proposals contained in this notice may be changed in the light of comments received. All comments will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

This amendment is proposed under the authority of sections 313(a), 601, and 603 of the Federal Aviation Act of 1958 (49 U.S.C. 1354(a), 1421, 1423).

In consideration of the foregoing, it is proposed to amend § 39.13 of Part 39 of the Federal Aviation Regulations by adding the following new airworthiness directive:

BRISTOL SIDDELEY. Applies to de Havilland Model Gipsy Queen Series 70 Engines with Crankshafts with Modifications 1399 (R.155), 1609 (R.259), 2289 (R.155 and R.259), 2931 (R.563 and R.564), or Repair Schemes R.155 and R.259 incorporated.

Compliance required as indicated unless already accomplished.

To prevent failure of the crankshaft front end that could result in loss of the propeller, accomplish the following:

(a) Within the next 400 hours' time in service after the effective date of this AD and thereafter at intervals not to exceed 400 hours' time in service from the last inspection, visually inspect the crankshaft for cracks, in accordance with Bristol Siddeley Technical News Sheet (TNS) G.Q. 70 No. 105, dated August 14, 1967, or later ARB-approved issue, or an FAA-approved equivalent.

(b) If cracks are found during the inspections required by paragraph (a), replace cracked crankshaft before further flight with an uncracked crankshaft, or incorporate Gipsy Modification 2925 (R.550). If Gipsy Modification 2925 (R.550) is not incorporated, inspect the replacement crankshaft in accordance with paragraph (a).

(c) If no cracks are found during the inspections required by paragraph (a), incorporate Modifications 2925 (R.550) at next overhaul.

(d) The repetitive inspections required by paragraph (a) may be discontinued after the incorporation of Gipsy Modification 2925 (R.550).

Issued in Washington, D.C., on October 31, 1967.

JAMES F. RUDOLPH,
Director, Flight Standards Service.

[F.R. Doc. 67-13129; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 39]

[Docket No. 8500]

AIRWORTHINESS DIRECTIVES

British Aircraft Corporation Model BAC 1-11 200 and 400 Series Airplanes

The Federal Aviation Administration is considering amending Part 39 of the Federal Aviation Regulations by adding an airworthiness directive applicable to British Aircraft Corporation Model BAC 1-11 200 and 400 Series airplanes. There has been an instance of inadvertent "stick push" which occurred during takeoff due to oleo relay failure. Since this condition is likely to exist or develop in other airplanes of the same type design, the airworthiness directive would require the modification of the stall protection system oleo relays by removing the links strapping the oleo relays and connecting the oleo relays in a series configuration.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the docket number and be submitted in duplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. All communications received on or before December 7, 1967, will be considered by the Administrator before taking action upon the proposed rule. The proposals contained in this notice may be changed in the light of comments received. All comments will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

This amendment is proposed under the authority of sections 313(a), 601, and 603 of the Federal Aviation Act of 1958 (49 U.S.C. 1354(a), 1421 and 1423).

In consideration of the foregoing, it is proposed to amend § 39.13 of Part 39 of the Federal Aviation Regulations by adding the following new airworthiness directive:

BRITISH AIRCRAFT. Applies to BAC 1-11 200 and 400 Series airplanes.

Compliance required as indicated unless already accomplished.

To prevent possible inadvertent "stick push" during takeoff resulting from oleo relay failure, accomplish the following:

Within the next 1,000 hours' time in service after the effective date of this AD, modify the stall protection system oleo relays by removing the links strapping the oleo relays and connecting the oleo relays in a series configuration, in accordance with British Aircraft Corp. BAC 1-11 Service Bulletin 34-PM 2784, dated August 28, 1967, or later ARB-approved issue, an FAA-approved equivalent.

Issued in Washington, D.C., on October 31, 1967.

JAMES F. RUDOLPH,
Director, Flight Standards Service.

[F.R. Doc. 67-13130; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 66-WA-33]

POSITIVE CONTROL AREA

Proposed Designation

The Federal Aviation Administration is considering an amendment to Part 71 of the Federal Aviation Regulations which would expand positive control area so as to include several small areas along the United States/Canadian border which are not designated as positive control areas.

Interested persons are invited to participate in the making of the proposed rule by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. All communications received within 45 days from publication in the FEDERAL REGISTER will be considered by the Administrator before taking action on the proposed rule. The proposal contained in this notice may be changed in the light of comments received. All comments submitted will be available, both before and after the closing date for comments, in the Rules Docket for examination by interested persons.

Positive control area is presently designated within the continental control area from flight level 240 to and including flight level 600 over the 48 conterminous States, excluding portions of the States of Washington, New Hampshire, Maine, North Dakota, South Dakota, Minnesota, Wisconsin, Michigan, and Texas, and excluding some of the islands and keys in the coastal waters of the United States. Small portions of the States of Washington, New Hampshire, and Maine have been excluded from positive control area since air traffic control jurisdiction of these portions is delegated to the Canadian Department of Transport. Airspace Docket No. 67-WA-16 was published in the FEDERAL REGISTER on September 20, 1967 (32 F.R. 13270), and effective on November 9, 1967, lowers the floor of existing positive control area to 18,000 feet MSL in the northeast quarter of the United States.

On July 7, 1966, the Canadian Department of Transport designated the Southern Control Area which expanded the Canadian positive control area southward to include all the airspace along the United States/Canadian border above flight level 230 up to and including flight level 450. It is desirable to maintain the continuity of positive control area along the United States/Canadian border within those small areas which presently are not designated as positive control area. Radar service is provided within these areas and air safety would be enhanced by maintaining the integrity of positive control service along the border. Therefore, it is proposed herein to designate as positive control area the airspace over those portions of the States of

Washington, New Hampshire, and Maine which are under the air traffic control jurisdiction of the Canadian Department of Transport. The vertical extent of such designation would be from 18,000 feet MSL up to and including flight level 600 over those portions of New Hampshire and Maine, and from flight level 240 up to and including flight level 600 over those portions of Washington. Specifically, § 71.193 would be changed as follows:

1. All between "latitude 48°30'00" N., longitude 124°45'00" W.; thence along the United States/Canadian border to" and "latitude 49°00'00" N., longitude 100°00'00" W.;" would be deleted.

2. All between "latitude 47°40'40" N., longitude 86°46'00" W.; thence along the United States/Canadian border to" and "latitude 44°48'00" N., longitude 66°-53'00" W.;" would be deleted.

3. All between "latitude 43°52'00" N., longitude 82°11'20" W.; thence along the United States/Canadian border to" and "latitude 44°48'00" N., longitude 66°-53'00" W.;" would be deleted.

These amendments are proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on October 27, 1967.

T. McCORMACK,
Acting Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 67-13131; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 67-EA-103]

TRANSITION AREA

Proposed Designation

The Federal Aviation Administration is considering an amendment to Part 71 of the Federal Aviation Regulations that would designate a transition area in the vicinity of Tidioute, Pa., as follows:

The Tidioute, Pa., transition area would be designated as that airspace extending upward from 1,200 feet above the surface south of the Tidioute, Pa., VORTAC bounded by VOR Federal airways Nos. 115, 184, and the Youngstown, Ohio, 1,200-foot transition areas; and southeast of the Tidioute VORTAC bounded by VOR Federal airways Nos. 119, 184, and 188.

The proposed transition area would provide controlled airspace for aircraft executing holding patterns at the Tidioute, Pa., VORTAC and Cooksburg, Pa. intersection.

Interested persons may participate in the proposed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Eastern Region, Attention: Chief, Air Traffic Division, Federal Aviation Administration, JFK International Airport, New York 11430. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendments. The proposals contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. An informal docket also will be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on October 26, 1967.

T. McCORMACK,
Acting Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 67-13132; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 67-SW-58]

TRANSITION AREA

Proposed Designation

The Federal Aviation Administration is considering amending Part 71 of the Federal Aviation Regulations to designate a transition area at Alva, Okla. The proposed transition area will provide airspace protection for aircraft executing approach/departure procedures proposed at Alva Muncipal Airport, Alva, Okla.

Interested persons may submit such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Administration, Post Office Box 1689, Fort Worth, Tex. 76101. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Administration officials may be made by contacting the Chief, Air Traffic Division. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Administration, Fort Worth, Tex. An informal docket will also be available for examination at the Office of the Chief, Air Traffic Division.

It is proposed to amend Part 71 of the Federal Aviation Regulations as hereinafter set forth.

In § 71.181 (32 F.R. 2148), the following transition area is added:

ALVA, OKLA.

That airspace extending upward from 700 feet above the surface within a 5-mile radius of Alva Municipal Airport (lat. 36°46'00" N., long. 98°40'00" W.); within 2 miles each side of the 170° bearing (160° magnetic) from the Alva RBN (lat. 36°46'47" N., long. 98°40'34" W.), extending from the 5-mile radius area to 8 miles south of the RBN; and that airspace extending upward from 1,200 feet above the surface within an area bounded by a line beginning at lat. 36°50'30" N., long. 98°50'30" W., to lat. 36°34'40" N., long. 98°47'00" W., to lat. 36°37'00" N., long. 98°30'00" W., thence north via long. 98°30'00" W. to and west via the south boundary of V-190 to the southeast boundary of V-12, thence to point of beginning, excluding the portion within Federal airways.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Fort Worth, Tex., on October 25, 1967.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 67-13133; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 67-SW-67]

TRANSITION AREA

Proposed Designation

The Federal Aviation Administration is considering amending Part 71 of the Federal Aviation Regulations to designate a transition area at Refugio, Tex. The proposed transition area will provide airspace protection for aircraft executing approach/departure procedures proposed at Tom O'Connor Field and Mellon Ranch Airport, Refugio, Tex.

Interested persons may submit such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Chief, Air Traffic Division, Southwest Region, Federal Aviation Administration, Post Office Box 1689, Fort Worth, Tex. 76101. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Administration officials may be made by contacting the Chief, Air Traffic Division. Any data, views or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

The official docket will be available for examination by interested persons at the Office of the Regional Counsel, Southwest Region, Federal Aviation Administration, Forth Worth, Tex. An informal

docket will also be available for examination at the Office of the Chief, Air Traffic Division.

It is proposed to amend Part 71 of the Federal Aviation Regulations as hereinafter set forth.

In § 71.181 (32 F.R. 2148), the following transition area is added:

REFUGIO, TEX.

That airspace extending upward from 700 feet above the surface within a 5-mile radius of Tom O'Connor Field (lat. 28°20'04" N., long. 97°08'58" W.); within 2 miles each side of the 335° bearing (326° magnetic) from the Vidauri RBN (lat. 28°23'51" N., long. 97°10'-40" W.), extending from the 5-mile radius area to 8 miles northwest of the RBN; within 2 miles each side of the 039° (030° magnetic) bearing from the Refugio RBN (lat. 28°20'-27" N., long. 97°08'58" W.), extending from the 5-mile radius area to 8 miles northeast of the RBN; and within a 4-mile radius of Mellon Ranch Airport (lat. 28°16'15" N., long. 97°12'30" W.).

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Forth Worth, Tex., on October 26, 1967.

A. L. COULTER,
Acting Director, Southwest Region.

[F.R. Doc. 67-13134; Filed, Nov. 6, 1967; 8:48 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 67-WE-68]

TRANSITION AREA

Proposed Designation

The Federal Aviation Administration is considering an amendment to Part 71 of the Federal Aviation Regulations that would designate controlled airspace in the Logan, Utah, terminal area.

Interested persons may participate in the proposed rule-making by submitting such written data, views, or arguments as they may desire. Communications should be submitted in triplicate to the Director, Western Region, Attention: Chief, Air Traffic Division, Federal Aviation Administration, 5651 West Manchester Avenue, Post Office Box 90007, Airport Station, Los Angeles, Calif. 90009. All communications received within 30 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. No public hearing is contemplated at this time, but arrangements for informal conferences with Federal Aviation Administration officials may be made by contacting the Regional Air Traffic Division Chief. Any data, views, or arguments presented during such conferences must also be submitted in writing in accordance with this notice in order to become part of the record for consideration. The proposal contained in this notice may be changed in the light of comments received.

A public docket will be available for examination by interested persons in the office of the Regional Counsel, Federal Aviation Administration, 5651 West Manchester Avenue, Los Angeles, Calif. 90045.

Having completed a comprehensive review of the airspace requirements for Logan-Cache Airport, it has been determined that transition areas are required at 700 feet above the surface, 1,200 feet above the surface, and 15,500 feet above mean sea level. The 700-foot transition area would provide controlled airspace protection for aircraft executing prescribed instrument procedures during operation below 1,500 feet above the surface. The 1,200-foot transition area would provide controlled airspace for aircraft executing prescribed instrument approach, departure and holding procedures at 1,500 feet, and higher, above the surface. The 10,500-foot transition area would provide lower radar vectoring altitudes for aircraft destined for Hill Air Force Base from the northeast and establish uniform continuity and compatibility with presently designated airway floors and transition areas.

In view of the foregoing, the FAA proposes the following airspace action:

In § 71.181 (32 F.R. 2147) the following transition area is added.

LOGAN, COLO.

That airspace extending upward from 700 feet above the surface within a 5-mile radius of Logan-Cache Airport (latitude 41°47'09" N., longitude 111°50'53" W.); that airspace extending upward from 1,200 feet above the surface bounded on the north by the south edge of V-4, on the east by longitude 111°40'-30" W., on the south by the north edge of V-288, on the west by the east edge of V-21; and that airspace extending upward from 10,500 feet MSL bounded on the northeast by the southwest edge of V-48, on the west by longitude 111°40'30" W., and on the south by the north edge of V-288.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958, as amended (72 Stat. 749; 49 U.S.C. 1348).

Issued in Los Angeles, Calif., on October 26, 1967.

ARVIN O. BASNIGHT,
Director, Western Region.

[F.R. Doc. 67-13135; Filed, Nov. 6, 1967; 8:48 a.m.]

Notices

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[OR 1898]

OREGON

Notice of Proposed Classification of Public Lands for Multiple-Use Management

OCTOBER 31, 1967.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18) and the regulations in 43 CFR Parts 2410 and 2411, it is proposed to classify for multiple-use management the public lands within the area described below, together with any lands therein that may become public lands in the future. As used herein, "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

2. Publication of this notice has the effect of segregating the described lands from appropriation only under the agricultural land laws (43 U.S.C., Chs. 7 and 9; 25 U.S.C., sec. 334) and from sales under section 2455 of the Revised Statutes (43 U.S.C. 1171). However, the lands shall remain open to all other applicable forms of appropriation, including the mining and mineral leasing laws.

3. The lands proposed to be classified are shown on a map designated "Oregon 1898, 2411.2: 36–020: May 1967," on file in the Burns District Office, Bureau of Land Management, Burns, Oreg., and the Land Office, Bureau of Land Management, 729 Northeast Oregon Street, Portland, Oreg. The description of the area is as follows:

WILLAMETTE MERIDIAN

HARNEY COUNTY

T. 18 S., R. 33½ E.,
Secs. 22 to 27, inclusive, and secs. 32 to 35, inclusive.
T. 18 S., R. 34 E.,
Secs. 16, 20 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 18 S., R. 35 E.,
Secs. 19 to 35, inclusive.
T. 18 S., R. 36 E.,
Secs. 1 to 15, inclusive, and secs. 18 to 35, inclusive.
T. 19 S., R. 25 E.,
Secs. 8, 15, 28, and 32.
T. 19 S., R. 31 E.,
Sec. 2, secs. 11 to 14, inclusive, secs. 16, 24, 25, and 36.
T. 19 S., R. 32 E.,
Secs. 3 to 7, inclusive, secs. 17 to 22, inclusive, secs. 27 to 29, inclusive, and secs. 31 to 34, inclusive.
T. 19 S., R. 33½ E.,
Secs. 2, 3, 11, 12, 13, 14, secs. 16 to 20, inclusive, and secs. 24 to 36, inclusive.
T. 19 S., R. 34 E.,
Secs. 1 to 10, inclusive, secs. 12, 13, 15, 16, 17, secs. 20 to 29, inclusive, and secs. 31 to 36, inclusive.
T. 19 S., R. 35 E.,
Secs. 1 to 21, inclusive, secs. 23, 24, 26 to 34, inclusive, and sec. 36.
T. 19 S., R. 36 E.,
Secs. 1 to 18, inclusive, secs. 20 to 28, inclusive, secs. 34 and 35.
T. 20 S., R. 28 E.,
Secs. 33, 34, and 35.
T. 20 S., R. 29 E.,
Secs. 11 to 16, inclusive, secs. 20 to 28, inclusive, and secs. 31 to 35, inclusive.
T. 20 S., R. 30 E.,
Secs. 5 to 8, inclusive, secs. 17 to 23, inclusive, secs. 27 to 34, inclusive, and sec. 36.
T. 20 S., R. 32 E.,
Secs. 3 to 10, inclusive, secs. 20, 21, and 36.
T. 20 S., R. 33½ E.,
Secs. 1 to 15, inclusive, secs. 18 to 26, inclusive, secs. 28, 29, 33, 35, and 36.
T. 20 S., R. 34 E.,
Secs. 1 to 36, inclusive.
T. 20 S., R. 35 E.,
Secs. 1 to 5, inclusive, secs. 6 to 15, inclusive, secs. 17, 18, 19, 22, 25, and secs. 27 to 35, inclusive.
T. 20 S., R. 36 E.,
Secs. 1, 2, 3, 6, 7, 11, 12, 13, secs. 16 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 21 S., R. 25 E.,
Sec. 36.
T. 21 S., R. 26 E.,
Secs. 1, 2, 3, 8, 11, 12, 13, 20, secs. 22 to 26, inclusive, secs. 28, 30, 31, 32, 34, 35, and 36.
T. 21 S., R. 27 E.,
Secs. 7 to 10, inclusive, secs. 17 to 22, inclusive, and secs. 28 to 32, inclusive.
T. 21 S., R. 28 E.,
Secs. 1, 2, 11, 12, 13, 24, and 25.
T. 21 S., R. 29 E.,
Secs. 1 to 16, inclusive, and secs. 17 to 35, inclusive.
T. 21 S., R. 30 E.,
Secs. 1 to 11, inclusive, secs. 13, 14, 16, 17, 18, 19, and secs. 22 to 36, inclusive.
T. 21 S., R. 31 E.,
Secs. 5 to 8, inclusive, secs. 13, 14, and secs. 16 to 36, inclusive.
T. 21 S., R. 32 E.,
Secs. 25, 26, 28, 30, and secs. 32 to 35, inclusive.
T. 21 S., R. 32½ E.,
Secs. 13, 24, 25, and secs. 27 to 36, inclusive.
T. 21 S., R. 33 E.,
Secs. 1 to 4, inclusive, secs. 9 to 16, inclusive, secs. 17, 18, 24, 26, and secs. 32 to 35, inclusive.
T. 21 S., R. 34 E.,
Secs. 1 to 4, inclusive, secs. 6 to 16, inclusive, and secs. 17 to 35, inclusive.
T. 21 S., R. 35 E.,
Secs. 1 to 15, inclusive, and secs. 17 to 36, inclusive.
T. 21 S., R. 36 E.,
Secs. 1 to 4 inclusive, and secs. 7 to 36, inclusive.
T. 22 S., R. 24 E.,
Sec. 10, secs. 13 to 16, inclusive, secs. 23 to 28, inclusive, and secs. 31 to 36, inclusive.
T. 22 S., R. 25 E.,
Secs. 1, 2, 8 to 16, inclusive, secs. 17 to 24, inclusive, and secs. 26 to 34, inclusive.
T. 22 S., R. 26 E.,
Secs. 3 to 10, inclusive, secs. 16 to 20, inclusive, secs. 22, 23, 24, 26, 28, and 32.
T. 22 S., R. 27 E.,
Sec. 16 and secs. 19 to 36, inclusive.
T. 22 S., R. 28 E.,
Secs. 19, 30, and 31.
T. 22 S., R. 29 E.,
Secs. 1 to 16, inclusive, secs. 20, 21, 23, 24, 28, and 34.
T. 22 S., R. 30 E.,
Secs. 1 to 23, inclusive, secs. 27 to 30, inclusive, secs. 32, 33, and 34.
T. 22 S., R. 31 E.,
Secs. 2 to 15, inclusive, secs. 17 and 18.
T. 22 S., R. 32 E.,
Secs. 1, 2, 3, 5 to 12, inclusive, secs. 14, 17, 18, 19, 20, 30, and 32.
T. 22 S., R. 32½ E.,
Secs. 1 to 18, inclusive, secs. 21 to 24, inclusive, and secs. 26 to 29, inclusive.
T. 22 S., R. 33 E.,
Secs. 1 to 5, inclusive, secs. 7 to 10, inclusive, secs. 12, 14, 16, 18 to 20, inclusive, secs. 22, 24, 25, 26, 35, and 36.
T. 22 S., R. 34 E.,
Secs. 1 to 35, inclusive.
T. 22 S., R. 35 E.,
Secs. 1 to 11, inclusive, secs. 13, 15 to 20, inclusive, secs. 22 to 27, inclusive, sec. 30, and secs. 32 to 36, inclusive.
T. 22 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 23 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 23 S., R. 25 E.,
Secs. 3 to 10, inclusive, secs. 17 to 22, inclusive, secs. 28 to 34, inclusive, and sec. 36.
T. 23 S., R. 26 E.,
Secs. 32, 34, and 36.
T. 23 S., R. 27 E.,
Secs. 2, 4, 8, 10, 12, 14, 16, 22, 24, and 36.
T. 23 S., R. 28 E.
Sec. 1 and secs. 6 to 36, inclusive.
T. 23 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 23 S., R. 33 E.,
Sec. 16, secs. 19 to 21, inclusive, secs. 28, 30, 31, and 32.
T 23 S., R. 33 E.,
Secs. 1 and 2.
T. 23 S., R. 34 E.,
Secs. 1, 2, 4, 5, 6, 8 to 17, inclusive, secs. 20 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 23 S., R. 35 E.,
Secs. 1 to 4, inclusive, secs. 6, 8 to 16, inclusive, secs. 17, 18, 20 to 26, inclusive, and secs. 28 to 36, inclusive.
T. 23 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 24 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 24 S., R. 25 E.,
Secs. 1 to 7, inclusive, secs. 18, 19, and secs. 30 to 36, inclusive.
T. 24 S., R. 26 E.,
Secs. 1 to 17, inclusive, and secs. 19 to 36, inclusive.
T. 24 S., R. 27 E.,
Secs. 18, 20, 22, and secs. 25 to 36, inclusive.
T. 24 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 24 S., R. 29 E.,
Secs. 2, 6, 8, 10, 14, 16, 18, 20, 22, 26, secs. 28 to 34, inclusive and sec. 36.
T. 24 S., R. 30 E.,
Secs. 6, 28, 30, 32, 34, and 36.

T. 24 S., R. 34 E.,
Secs. 1 to 5, inclusive, secs. 8 to 16, inclusive, secs. 20 to 29, inclusive, and secs. 32 to 34, inclusive.
T. 24 S., R. 35 E.,
Secs. 1 to 4, inclusive, secs. 6, 7, 8, 12, secs. 17 to 20, inclusive, secs. 29 to 32, inclusive and sec. 36.
T. 24 S., R. 36 E.,
Secs. 1 to 18, inclusive, and secs. 20 to 36, inclusive.
T. 25 S., R. 24 E.,
Secs. 1 to 16, inclusive, secs. 17, 18, 20 to 30, inclusive, and secs. 32 to 36, inclusive.
T. 25 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 25 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 25 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 25 S., R. 28 E.,
Secs. 1 to 16 inclusive, secs. 18, 19, 23, 24, and 30.
T. 25 S., R. 29 E.,
Secs. 1 to 15, inclusive, secs. 17, 18, 20 to 29, inclusive, secs. 32, 33, 35, and 36.
T. 25 S., R. 30 E.,
Secs. 1 to 16, inclusive, and secs. 17 to 32, inclusive.
T. 25 S., R. 34 E.,
Secs. 3, 4, 10, 14, 18, 20, 22, 24, 26, 28, 30, and 34.
T. 25 S., R. 35 E.,
Secs. 5, 6, 8, 12, 14, 18, 30, 32, and 34.
T. 25 S., R. 36 E.,
Secs. 2, 3, 4, 6, 8, 10, 12, 14, 16, 18, 22, 24, 27, 28, 30, 32, and 34.
T. 26 S., R. 24 E.,
Secs. 1 to 7, inclusive, secs. 9 to 16, inclusive, secs. 19 to 25, inclusive, and secs. 27 to 36, inclusive.
T. 26 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 26 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 26 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 26 S., R. 28 E.,
Secs. 5 to 8, inclusive, secs. 17 to 22, inclusive, and secs. 27 to 34, inclusive.
T. 26 S., R. 29 E.,
Secs. 1 to 5, inclusive, secs. 8 to 15, inclusive, secs. 17, 20 to 25, inclusive, 27, and 28.
T. 26 S., R. 30 E.,
Secs. 5, 6, 7, 18, 19, and 20.
T. 26 S., R. 32 E., south of Malheur Lake,
Secs. 23 to 26, inclusive, and sec. 35.
T. 26 S., R. 33 E.,
Sec. 3 and secs. 10 to 34, inclusive.
T. 26 S., R. 34 E.,
Secs. 1 to 5, inclusive, secs. 7, 8, 10 to 15, inclusive, secs. 17, 18, 20 to 29, inclusive, and secs. 31 to 35, inclusive.
T. 26 S., R. 35 E.,
Secs. 2, 4, 6, 8, 10, 12, 14, 16, 18, 20, 22, and secs. 24 to 36, inclusive.
T. 26 S., R. 36 E.,
Secs. 2, 4, 6, 8, 12, 18, 20, 22, 24, 26, 28, 30, 32, 33, 34, and 36.
T. 27 S., R. 24 E.,
Secs. 1 to 3, inclusive, and secs. 5 to 36, inclusive.
T. 27 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 27 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 27 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 27 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 27 S., R. 29 E.,
Secs. 5 to 9, inclusive, secs. 16 to 23, inclusive, and secs. 25 to 36, inclusive.
T. 27 S., R. 29½ E.,
Secs. 30, 31, 32, and 36.
T. 27 S., R. 30 E.,
Sec. 16 and secs. 19 to 36, inclusive.
T. 27 S., R. 31 E.,
Secs. 1, 2, 11 to 14, inclusive, 23 to 26, inclusive, and sec. 35.
T. 27 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 27 S., R. 33 E.,
Secs. 1, 2, and secs. 4 to 36, inclusive.
T. 27 S., R. 34 E.,
Secs. 1 to 10, inclusive, secs. 17 to 21, inclusive, secs. 23, 26 to 34, inclusive, and sec. 36.
T. 27 S., R. 35 E.,
Secs. 1 to 15, inclusive, secs. 17, 18, and secs. 20 to 36, inclusive.
T. 27 S., R. 36 E.,
Secs. 1 to 5, inclusive, and secs. 7 to 35, inclusive.
T. 28 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 29½ E.,
Secs. 1 to 11, inclusive, and secs. 13 to 36, inclusive.
T. 28 S., R. 29¾ E.,
Secs. 1 to 3, inclusive, secs. 11 to 14, inclusive, secs. 22 to 27, inclusive, secs. 34, 35, and 36.
T. 28 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 31 E.,
Secs. 1, 2, 3, 6, 7, secs. 10 to 15, inclusive, secs. 18, 19, 22 to 25, inclusive secs. 29 to 32, inclusive, and sec. 36.
T. 28 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 28 S., R. 33 E.,
Secs. 1 to 20, inclusive, secs. 22 to 24, inclusive, secs. 26, 27, and secs. 29 to 35, inclusive.
T. 28 S., R. 34 E.,
Secs. 1 to 6, inclusive, secs. 10 to 16, inclusive, secs. 19 to 30, inclusive, and secs. 32 to 35, inclusive.
T. 28 S., R. 35 E.,
Secs. 1 to 19, inclusive, and secs. 21 to 36, inclusive.
T. 28 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 29½ E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 29¾ E.,
Secs. 1 to 3, inclusive, secs. 10 to 15, inclusive, secs. 22 to 27, inclusive, and secs. 34 to 36, inclusive.
T. 29 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 31 E.,
Secs. 1, 4 to 10, inclusive, 12, 15, 16, 19, 22, 23 to 33, inclusive, 35, and 36.
T. 29 S., R. 32 E.,
Secs. 2 to 11, inclusive, 14, 15, 16, 19, 20, 21, 23, 24, and secs. 26 to 36, inclusive.
T. 29 S., R. 33 E.,
Secs. 2 to 29, inclusive, and secs 33 to 36, inclusive.
T. 29 S., R. 34 E.,
Secs. 1 to 5, inclusive, and secs. 7 to 36, inclusive.
T. 29 S., R. 35 E.,
Secs. 1 to 36, inclusive.
T. 29 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 29½ E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 29¾ E.,
Secs. 1, 2, 10 to 15, inclusive, secs. 22 to 27, inclusive, and secs. 34 to 36, inclusive.
T. 30 S., R. 30 E.,
Secs. 1 to 15, inclusive and secs. 17 to 35, inclusive.
T. 30 S., R. 31 E.,
Secs. 1, 3 to 10, inclusive, 12, 15 to 23, inclusive, 25, 26, and secs. 28 to 36, inclusive.
T. 30 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 30 S., R. 33 E.,
Secs. 1 to 3, inclusive, secs. 6 to 15, inclusive, secs. 17 to 32, inclusive, 34, and 35.
T. 30 S., R. 34 E.,
Secs. 1 to 17, inclusive, and secs. 19 to 35, inclusive.
T. 30 S., R. 35 E.,
Secs. 1 to 15, inclusive, and secs. 18 to 35, inclusive.
T. 30 S., R. 36 E.,
Secs. 1 to 29, inclusive, and secs. 31 to 36, inclusive.
T. 30½ S., R. 34 E.,
Secs. 25 to 31, inclusive, secs. 33, 34, and 35.
T. 31 S., R. 24 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 25 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 26 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 29 E.,
Secs. 1, 2, and secs. 4 to 36, inclusive.
T. 31 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 31 E.,
Secs. 1 to 23, inclusive, and secs. 25 to 36, inclusive.
T. 31 S., R. 32 E.,
Secs. 1 to 24, inclusive, and secs. 26 to 35, inclusive.
T. 31 S., R. 32½ E.,
Secs. 1 to 5, inclusive, secs. 8 to 16, inclusive, secs. 21 to 28, inclusive, and secs. 33 to 36, inclusive.
T. 31 S., R. 32¾ E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 33 E.,
Secs. 2 to 11, inclusive, 14, 15, 17 to 23, inclusive, 26 to 30, inclusive, and secs. 33 to 35, inclusive.
T. 31 S., R. 34 E.,
Secs. 1 to 13, inclusive, 15, 18 to 22, inclusive, 24 to 28, inclusive, and secs. 30 to 36, inclusive.
T. 31 S., R. 35 E.,
Secs. 1 to 36, inclusive.
T. 31 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 24 E.,
Secs. 1 to 35, inclusive.
T. 32 S., R. 25 E.,
Secs. 1 to 36, inclusive.

T. 32 S., R. 26 E.,
Secs. 1 to 15, inclusive, and secs. 17 to 35, inclusive.
T. 32 S., R. 27 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 28 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 31 E.,
Secs. 1 to 16, inclusive, 18, 20 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 32 S., R. 32 E.,
Secs. 4 to 9, inclusive, and secs. 12 to 36, inclusive.
T. 32 S., R. 32½ E.,
Secs. 1 to 5, inclusive, and secs. 8 to 36, inclusive.
T. 32 S., R. 32¾ E.,
Secs. 1 to 9, inclusive, secs. 17 to 21, inclusive, and secs. 26 to 35, inclusive.
T. 32 S., R. 33 E.,
Secs. 3 to 6, inclusive, secs. 8 to 11, inclusive, secs. 14 to 23, inclusive, and secs. 26 to 34, inclusive.
T. 32 S., R. 34 E.,
Secs. 1 to 15, inclusive, secs. 17 to 23, inclusive, and secs. 27 to 35, inclusive.
T. 32 S., R. 35 E.,
Secs. 1 to 36, inclusive.
T. 32 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 32½ S., R. 33 E.,
Secs. 20 to 28, inclusive, secs. 32, 33, 35, and 36.
T. 33 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 33 S., R. 30 E.,
Secs. 1, 2, 4 to 10, inclusive, 12, 13, 15, 17, 18, and secs. 21 to 34, inclusive.
T. 33 S., R. 31 E.,
Secs. 1, 2, 3, 5, 7, 8, 10, 12, 14, 15, 17, secs. 19 to 23, inclusive, secs. 27 to 30, inclusive, and secs. 32 and 34.
T. 33 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 33 S., R. 32½ E.,
Secs. 1 to 36, inclusive.
T. 33 S., R. 32¾ E.,
Secs. 1, 2, 4 to 15, inclusive, and secs. 17 to 36, inclusive.
T. 33 S., R. 33 E.,
Secs. 1 to 5, inclusive, secs. 8 to 17, inclusive, secs. 20 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 33 S., R. 34 E.,
Secs. 2 to 10, inclusive, secs. 15, 17 to 22, inclusive, and secs. 27 to 33, inclusive.
T. 33 S., R. 35 E.,
Secs. 1 to 18, inclusive, secs. 20 to 30, inclusive, and secs. 33 to 36, inclusive.
T. 33 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 34 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 34 S., R. 30 E.,
Secs. 4 to 8, inclusive, secs. 17 to 21, inclusive, and secs. 28 to 35, inclusive.
T. 34 S., R. 31 E.,
Secs. 4, 9, 10, 15, 19, 20, 22, and 27.
T. 34 S., R. 32 E.,
Secs. 1 to 5, inclusive, secs. 8 to 16, inclusive, secs. 21 to 27, inclusive, and secs. 34 to 36, inclusive.
T. 34 S., R. 32½ E.,
Secs. 1 to 36, inclusive.
T. 34 S., R. 32¾ E.,
Secs. 2 to 26, inclusive, and secs. 28 to 35, inclusive.
T. 34 S., R. 33 E.,
Secs. 1 to 5, inclusive, secs. 8 to 15, inclusive, secs. 17, 21 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 34 S., R. 34 E.,
Secs. 4 to 9, inclusive, secs. 17 to 20, inclusive, and secs. 22 to 36, inclusive.
T. 34 S., R. 35 E.,
Secs. 1 to 5, inclusive, secs. 8 to 17, inclusive, and secs. 19 to 36, inclusive.
T. 34 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 35 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 35 S., R. 30 E.,
Secs. 1 to 32, inclusive, and secs. 34 and 36.
T. 35 S., R. 31 E.,
Secs. 1, 3 to 15, inclusive, 17 to 22, inclusive, 25, 28, 30, 32, and 34.
T. 35 S., R. 32 E.,
Secs. 1, 2, 3, 6, 7, 8, 10 to 15, inclusive, 23, 24, 25, 30, and 31.
T. 35 S., R. 32½ E.,
Secs. 1 to 24, inclusive, 26 to 30, inclusive, 32, and 34.
T. 35 S., R. 32¾ E.,
Secs. 1 to 13, inclusive, 16, 17, 18, 20 to 30, inclusive, and 36.
T. 35 S., R. 33 E.,
Secs. 1, 2, 4, 5, 8, 9, 10, 12, 16, 17, 22, 24, 28, 32, 34, and 36.
T. 35 S., R. 34 E.,
Secs. 1 to 14, inclusive, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, and 36.
T. 35 S., R. 35 E.,
Secs. 1 to 18, inclusive, secs. 20 to 28, inclusive, 30, and secs. 33 to 36, inclusive.
T. 35 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 35½ S., R. 32 E.,
Secs. 30 and 33.
T. 35½ S., R. 32½ E.
Secs. 20, 22, 28, 30, 32, and 34.
T. 35½ S., R. 32¾ E.,
Secs. 24, 26, and 36.
T. 36 S., R. 29 E.,
Secs. 2, 4, 5, 6, 8, 10, 12, 14, 16, 18, 20, 22, 24, 26, 28, 30, 32, 34, 35, and 36.
T. 36 S., R. 30 E.,
Secs. 2, 4, 6, 8, 10, 12, 14, 16, 17, 18, and secs. 22 to 36, inclusive.
T. 36 S., R. 31 E.,
Secs. 2, 4, 6, 8, 10, 12, 14, 18, 19, 20, 22, 24, 26, and secs. 28 to 35, inclusive.
T. 36 S., R. 32 E.,
Secs. 9, 10, 16, 20, 22, 25, secs. 27 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 36 S., R. 32½ E.,
Secs. 2, 10, 14, 15, secs. 19 to 23, inclusive, and secs. 25 to 36, inclusive.
T. 36 S., R. 32¾ E.,
Secs. 2, 12 to 14, inclusive, 20, 23 to 28, inclusive, and 30 to 36, inclusive.
T. 36 S., R. 33 E.,
Secs. 3, 4, 6, 8, 13, secs. 16to 26, inclusive, and secs. 28 to 35, inclusive.
T. 36 S., R. 34 E.,
Secs. 4, 6 to 10, inclusive, and 15 to 36, inclusive.
T. 36 S., R. 35 E.,
Secs. 1 to 4, inclusive, and secs. 8 to 36, inclusive.
T. 36 S., R. 36 E.,
Secs. 5, 6, 8, 18, 20, 30, and 32.
T. 37 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T 37 S., R. 31 E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 32 E.,
Secs. 1 to 5, inclusive, secs. 8 to 17, inclusive, secs. 20 to 29, inclusive, and secs. 32 to 36, inclusive.
T. 37 S., R. 32½ E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 32¾ E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 33 E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 34 E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 35 E.,
Secs. 1 to 36, inclusive.
T. 37 S., R. 36 E.,
Secs. 6, 8, secs. 16 to 22, inclusive, and secs. 24 to 35, inclusive.
T. 38 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 38 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 38 S., R. 31 E.,
Secs. 1 to 36, inclusive.
T. 38 S., R. 32 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 33 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 34 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 35 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 36 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 37 E.,
Secs. 13 to 36, inclusive.
T. 38 S., R. 38 E.,
Secs. 13 to 36, inclusive.
T. 39 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 31 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 33 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 34 E.,
Secs. 1 to 36, inclusive.
T. 39 S., R. 35 E.,
Secs. 1 to 13, inclusive, secs. 15 to 22, inclusive, and secs. 26 to 35, inclusive.
T. 39 S., R. 36 E.,
Secs. 1 to 30, inclusive, and secs. 32 to 36, inclusive.
T. 39 S., R. 37 E.,
Secs. 1 to 15, inclusive, and secs. 17 to 36, inclusive.
T. 39 S., R. 38 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 29 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 30 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 31 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 32 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 33 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 34 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 35 E.,
Secs. 1 to 33, inclusive, 35, and 36.
T. 40 S., R. 36 E.,
Secs. 1 to 36, inclusive.
T. 40 S., R. 37 E.,
Secs 1 to 36, inclusive.
T. 40 S., R. 38 E.,
Secs. 1 to 36, inclusive.
T. 41 S., R. 29 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 30 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 31 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 32 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 33 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 34 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 35 E.,
Secs. 1 to 15, inclusive, and secs. 17 to 24, inclusive.
T. 41 S., R. 36 E.,
Secs. 1 to 24, inclusive.
T. 41 S., R. 37 E.,
Secs. 1 to 17, inclusive, 20, 21, 22, and 24.
T. 41 S., R. 38 E.,
Secs. 1 to 6, inclusive, and secs. 8 to 24, inclusive.

The areas described aggregate approximately 4,135,000 acres of public land.

4. For a period of 60 days from the publication of this notice in the FEDERAL REGISTER, all persons who wish to submit comments, suggestions or objections in connection with the proposed classification may present their views in writing to the District Manager, Bureau of Land Management, 74 South Alvord Street, Burns, Oreg. 97720.

5. A public hearing on the proposed classification will be held at 2 p.m. on November 30, 1967, at the Burns District Office, 74 South Alvord Street, Burns, Oreg.

ARCHIE D. CRAFT,
State Director.

[F.R. Doc. 67-13115; Filed, Nov. 6, 1967; 8:47 a.m.]

National Park Service

BLUE RIDGE PARKWAY

Notice of Intention To Issue Concession Permits

Pursuant to the provisions of section 5, Public Law 89-249, public notice is hereby given that the Department of the Interior, through the Superintendent of Blue Ridge Parkway, National Park Service, proposes, thirty (30) days after the date of publication of this notice, to issue for the period January 1, 1968, through December 31, 1968, the concession permit under which Homer Harris provides concession facilities and services for the public at Mabry Mill in the Blue Ridge Parkway; and to issue for the period January 1, 1968, through December 31, 1972, the concession permit under which Chatham Manufacturing Co. provides concession facilities and services for the public at Brinegar Cabin in the Blue Ridge Parkway.

The foregoing concessioners have performed their obligations under prior permits to the satisfaction of the National Park Service and, therefore, pursuant to the act cited above are entitled to be given preference in the renewal of the permits and in the negotiation of new permits. However, under the act cited above the Service is also required to consider and evaluate all proposals received as a result of this notice.

JAMES M. EDEN,
Superintendent of Blue Ridge Parkway.

OCTOBER 16, 1967.

[F.R. Doc. 67-13116; Filed, Nov. 6, 1967; 8:47 a.m.]

GREAT SMOKY MOUNTAINS NATIONAL PARK

Notice of Intention To Extend Concession Permits

Pursuant to the provisions of section 5, Public Law 89-249, public notice is hereby given that the Department of the Interior, through the Superintendent of the Great Smoky Mountains National Park, proposes, thirty (30) days after the date of publication of this notice, to extend for the period from January 1, 1968, through December 31, 1972, the concession permits under which Smoky Mountain Riding Stables, Inc., and Lawrence E. Segrist severally provide concession facilities and services for the public in the Great Smoky Mountains National Park.

The foregoing concessioners have performed their obligations under prior permits to the satisfaction of the National Park Service and, therefore, pursuant to the act cited above are entitled to be given preference in the renewal of the permits and in the negotiation of new permits. However, under the act cited above the Service is also required to consider and evaluate all proposals received as a result of this notice.

Interested parties should contact the Superintendent, Great Smoky Mountains National Park, Gatlinburg, Tenn. 37738, for information as to the requirements of the proposed permits.

V. L. LAFOLLETTE,
Acting Superintendent of Great Smoky Mountains National Park.

OCTOBER 17, 1967.

[F.R. Doc. 67-13117; Filed, Nov. 6, 1967; 8:47 a.m.]

DEPARTMENT OF AGRICULTURE

Commodity Credit Corporation

SALES OF CERTAIN COMMODITIES

November Sales List

Notice to Buyers. Pursuant to the policy of Commodity Credit Corporation issued October 12, 1954 (19 F.R. 6669), and subject to the conditions stated therein as well as herein, the commodities listed below are available for sale and, where noted, for redemption of payment-in-kind certificates on the price basis set forth.

The U.S. Department of Agriculture announced the prices at which CCC commodity holdings are available for sale beginning at 3 p.m., e.s.t., on October 31, 1967, and, subject to amendment, continuing until superseded by the December Monthly Sales List.

The following commodities are available: Cotton (upland and extra long staple), wheat, corn, oats, barley, rye, rice, grain sorghum, peanuts, flax, tung oil, butter, cheese, and nonfat dry milk.

There is no change in the number of commodities listed for November.

For grain sorghum, barley, rye, and oats, export pricing will be the same as for unrestricted use sales.

Information on the availability of commodities stored in Commodity Credit Corporation bin sites may be obtained from ASCS State offices shown at the end of the sales list, and for commodities stored at other locations from ASCS commodity and grain offices also shown at the end of the list.

Corn, oats, barley, or grain sorghum, as determined by CCC, will be sold for unrestricted use for "Dealers' Certificates" issued under the emergency livestock feed program. Grain delivered against such certificates will be sold at the applicable current market price, determined by CCC.

In the following listing of commodities and sales prices or method of sales, "unrestricted use" applies to sales which permit either domestic or export use and "export" applies to sales which require export only. CCC reserves the right to determine the class, grade, quality, and available quantity of commodities listed for sale.

The CCC Monthly Sales List, which varies from month to month as additional commodities become available or commodities formerly available are dropped, is designed to aid in moving CCC's inventories into domestic or export use through regular commercial channels.

If it becomes necessary during the month to amend this list in any material way—such as by the removal or addition of a commodity in which there is general interest or by a significant change in price or method of sale—an announcement of the change will be sent to all persons currently receiving the list by mail from Washington. To be put on this mailing list, address: Director, Procurement and Sales Division, Agricultural Stabilization and Conservation Service, U.S. Department of Agriculture, Washington, D.C. 20250.

Interest rates per annum under the CCC Export Credit Sales Program (Announcement GSM-3 or 4) for November 1967 are 5½ percent for U.S. bank obligations and 6½ percent for foreign bank obligations. Commodities now eligible for financing under the CCC Export Credit Sales Program include wheat, wheat flour, barley, bulgur, corn, cornmeal, grain sorghum, upland and extra long staple cotton, tobacco, cottonseed oil, soybean oil, dairy products, and tallow. Commodities purchased from CCC may be financed for export as private stocks under Announcement GSM-4.

Information on commodities available under Title I, Public Law 480, private trade agreements, and current information on interest rates and other phases of the program may be obtained from the Office of the General Sales Manager, Foreign Agricultural Service, U.S. Department of Agriculture, Washington, D.C. 20250.

The following commodities are currently available for new and existing barter contracts: Oats, cotton (upland and extra long staple), and tobacco. Wheat and grain sorghum are also available under conditions noted in the individual commodity listings. (In addition, free market stocks of corn, grain sorghum, wheat, wheat flour, tobacco, cottonseed oil, and soybean oil are eligible for barter programing under barter contracts covering procurement for Federal agencies that will reimburse CCC except that Hard Red Winter, Hard Red Spring, and durum wheats, and flour produced

from those wheats, may not be exported through west coast ports.)

The CCC will entertain offers from responsible buyers for the purchase of any commodity on the current list. Offers accepted by CCC will be subject to the terms and conditions prescribed by the Corporation. These terms include payment by cash or irrevocable letter of credit before delivery of the commodity, and the conditions require removal of the commodity from CCC stocks within a reasonable period of time. Where sales are for export, proof of exportation is also required, and the buyer is responsible for obtaining any required U.S. Government export permit or license. Purchases from CCC shall not constitute any assurance that any such permit or license will be granted by the issuing authority.

Applicable announcements containing all terms and conditions of sale will be furnished upon request. For easy reference a number of these announcements are identified by code number in following list. Interested persons are invited to communicate with the Agricultural Stabilization and Conservation Service, USDA, Washington, D.C. 20250, with respect to all commodities or—for specified commodities—with the designated ASCS commodity office.

Commodity Credit Corporation reserves the right to amend from time to time, any of its announcements. Such amendments shall be applicable to and be made a part of the sale contracts thereafter entered into.

CCC reserves the right to reject any or all offers placed with it for the purchase of commodities pursuant to such announcements.

CCC reserves the right to refuse to consider an offer, if CCC does not have adequate information of financial responsibility of the offerer to meet contract obligations of the type contemplated in this announcement. If a prospective officer is in doubt as to whether CCC has adequate information with respect to his financial responsibility, he should either submit a financial statement to the office named in the invitation prior to making an offer, or communicate with such office to determine whether such a statement is desired in his case. When satisfactory financial responsibility has not been established, CCC reserves the right to consider an offer only upon submission by offerer of a certified or cashier's check, a bid bond, or other security, acceptable to CCC, assuring that if the offer is accepted, the offerer will comply with any provisions of the contract with respect to payment for the commodity and the furnishing of performance bond or other security acceptable to CCC.

Disposals and other handling of inventory items often result in small quantities at given locations or in qualities not up to specifications. These lots are offered by the appropriate ASCS office promptly upon appearance and therefore, generally, they do not appear in the Monthly Sales List.

On sales for which the buyer is required to submit proof to CCC of exportation, the buyer shall be regularly engaged in the business of buying or selling commodities and for this purpose shall maintain a bona fide business office in the United States, its territories or possessions and have a person, principal, or resident agent upon whom service of judicial process may be had.

Prospective buyers for export should note that generally, sales to U.S. Government agencies, with only minor exceptions will constitute domestic unrestricted use of the commodity.

Commodity Credit Corporation reserves the right, before making any sales, to define or limit export areas.

The Department of Commerce, Bureau of International Commerce, pursuant to regulations under the Export Control Act of 1949, prohibits the exportation or reexportation by anyone of any commodities under this program to Cuba, the Soviet Bloc or Communist-controlled areas of the Far East including Communist China, North Korea, and the Communist-controlled area of Viet Nam except under validated license issued by the U.S. Department of Commerce, Bureau of International Commerce.

For all exportations, one of the destination control statements specified in Commerce Department Regulations (Comprehensive Export Schedule § 379.10(c)) is required to be placed on all copies of the shipper's export declaration, all copies of the bill of lading, and all copies of the commercial invoices. For additional information as to which destination control statement to use, the exporter should communicate with the Bureau of International Commerce or one of the field offices of the Department of Commerce.

Exporters should consult the applicable Commerce Department regulations for more detailed information if desired and for any changes that may be made therein.

SALES PRICE OR METHOD OF SALE

WHEAT, BULK

Unrestricted use.

A. *Storable.* All classes of wheat in CCC inventory are available for sale at market price but not below 115 percent of the 1967 price-support loan rate for the class, grade, and protein of the wheat plus the markup shown in C below applicable to the type of carrier involved.

B. *Nonstorable.* At not less than market price, as determined by CCC.

C. *Markup and examples (dollars per bushel, in-store).*[1]

Markup in-store[1] received by—		Examples—Agricultural Act of 1949; Stat. minimum
Truck	Rail or barge	
$0.10	$0.07½	Minneapolis—No. 1 DNS ($1.55) 115 percent +$0.07½; $1.86½. Portland—No. 1 SW ($1.44) 115 percent +$0.07½; $1.73½. Kansas City—No. 1 HRW ($1.43) 115 percent +$0.07½; $1.72½. Chicago—No. 1 RW ($1.47) 115 percent +$0.07½; $1.77½.

Export.

A. CCC will sell limited quantities of Hard Red Winter and Hard Red Spring wheat at west coast ports at domestic market price levels for export under Announcement GR-345 (Revision IV, Oct. 30, 1967, as amended) as follows:

(1) Notice of foreign sale must be furnished CCC within 5 calendar days after purchase.

(2) Sales will be made only to fill dollar market sales abroad and exporter must show export from the west coast to a destination west of the 170th meridian, west longitude, and east of the 60th meridian, east longitude, and to countries on the west coast of Central and South America.

B. CCC will sell wheat for export under Announcement GR-261 (Revision III, Jan. 9, 1961, as amended and supplemented) subject to the following:

(1) All classes will be sold subject to offers which include the price at which the buyer proposes to purchase the wheat.

(2) All classes will be sold to fill dollar market sales abroad and exporter must show export from the west coast to a destination within the geographical limitation shown in A(2) above.

(3) All classes will be sold for application to barter contracts entered into pursuant to invitations for barter offers dated prior to 3:30 p.m., e.d.t., on August 26, 1966. However, CCC-owned wheat will not be sold for barter at west coast ports nor will evidence of export at west coast ports be acceptable under a sale for barter.

C. Announcement GR-262 (Revision II, Jan. 9, 1961, as amended) for export as flour as follows: All classes will be sold for application to barter contracts entered into pursuant to invitations for barter offers dated prior to 3:30 p.m., e.d.t., on August 26, 1966. However, sales for barter will not be made at west coast ports nor will evidence of export from west coast ports be acceptable under a sale for barter pursuant to this announcement.

D. CCC will not sell wheat under Announcement GR-346 until further notice.

Available: Evanston, Kansas City, Minneapolis, and Portland ASCS offices.

CORN, BULK

Unrestricted use.

A. *Redemption of domestic payment-in-kind certificates.* Such CCC dispositions of corn as CCC may designate will be in redemption of certificates or rights represented by pooled certificates under a feed grain program. The price at which corn shall be valued for such dispositions shall be the market price as determined by CCC, but not less than 115 percent of the applicable 1967 price-support loan rate[2] for the class, grade, and quality of the corn plus the markup shown in C of this unrestricted use section.

B. *General sales.*—1. *Storable.* Such CCC dispositions of storable corn as CCC may designate as general sales will be made during the month at market price, as determined by CCC, but not less than the Agricultural Act of 1949 formula minimum price for such sales which is 105 percent of the applicable 1967 price support rate[2] (published loan rate plus 19 cents per bushel) for the class, grade, and quality of the corn, plus the markup shown in C of this unrestricted use section.

2. *Nonstorable.* At not less than market price as determined by CCC.

C. *Markups and examples (dollars per bushel in-store[1] basis No. 2 Yellow Corn 14 percent M.T. 2 percent F.M.).*

Markup in-store received by—	Examples
Truck	
$0.03¼	Feed grain program domestic PIK certificate minimums: McLean County, Ill. ($1.08+$0.02½) 115 percent +$0.05½; $1.33¼. Agricultural Act of 1949; stat. minimums: McLean County, Ill. ($1.08+$0.02½ +$0.19); 105 percent +$0.05½; $1.41¾.

Available. Evanston, Kansas City, Minneapolis, and Portland ASCS grain offices.

Export. Corn from CCC inventory is not available for export sale.

GRAIN SORGHUM (BULK)

Unrestricted use.

A. *Redemption of domestic payment-in-kind certificates.* Such CCC dispositions of grain sorghum as CCC may designate will be in redemption of certificates or rights represented by pooled certificates under a feed grain program. The minimum price at which grain sorghum shall be valued for such dispositions shall be market price, as determined by CCC, but not less than 115 percent of the applicable 1967 price-support loan rate [2] for the class, grade, and quality of the grain sorghum, plus the markup shown in C of this unrestricted use section applicable to the type of carrier involved.

B. *General sales.*—1. *Storable.* Such CCC dispositions of storable grain sorghum as CCC may designate as general sales will be made during the month at market price, as determined by CCC, but not less than the Agricultural Act of 1949 formula minimum price for such sales which is 105 percent of the applicable 1967 price-support rate [2] (published loan rate plus 34 cents per hundredweight) for the class, grade, and quality of the grain sorghum, plus the markup shown in C of this unrestricted use section applicable to the type of carrier involved.

2. *Nonstorable.* At not less than market price as determined by CCC.

C. *Markups and examples (dollars per hundredweight in-store [1] No. 2 or better).*

Markup in-store received by—		Examples
Truck	Rail or barge	
$0.09¼	$0.03¼	Feed grain program domestic PIK certificate minimums: Hale County, Tex. ($1.59) 115 percent +$0.06¾; $1.92¾. Kansas City, Mo. (ex-rail) ($1.85) 115 percent +$0.05¼; $2.18¼. Agricultural Act of 1949; stat. minimums: Hale County, Tex. ($1.59+$0.34); 105 percent +$0.09¼; $2.12¾. Kansas City, Mo. (ex-rail) ($1.85+$0.34); 105 percent +$0.05¼; $2.35¼.

Export. Sales are made at the higher of the domestic market price, as determined by CCC, or 115 percent of the applicable 1967 price-support loan rate plus carrying charges in section C. The statutory minimum price referred to in the price adjustment provisions of the following export sales announcements is 105 percent of the applicable price-support rate plus the markup referred to in C of the unrestricted use section for grain sorghum. Sales will be made pursuant to the following announcements:

A. Announcement GR-368 (Revision 2, Mar. 1, 1965, as amended), for export commodity certificate redemption.

B. Anonuncement GR-212 (Revision 2, Jan. 9, 1961) for application to barter contracts entered into pursuant to invitations for barter offers dated prior to 3:30 p.m., e.d.t., on August 26, 1966, and for cash or other designated sales.

Available. Evanston, Kansas City, Minneapolis, and Portland ASCS grain offices.

BARLEY, BULK

Unrestricted use.

A. *Storable.* Market price, as determined by CCC, but not less than 115 percent of the applicable 1967 price-support rate [2] for the class, grade, and quality of the barley plus the applicable markup.

B. *Markups and examples (dollars per bushel in-store [1] No. 2 or better).*

Markup in-store received by—		Example:
Truck	Rail or barge	
$0.10	$0.07½	Cass County, N. Dak. ($0.87); 115 percent +$0.10; $1.11. Minneapolis, Minn. (ex-rail) ($1.10); 115 percent +$0.07½; $1.34½.

C. *Nonstorable.* At not less than market price as determined by CCC.

Export. Sales are made at the higher of the domestic market price, as determined by CCC, or 115 percent of the applicable 1967 price-support loan rate plus carrying charges in section B. The statutory minimum price referred to in the price adjustment provisions of the following export sales announcement is 105 percent of the applicable price-support rate plus the markup referred to in B of the unrestricted use section for barley. Sales will be made pursuant to the following announcements:

A. Announcement GR-368 (Revision 2, Mar. 1, 1965, as amended), for export commodity certificate redemption.

B. Announcement GR-212 (Revision 2, Jan. 9, 1961) for cash or other designated sales.

Available. Kansas City, Evanston, Portland, and Minneapolis grain offices.

OATS, BULK

Unrestricted use.

A. Market price, as determined by CCC, but not less than 115 percent of the applicable 1967 price-support rate [2] for the class, grade, and quality of the oats plus the markup shown in B below.

B. *Markups and examples (dollars per bushel in-store [1] basis No. 2 XHWO).*

Markup in-store received by—	Examples—Agricultural Act of 1949; Stat. minimum
Truck	
$0.10	Redwood County, Minn. ($0.60+$0.03 quality differential); 115 percent +$0.10; $0.83.

C. *Nonstorable.* At not less than the market price as determined by CCC.

Export. Sales are made at the higher of the domestic market price, as determined by CCC, or 115 percent of the applicable 1967 price-support loan rate plus carrying charges in section B. The statutory minimum price referred to in the price adjustment provisions of the following export sales announcements is 105% of the applicable price-support rate plus the markup referred to in B of the unrestricted use section for oats. Sales will be made pursuant to the following announcements.

A. Announcement GR-368 (Revision 2, Mar. 1, 1965, as amended), for export commodity certificate redemption.

B. Announcement GR-212 (Revision 2, Jan. 9, 1961), for application to barter contracts and for cash or other designated sales.

Available. Kansas City, Evanston, Minneapolis, and Portland ASCS grain offices.

RYE, BULK

Unrestricted use.

A. *Storable.* Market price, as determined by CCC, but not less than the Agricultural Act of 1949 formula price which is 115 percent [2] of the applicable 1967 price-support rate for the class, grade, and quality of the grain plus the markup shown in B below applicable to the type of carrier involved.

B. *Markups and examples (dollars per bushel in-store [1] No. 2 or better).*

Markup in-store received by—		Examples—Agricultural Act of 1949: Stat. minimum
Truck	Rail or barge	
$0.010	$0.07½	Rolette County, N. Dak. ($0.90); 115 percent +$0.10; $1.14. Minneapolis, Minn. (ex-rail) ($1.23); 115 percent +$0.07½; $1.49½.

C. *Nonstorable.* At not less than market price as determined by CCC.

Export. Sales are made at the higher of the domestic market price, as determined by CCC, or 115 percent of the applicable 1967 price-support loan rate plus carrying charges in section B. The statutory minimum price referred to in the price adjustment provisions of the following export sales announcement is 105 percent of the applicable price-support rate plus the markup referred to in B of the unrestricted use section for rye. Sales will be made pursuant to the following announcements:

A. Announcement GR-368 (Revision 2, Mar. 1, 1965, as amended), for export commodity certificate redemption.

B. Announcement GR-212 (Revision 2, Jan. 9, 1961) for cash or other designated sales.

Available. Evanston, Kansas City, Portland, and Minneapolis ASCS grain offices.

RICE, ROUGH

Unrestricted use.

Market price but not less than 1967 loan rate plus 5 percent plus 22 cents per hundredweight, basis in store.

Export. As milled or brown under Announcement GR-369, Revision III, as amended, Rice Export Program.

Available. Prices, quantities, and varieties of rough rice available from Kansas City ASCS Commodity Office.

COTTON, UPLAND

Unrestricted use.

A. Competitive offers under the terms and conditions of Announcement NO-C-32 (Sale of Upland Cotton for Unrestricted Use). Under this announcement, upland cotton acquired under price-support programs will be sold at the highest price offered but in no event at less than the higher of (a) 110 percent of the current loan rate for such cotton, or (b) the market price for such cotton, as determined by CCC.

B. Competitive offers under the terms and conditions of Announcement NO-C-31 (Disposition of Upland Cotton—In Redemption of Payment-In-Kind Certificates or Rights

in Certificate Pools, In Redemption of Export Commodity Certificates, Against the "Shortfall," and Under Barter Transactions), as amended. Cotton may be acquired at its current market price, as determined by CCC, but not less than a minimum price determined by CCC which will in no event be less than 120 points (1.2 cents per pound) above the loan rate for such cotton.

Export.

CCC disposals for barter. Competitive offers under the terms and conditions of Announcements CN-EX-28 (Acquisition of Upland Cotton for Export under the Barter Program) and NO-C-31 (described above), as amended.

COTTON, EXTRA LONG STAPLE

Unrestricted use.

Competitive offers under the terms and conditions of Announcements NO-C-6 (Revised July 22, 1960), as amended, and NO-C-10, as amended. Under these announcements extra long staple cotton (domestically grown) will be sold at the highest price offered but in no event at less than the higher of (a) 115 percent of the current support price for such cotton plus reasonable carrying charges, or (b) the domestic market price as determined by CCC.

Export.

A. *CCC sales for export.* Competitive offers under the terms and conditions of Announcements CN-EX-22 (Extra Long Staple Cotton Export Program) and NO-C-27 (Sale of Extra Long Staple Cotton), as amended.

B. *Barter.* Competitive offers under the terms and conditions of Announcement CN-EX-27 (Acquisition of Extra Long Staple Cotton for Export under the Barter Program), and NO-C-27 (Sale of Extra Long Staple Cotton), as amended.

COTTON, UPLAND OR EXTRA LONG STAPLE

Unrestricted use.

A. Competitive offers under the terms and conditions of Announcement NO-C-18 (Sale of Cotton—To Establish Claims). Any such cotton will be offered for sale periodically on the basis of samples representing the cotton for the purpose of establishing claims against producers and others according to schedules issued from time to time by CCC.

B. Competitive offers under the terms and conditions of Announcement NO-C-20 (Sale of Special Condition Cotton). Any such cotton (Below Grade, Sample Loose, Damaged Pickings, etc.) owned by CCC will be offered for sale periodically on the basis of samples representing the cotton according to schedules issued from time to time by CCC.

Availability information.

Sale of cotton will be made by the New Orleans ASCS Commodity Office. Sales announcements, related forms and catalogs for upland cotton and extra long staple cotton showing quantities, qualities and location may be obtained for a nominal fee from that office.

PEANUTS, SHELLED

When stocks are available in their area of responsibility, the quantity, type, and grade offered and whether for restricted or unrestricted use are announced in weekly lot lists or invitations to bid issued by the following:

GFA Peanut Association, Camilla, Ga.

Peanut Growers Cooperative Marketing Association, Franklin, Va.

Southwestern Peanut Growers' Association, Gorman, Tex.

A. *Restricted use sales.* Announcement PR-1 as amended, and the lot list contain terms and conditions of sales restricted to domestic crushing or export.

1. Shelled peanuts of less than U.S. No. 1 grade may be purchased for foreign or domestic crushing.

2. U.S. Medium, Virginia type may be purchased for export only.

3. Farmers stock peanuts may be purchased for domestic crushing or for export of U.S. No. 1 or better shelled peanuts. All peanuts of less than U.S. No. 1 quality must be crushed domestically.

All sales are made on the basis of competitive bids each Wednesday, by the Producer Associations Division, Agriculutural Stabilization and Conservation Service, Washington, D.C. 20250, to which all bids are submitted.

TUNG OIL

Unrestricted use.

Sales are made periodically on a competitive bid basis. Bids are submitted to the Producer Associations Division, Agricultural Stabilization and Conservation Service, Washington, D.C. 20250.

The quantity offered and the date bids are to be received are announced to the trade in notices of Invitation to Bid, issued by the National Tung Oil Marketing Cooperative, Inc., Poplarville, Miss. 39470.

Terms and conditions of sale are as set forth in Announcement NTOM-PR-4 of April 6, 1967, as amended, and the applicable Invitation to Bid.

Bids will include, and be evaluated on the basis of, price offered per pound f.o.b. storage location. For certain destinations, CCC will as provided in the Announcement, as amended, refund to the buyer a "freight equalization" allowance.

Copies of the Announcement or the Invitation may be obtained from the Cooperative or Producer Associations Division, ASCS, telephone Washington, D.C., area code 202, DU 8-3901.

FLAXSEED, BULK

Unrestricted use.

A. *Storable.* Domestic market price but not less than the applicable 1967 support price for the class, grade, and quality of flaxseed plus 14½ cents per bushel, and plus the respective markup shown in B below applicable to the type of carrier involved.

B. *Markups and examples (dollars per bushel in-store* [1]*)*

Markup per bushel received by—		Examples of minimum prices (ex-rail or barge)		
Truck	Rail or barge	Terminal	Class and grade	Price
Cents $0.12	*Cents* $0.07½	Minneapolis...	No. 1.....	$3.37½

C. *Nonstorable.* At not less than domestic market price as determined by CCC.

Available. Through the Minneapolis ASCS commodity office.

DAIRY PRODUCTS

Sales are in carlots only in-store at storage location of products.

Submission of offers. Submit offers to the Minneapolis ASCS Commodity Office.

NONFAT DRY MILK

Unrestricted use.

Announced prices, under MP-14: Spray process, U.S. Extra Grade, 21.60 cents per pound.

BUTTER

Unrestricted use.

Announced prices, under MP-14: 74.0 cents per pound—New York, Pennsylvania, New Jersey, New England, and other States bordering the Atlantic Ocean and Gulf of Mexico. 73.25 cents per pound—Washington, Oregon, and California. All other States 73.0 cents per pound.

CHEDDAR CHEESE (STANDARD MOISTURE BASIS)

Unrestricted use.

Announced prices, under MP-14: 49.125 cents per pound—New York, Pennsylvania, New England, New Jersey, and other States bordering the Atlantic Ocean and Pacific Ocean and the Gulf of Mexico. All other States 48.125 cents per pound.

FOOTNOTES

[1] The formula price delivery basis for bin site sales will be f.o.b.

[2] Round product up to the nearest cent.

USDA AGRICULTURAL STABILIZATION AND CONSERVATION SERVICE OFFICES

GRAIN OFFICES

Kansas City ASCS Commodity Office, 8930 Ward Parkway (Post Office Box 205), Kansas City, Mo. 64141. Telephone: Emerson 1-0660.

Alabama, Alaska, Arizona, Arkansas, Colorado, Florida, Georgia, Hawaii, Kansas, Louisiana, Mississippi, Missouri, Nebraska, Nevada, New Mexico, North Carolina, Oklahoma, South Carolina, Tennessee, Texas, and Wyoming (domestic and export), California (domestic only).

Branch Office—Evanston ASCS Branch Office, 2201 Howard Street, Evanston, Ill. 60202. Telephone: Long Distance—University 9-0600 (Evanston Exchange), Local—Rogers Park 1-5000 (Chicago, Ill.).

Connecticut, Delaware, Illinois, Indiana, Iowa, Kentucky, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Virginia, Vermont, and West Virginia.

Branch Office—Minneapolis ASCS Branch Office, 310 Grain Exchange Building, Minneapolis, Minn. 55415. Telephone: 334-2051.

Minnesota, Montana, North Dakota, South Dakota, and Wisconsin.

Branch Office—Portland ASCS Branch Office, 1218 Southwest Washington Street, Portland Oreg. 97205. Telephone: 226-3361.

Idaho, Oregon, Utah, and Washington (domestic and export sales), California (export sales only).

PROCESSED COMMODITIES OFFICE (ALL STATES)

Minneapolis ASCS Commodity Office, 6400 France Avenue, South, Minneapolis, Minn. 55435. Telephone: Area Code 612, 334-3200.

COTTON OFFICES (ALL STATES)

New Orleans ASCS Commodity Office, Wirth Building, 120 Marais Street, New Orleans, La. 70112. Telephone: 527-7766.

GENERAL SALES MANAGER OFFICES

Representative of General Sales Manager, New York Area: Joseph Reidinger, 80 Lafayette Street, New York, N.Y. 10013. Telephone: 264-8439, 8440, 8441.

Representative of General Sales Manager, West Coast Area: Callan B. Duffy, Appraisers' Building, Room 802, 630 Sansome Street, San Francisco, Calif. 94111. Telephone: 556-6185.

ASCS STATE OFFICES

Illinois, Room 232, U.S. Post Office and Courthouse, Springfield, Ill. 62701. Telephone: Area Code 217, 525-4180.

Indiana, Room 110, 311 West Washington Street, Indianapolis, Ind. 46204. Telephone: Area Code 317, 633-8521.

Iowa, Room 311, Iowa Building, 505 Sixth Avenue, Des Moines, Iowa 50307. Telephone: Area Code 515, 284-4213.

Kansas, 2601 Anderson Avenue, Manhattan, Kans. 66502. Telephone: Area Code 913, JE 9-3531.

Michigan, 1405 South Harrison Road, East Lansing, Mich. 48823, Telephone: Area Code 517, 372-1910.

Missouri, I.O.O.F. Building, 10th and Walnut Streets, Columbia, Mo. 65201. Telephone: Area Code 314, 442-3111.

Minnesota, Griggs Midway Building, 1821 University Avenue, St. Paul, Minn. 55104. Telephone: Area Code 612, 228-7651.

Montana, Post Office Box 670, U.S.P.O. and Federal Office Building, Bozeman, Mont. 59715. Telephone: Area Code 587, 4511, Ext. 3271.

Nebraska, Post Office Box 793, 5801 O Street, Lincoln, Nebr. 68501. Telephone: Area Code 402, 475-3361.

North Dakota, Post Office Box 2017, 15 South 21st Street, Fargo, N. Dak. 58103, Telephone: Area Code 701, 237-5205.

Ohio, Room 202, Old Federal Building, Columbus, Ohio 43215. Telephone: Area Code 614, 469-5644.

South Dakota, Post Office Box 843, 239 Wisconsin Street SW., Huron, S. Dak. 57350. Telephone: Area Code 605, 352-8651, Ext. 321 or 310.

Wisconsin, Post Office Box 4248, 4601 Hammersley Road, Madison, Wis. 53711. Telephone: Area Code 608, 256-4441, Ext. 7535.

(Sec. 4, 62 Stat. 1070, as amended; 15 U.S.C. 714b. Interpret or apply sec. 407, 63 Stat. 1066; sec. 105, 63 Stat. 1051, as amended by 76 Stat. 612; secs. 303, 306, 307, 76 Stat. 614-617; 7 U.S.C. 1441 (note))

Signed at Washington, D.C. on October 31, 1967.

H. D. GODFREY,
Executive Vice President,
Commodity Credit Corporation.

[F.R. Doc. 67-13085; Filed, Nov. 6, 1967; 8:45 a.m.]

Federal Crop Insurance Corporation

[Notice 29]

CITRUS CROPS IN ARIZONA-DESERT VALLEY

Extension of Closing Date for Filing of Applications for 1967 Crop Year

Pursuant to the authority contained in § 409.22 of Title 7 of the Code of Federal Regulations, and pursuant to paragraph 1 of the resolution adopted by the Board of Directors of the Federal Crop Insurance Corporation on March 19, 1954, the time for filing applications for citrus crop insurance for the 1967 crop year in Maricopa and Yuma Counties, Ariz., and Riverside County, Calif., where such insurance is otherwise authorized to be offered is hereby extended until the close of business on November 30, 1967. Such applications received during this period will be accepted only after it is determined that no adverse selectivity will result.

ROSS A. DIMOCK,
Acting Manager,
Federal Crop Insurance Corporation.

[F.R. Doc. 67-13160; Filed, Nov. 6, 1967; 8:50 a.m.]

DEPARTMENT OF COMMERCE

Business and Defense Services Administration

HARVARD UNIVERSITY

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 68-00012-33-46040. Applicant: Harvard University, Purchasing Department, 75 Mount Auburn Street, Cambridge, Mass. 02138. Article: Electron Microscope, Norelco Model EM-300. Manufacturer: Philips Electronics, The Netherlands. Intended use of article: Applicant states:

The electron microscope will be used to study atherosclerosis of arteries obtained at autopsy from humans plus naturally occurring and diet-induced atherosclerosis in monkeys.

Comments: No comments have been received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: (1) The foreign article provides a guaranteed resolution of 5 Angstroms. The only known domestic electron microscope, Model EMU-4, manufactured by the Radio Corporation of America (RCA), has a guaranteed resolution of 8 Angstroms. (The lower the numerical rating in terms of Angstroms, the better the resolving power.) We find that the difference in resolving capabilities is pertinent to the purposes for which the foreign article is intended to be used. (2) The foreign article provides five accelerating voltages, 20, 40, 60, 80, and 100 kilovolts, whereas the RCA Model EMU-4 provides only two accelerating voltages. It has been experimentally established that the lower accelerating voltages provide optimum contrast for unstained specimens and that the accelerating voltages intermediate between 50 and 100 kilovolts provide optimum contrast for negatively stained specimens. Since the purposes for which the foreign article is intended to be used include investigations of both unstained and negatively stained biological specimens, we find the additional accelerating voltages provided by the foreign article to be pertinent.

For the foregoing reasons, we find that the RCA Model EMU-4 is not of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used.

The Department of Commerce knows of no other instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, which is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13091; Filed, Nov. 6, 1967; 8:45 a.m.]

MONTEFIORE HOSPITAL AND MEDICAL CENTER

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 68-00028-00-46040. Applicant: Montefiore Hospital and Medical Center, 111 East 210th Street, Bronx, N.Y. 10467. Article: Shutter for Siemens Electron Microscope Model 171460. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: The shutter will be used for accurate preset exposure of photoplates in the Siemens Elmiskop Electron Microscope. Comments: No comments have been received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope which is designed specifically for use with the foreign electron microscope. We know of no domestic manufacturer that produces a comparable accessory which will fit the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13094; Filed, Nov. 6, 1967; 8:45 a.m.]

STANFORD UNIVERSITY

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No.: 68-00002-00-46040. Applicant: Stanford University, Controller's Office, Encine Hall, Stanford, Calif. 94305. Article: Shutter for Siemens Electron Microscope, type number 171460. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: Applicant states: "Accurate preset exposure of photoplates in the Siemens Elmiskop." Comments: No comments were received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purpose for which such article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope which is designed specifically for use with the foreign electron microscope. We know of no domestic manufacturer that produces a comparable accessory which will fit the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13092; Filed, Nov. 6, 1967; 8:45 a.m.]

STANFORD UNIVERSITY

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 68-00003-00-46040. Applicant: Stanford University, Controller's Office, Post Office Box 4409, Stanford, Calif. 94305. Article: Camera for Electron Microscope, model 70mm Rolfilm, type number 171 023. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: Applicant states: "Taking of pictures inside the Siemens electron microscope." Comments: No comments were received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purpose for which such article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope. We know of no domestic manufacturer that produces a comparable accessory which will fit the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13093; Filed, Nov. 6, 1967; 8:45 a.m.]

UNIVERSITY OF CALIFORNIA

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for pubiic review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 68-00019-00-46040. Applicant: University of California, San Francisco Medical Center, 1434 South 10th Street, Richmond, Calif. 94122. Article: Shutter for Siemens Electron Microscope, Type No. 171,460. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: Applicant states: "Accurate preset exposure of photoplates in the Siemens Elmiskop." Comments: No comments have been received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope which is designed specifically for use with the foreign electron microscope. We know of no domestic manufacturer that produces a comparable accessory which will fit the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13095; Filed, Nov. 6, 1967; 8:45 a.m.]

UNIVERSITY OF CALIFORNIA

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No.: 68-00018-00-46040. Applicant: University of California, San Francisco Medical Center, Purchasing Department, San Francisco, Calif. 94122. Article: Shutter for Siemens Electron Microscope, type No. 171,460. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: Applicant states: "Accurate preset exposure of photoplates in the Siemens Elmiskop." Comments: No comments have been received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope which is designed specifically for use with the foreign electron microscope. We know of no domestic manufacturer that produces a comparable accessory which will fi. the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13096; Filed, Nov. 6, 1967; 8:45 a.m.]

UNIVERSITY OF ROCHESTER

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 68-00029-00-46040. Applicant: University of Rochester, Purchasing Department, Rochester, N.Y. 14627. Article: Accessories for Siemens Electron Microscope consisting of shutter Model 171048, decontamination device 171047, and valve Model 171068. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: These articles are intended to be used as accessories for Siemens Electron Microscope. Comments: No comments have been received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which the foreign article is intended to be used, is being manufactured in the United States. Reasons: The foreign article is an accessory to a Siemens electron microscope which is designed specifically for use with the foreign electron microscope.

We know of no domestic manufacturer that produces a comparable accessory which will fit the Siemens electron microscope.

For the foregoing reasons, we find that no instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13097; Filed, Nov. 6, 1967; 8:45 a.m.]

UNIVERSITY OF WISCONSIN

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No.: 68-00016-33-46500. Applicant: University of Wisconsin, 750 University Avenue, Madison, Wisc. 53706. Article: Reichert Ultramicrotome "Om U2." Manufacturer: C. Reichert Optische Werke A.G., Austria. Intended use of article: Applicant states:

Plant and insect tissue infected with RNA-viruses will be embedded in Epoxy-resins. Radioactive labeling techniques and antibody labeling techniques will be employed to tag virus specific metabolites in cells. Consecutive thick (0.5μ) and thin (600Å) sections of these specimens will be prepared for light and electron microscopy, respectively. The objective of this study is to establish a correlation between structure and function as far as virus synthesis is concerned.

Comments: No comments were received with respect to this application. Decision: Application approved. No instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: The purposes for which the foreign article is intended to be used require a series of ultrathin sections to be produced with consistent accuracy and uniformity. The foreign article incorporates a thermal advance (feed) which allows sections to be produced, which range in thickness down to one Angstrom. The only known comparable domestic instrument, Model MT-2 ultramicrotome manufactured by Ivan Sorvall Inc., employs a mechanical advance which has a minimum thickness capability down to 100 Angstroms. (See Sorvall catalog on MT-1 and MT-2 ultramicrotomes, 1966, page 11.) In the case of a prior application relating to an identical foreign article, we were advised by the Department of Health, Education, and Welfare (HEW), that in the experience of experts working with biological materials, ultramicrotomes equipped with a thermal feed have been proven superior to those equipped only with a mechanical feed. (See Docket No. 67-00052-33-46500 and memorandum from HEW dated July 26, 1967, contained therein.) In cited memorandum, HEW also advised that consistent reproducibility of section thickness is substantially greater when the thermal advance is used than when the advance is achieved through purely mechanical means.

We therefore find that the Sorvall Model MT-2 is not of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used.

The Department of Commerce knows of no other instrument or apparatus of equivalent scientific value to the foreign article, for the purposes for which such article is intended to be used, which is being manufactured in the United States.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-13098; Filed, Nov. 6, 1967; 8:45 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 18388; Order E-25910]

FLYING TIGER LINE, INC.

Order Regarding Application for Certificate of Public Convenience and Necessity

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 1st day of November 1967.

On April 7, 1967, The Flying Tiger Line, Inc. (Flying Tiger), filed an application, Docket 18388, requesting the addition of the following points to its certificate: Atlanta; Baltimore/Washington; Charlotte; Indianapolis; Minneapolis/St. Paul; Nashville; Norfolk; Oklahoma City; St. Louis; and Syracuse. In addition, Flying Tiger filed a motion for expedited hearing on its application. In support of its motion, Flying Tiger contends, in pertinent part, that there has been a considerable change in circumstances since the last all-cargo case (Domestic Cargo-Mail Service Case, 36 CAB 344 (1962)); and that since that case, based largely on 1959 data, there has been a substantial increase in demand for all-cargo services. Thus Flying Tiger states that: (1) All-cargo carrier common carriage has increased from 385.4 million ton-miles in 1959 to over 2 billion[1] in 1966 (Flying Tiger has increased from 86.4 million ton-miles in 1959 to 166.3 million in 1966); (2) since 1959, the number of points contracted for all-cargo service by the Defense Department has more than tripled; (3) the number of cities receiving all-cargo flights has increased from 44 to 66 since 1959. In addition, Flying Tiger contends that its financial posture and that of the other cargo carriers has improved considerably since 1959, and there has been a great improvement in equipment types since that period.

Answers in opposition to Flying Tiger's motion for expedited hearing were filed by Airlift International, Inc., American Airlines, Inc., Delta Air Lines, Inc., Eastern Air Lines, Inc., Northwest Airlines, Inc., Slick Corp., and Trans World Airlines, Inc., and a reply was filed by Flying Tiger.[2]

The trunkline carriers state that: (1) No showing of need for Flying Tiger's

[1] As Eastern Air Lines correctly points out, this figure should be 1,178,199,000 ton-miles.

[2] We will grant Flying Tiger's motion to accept the reply which is an unauthorized document.

services has been shown at any of the points involved; (2) eight[3] of the 11 points applied for are currently receiving all-cargo services and six of these points are receiving service by more than two trunk carriers and in some cases as many as five; (3) the service needs of four of the points in question were examined within the last 2 years (Indianapolis and St. Louis—Orders E–22588, E–23352, E–23872; Atlanta and Charlotte—American Airlines, Cargo Amendment, Docket 6541 et al., Orders E–23456 and E–23457); and (4) contrary to Flying Tiger's allegation that there has been significant change in the profitability in domestic cargo services, Flying Tiger's own profit position has gone from an operating profit of $937,745, on scheduled cargo services for the 11 months ended May 31, 1959, to an operating profit of only $667,536 for the 12 months ended June 30, 1966.

In addition to answers filed by the trunkline carriers, Airlift International and Slick Corp. filed a joint answer in opposition to Flying Tiger's motion. Airlift and Slick state that while they are not opposed to the Board considering the need of additional all-cargo services, they are opposed to the timing and scope of the application to which the motion relates. Airlift and Slick state that the Board is currently processing a large number of all-cargo routes proceedings, foremost of which is the Airlift-Slick Certificate Transfer Case, Docket 17622. In addition to this, Airlift is also an applicant for all-cargo service in 18 major U.S. markets in the Southern Tier Competitive Nonstop Investigation, Docket 18257. Airlift further states that Flying Tiger's application raises major issues of competition between all-cargo carriers. For example, Flying Tiger would be an applicant in seven of the ten Atlanta markets which Airlift serves today with single-plane flights.

Upon consideration of the pleadings and all the relevant facts we have decided to set Flying Tiger's application for hearing. As the applicant points out, the last comprehensive all-cargo service case (the Domestic Cargo-Mail Service Case, 36 CAB 344 (1962)), was based on a record containing data from 1959. Since that time the technology and the economics of the all-cargo industry, as well as the profit positions of the individual carriers, have undergone various changes. Thus, it is clear that since 1959 there has been a considerable change in the type of equipment available for cargo services. Moreover, there has been an increased demand in the last few years for cargo services.

It is evident that the present all-cargo certificated system is essentially noncompetitive and quite limited. Furthermore, the heavy commitment of equipment to military contracts and the limited nature of the all-cargo carriers' authority in relation to that of the combination carriers makes it desirable to consider whether an expansion of all-cargo authority is warranted.

We are mindful of the fact that the Board has in process other proceedings involving issues relating to all-cargo services. Those proceedings, however, principally involve matters unrelated to the issues posed by Flying Tiger's application.[4]

In view of the foregoing, we have decided to set Flying Tiger's application for hearing.

Accordingly, it is ordered, That:

1. The application of the Flying Tiger Line, Inc., Docket 18388, be and hereby is set for hearing before an examiner of the Board at a time and place to be hereafter designated;

2. The motion of the Flying Tiger Line, Inc., for leave to file an unauthorized document be and it hereby is granted; and

3. Motions to consolidate, applications, and motions or petitions seeking modification or reconsideration of this order be filed no later than 20 days after the date of service of this order and that answers to such pleadings be filed no later than 10 days thereafter.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON, *Secretary.*

[F.R. Doc. 67-13151; Filed, Nov. 6, 1967; 8:50 a.m.]

[3] At the time of the carrier's filing, Apr. 18, 1967, there were only eight. However, since that time Oklahoma City began receiving service from Braniff and Syracuse began receiving service from Mohawk.

[4] The Airlift-Slick Acquisition Case, Docket 17622, does not involve new route applications pursuant to sec. 401(a) of the Act; the Domestic Coterminal Points-Europe All-Cargo Investigation, Docket 18531, involves questions of service to interior and west coast points from the European countries named in Seaboard's certificate; the Southern Tier Competitive Nonstop Investigation, Docket 18257, involves only two markets in which Flying Tiger has herein requested authority, i.e., Atlanta-Los Angeles and Atlanta-San Francisco.

FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 17834; FCC 67M-1844]

BETTERVISION SYSTEMS, INC.

Order Scheduling Hearing

In re cease and desist order to be directed against Bettervision Systems, Inc., owner and operator of a CATV System at Buckhannon, W. Va.; Docket No. 17834.

It is ordered, That David I. Kraushaar shall serve as Presiding Officer in the above-entitled proceeding; that the hearings therein shall be convened on December 6, 1967, at 10 a.m.; and that a prehearing conference shall be held on November 15, 1967, commencing at 9 a.m.: *And, it is further ordered*, That all proceedings shall take place in the offices of the Commission, Washington, D.C.

Issued: October 30, 1967.

Released: October 31, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE, *Secretary.*

[F.R. Doc. 67-13153; Filed, Nov. 6, 1967; 8:50 a.m.]

[Docket Nos. 17144, 17155; FCC 67M-1851]

GENERAL ELECTRIC CABLEVISION CORP.

Order Regarding Procedural Dates

In re petitions of General Electric Cablevision Corp., Peoria, Ill., Docket No. 17144, File No CATV 100-25; General Electric Cablevision Corp., Peoria Heights and Bartonville, Ill., Docket No. 17155, File No. CATV 100-59; for authority pursuant to § 74.1107 of the rules to operate CATV systems in the Peoria television market.

It is ordered, That the unopposed petition for modification of procedural dates filed on October 30, 1967, by counsel for General Electric Cablevision Corp., is granted (subject to the representations in Par. 5 of GE's petition filed Sept. 13, 1967). Procedural dates are further extended as follows:

GE to furnish direct affirmative written case to counsel for other parties and to Hearing Examiner from October 31 to December 4, 1967;

Receipt of notification of GE witnesses for cross-examination from November 14 to December 18, 1967;

Hearing from November 27, 1967, to January 15, 1968.

Issued: October 31, 1967.

Released: November 1, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE, *Secretary.*

[F.R. Doc. 67-13154; Filed, Nov. 6, 1967; 8:50 a.m.]

[Docket Nos. 17431, 17432; FCC 67M-1849]

INDUSTRIAL COMMUNICATIONS SYSTEMS, INC.

Order Regarding Procedural Dates

In re applications of Industrial Communications Systems, Inc., Docket No. 17431, File No. 5444-C1-P-66, for a construction permit to establish a new station in the Domestic Public Point-to-Point Microwave Radio Service at Los Angeles, Calif.; for a construction permit to establish a new station in the Domestic Public Point-to-Point Microwave Radio Service at Santiago Peak, Calif., Docket No. 1732, File No. 5445-C1-P-66.

On October 30, 1967, counsel for Industrial Communications Systems, Inc., filed a motion for continuance of the hearing for at least 60 days from November 8, 1967, the scheduled date. The motion is unopposed.

In addition to continuing the hearing, as requested, on his own motion the Hearing Examiner is setting up the following procedural dates:

Parties to furnish direct affirmative case exhibits on issues on which each has burden of proof to counsel for other parties and Hearing Examiner by December 29, 1967;

Receipt of notification of witnesses desired for cross-examination by January 12, 1968;

Hearing on January 30, 1968 (rescheduled from November 8, 1967).

So ordered.

Issued: October 31, 1967.

Released: October 31, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-13156; Filed, Nov. 6, 1967; 8:50 a.m.]

[Docket No. 17722; FCC 67M-1861]

FARNELL O'QUINN

Order Continuing Hearing

In re application of Farnell O'Quinn, Statesboro, Ga., Docket No. 17722, File No. BP-17351; for Construction Permit.

Pursuant to a hearing conference as of this date, and for the reasons stated on the record: *It is ordered,* That all procedural dates heretofore scheduled are canceled; and

It is further ordered, That the hearing now scheduled for December 18, 1967, be and the same is hereby continued without date.

Issued: November 2, 1967.

Released: November 2, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 61-13155; Filed, Nov. 6, 1967; 8:50 a.m.]

[Docket No. 17560; FCC 67M-1847]

V.W.B., INC.

Order Continuing Prehearing Conference

In re application of V.W.B., Inc., Bridgeton, N.C., Docket No. 17560, File No. BP-16766; for Construction Permit.

It is ordered, On the Hearing Examiner's own motion, that the further prehearing conference now scheduled for November 13, 1967, is hereby rescheduled to commence at 10 a.m., November 27, 1967, in the Commission's offices in Washington, D.C.

Issued: October 31, 1967.

Released: October 31, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-13157; Filed, Nov. 6, 1967; 8:50 a.m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-3609 etc.]

ELVA ARMER ET AL.

Findings and Orders

OCTOBER 30, 1967.

Findings and orders after statutory hearing issuing certificates of public convenience and necessity, amending certificates, permitting and approving abandonment of service, terminating certificate, making successors co-respondents, redesignating proceedings, requiring filing of agreements and undertakings, accepting agreement and undertaking for filing, and accepting related rate schedules and supplements for filing.

Each of the Applicants listed herein has filed an application pursuant to section 7 of the Natural Gas Act for a certificate of public convenience and necessity authorizing the sale and delivery of natural gas in interstate commerce, for permission and approval to abandon service, or a petition to amend an existing certificate authorization, all as more fully described in the respective applications and petitions (and any supplements or amendments thereto) which are on file with the Commission.

The Applicants herein have filed related FPC gas rate schedules and propose to initiate or abandon, add or delete natural gas service in interstate commerce as indicated by the tabulation herein. All sales certificated herein are at rates either equal to or below the ceiling prices established by the Commission's statement of general policy No. 61-1, as amended, or involve sales for which permanent certificates have been previously issued.

Elva Armer et al., Applicants in Docket No. G-3609, propose to continue that part of the sale of natural gas heretofore authorized in said docket to be made by Lee Drilling Co. pursuant to W. G. Haun and Lee Drilling Co. FPC Gas Rate Schedule No. 1. Said rate schedule will be redesignated as that of W. G. Haun and Elva Armer, et al. The presently effective rate under said rate schedule is in effect subject to refund in Docket No. RI65-484. A prior increased rate was collected for a locked-in period subject to refund in Docket No. RI60-388. Applicants have submitted an agreement and undertaking to assure the refund of any amounts collected by them in excess of the amount determined to be just and reasonable in Docket No. RI65-484. Therefore, Applicants will be made co-respondents in said proceeding, said proceeding will be redesignated accordingly, and the agreement and undertaking will be accepted for filing.

Clarke Corp. (Operator) et al., Applicant in Docket No. G-12143, proposes to continue the sale of natural gas heretofore authorized in said docket to be made pursuant to Jay Kornfeld (Operator) et al., FPC Gas Rate Schedule No. 2. Said rate schedule will be redesignated as that of Applicant. The presently effective rate under said rate schedule is in effect subject to refund in Docket No. RI60-249. Therefore, Applicant will be made co-respondent in said proceeding, said proceeding will be redesignated accordingly, and Applicant will be required to file an agreement and undertaking to assure the refund of any amounts collected by it in excess of the amount determined to be just and reasonable in said proceeding.

Westmore Drilling Co., Inc. (Operator) et al., Applicant in Docket No. CI61-227, proposes to continue the sale of natural gas heretofore authorized in said docket to be made pursuant to D. W. Skinner (Operator) et al., FPC Gas Rate Schedule No. 2. Said rate schedule will be redesignated as that of Applicant. The presently effective rate under said rate schedule is in effect subject to refund in Docket No. RI61-75. Therefore, Applicant will be made co-respondent in said proceeding, said proceeding will be redesignated accordingly, and Applicant will be required to file an agreement and undertaking to assure the refund of any amounts collected by it in excess of the amount determined to be just and reasonable in said proceeding.

The Commission's staff has reviewed each application and recommends each action ordered as consistent with all substantive Commission policies and required by the public convenience and necessity.

After due notice, no petitions to intervene, notices of intervention, or protests to the granting of any of the respective applications or petitions in this order have been received.

At a hearing held on October 26, 1967, the Commission on its own motion received and made a part of the record in these proceedings all evidence, including the applications, amendments, and exhibits thereto, submitted in support of the respective authorizations sought herein, and upon consideration of the record,

The Commission finds:

(1) Each Applicant herein is a "natural-gas company" within the meaning of the Natural Gas Act as heretofore found by the Commission or will be engaged in the sale of natural gas in interstate commerce for resale for ultimate public consumption, subject to the jurisdiction of the Commission, and will, therefore, be a "natural-gas company" within the meaning of said Act upon the commencement of the service under the respective authorization granted hereinafter.

(2) The sales of natural gas hereinbefore described, as more fully described in the respective applications, amendments and/or supplements herein, will be made in interstate commerce, subject to the jurisdiction of the Commission and such sales by the respective Applicants, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary therefor, are subject to the requirements of subsections (c) and (e) of section 7 of the Natural Gas Act.

(3) The respective Applicants are able and willing properly to do the acts and to perform the services proposed and to conform to the provisions of the Natural Gas Act and the requirements, rules, and

regulations of the Commission thereunder.

(4) The sales of natural gas by the respective Applicants, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary therefor, are required by the public convenience and necessity and certificates therefore should be issued as hereinafter ordered and conditioned.

(5) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act and the public convenience and necessity require that the certificate authorizations heretofore issued by the Commission in Docket Nos. G–3609, G–11969, G–12143, G–12988, G–17009, CI61–227, CI65–522, CI66–1079, and CI67–159 should be amended as hereinafter ordered and conditioned.

(6) The sale of natural gas proposed to be abandoned by Applicant in Docket No. CI68–114, as hereinbefore described and as more fully described in the application and in the tabulation herein is subject to the requirements of subsection (b) of section 7 of the Natural Gas Act, and such abandonment should be permitted and approved as hereinafter ordered.

(7) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that the certificate heretofore issued in Docket No. G–18276 should be terminated.

(8) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Elva Armer et al., should be co-respondents in the proceeding in Docket No. RI65–484, that said proceeding should be redesignated accordingly, and that the agreement and undertaking submitted by them in said proceeding should be accepted for filing.

(9) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Clarke Corp. (Operator) et al., should be co-respondent in the proceeding in Docket No. RI60–249, that said proceeding should be redesignated accordingly, and that Clarke Corp. (Operator) et al., should be required to file an agreement and undertaking.

(10) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Westmore Drilling Co., Inc. (Operator), et al., should be co-respondent in the proceeding in Docket No. RI61–75, that said proceeding should be redesignated accordingly, and that Westmore Drilling Co., Inc. (Operator), et al., should be required to file an agreement and undertaking.

(11) It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that the respective related rate schedules and supplements as designated in the tabulation herein should be accepted for filing as hereinafter ordered.

The Commission orders:

(A) Certificates of public convenience and necessity are issued upon the terms and conditions of this order, authorizing the sales by the respective Applicants herein of natural gas in interstate commerce for resale, together with the construction and operation of any facilities subject to the jurisdiction of the Commission necessary for such sales, all as hereinbefore described and as more fully described in the respective applications, amendments, supplements, and exhibits in this proceeding.

(B) The certificates granted in paragraph (A) above are not transferable and shall be effective only so long as Applicants continue the acts or operations hereby authorized in accordance with the provisions of the Natural Gas Act and the applicable rules, regulations, and orders of the Commission.

(C) The grant of the certificates issued in paragraph (A) above shall not be construed as a waiver of the requirements of section 4 of the Natural Gas Act or of Part 154 or Part 157 of the Commission's regulations thereunder, and is without prejudice to any findings or orders which have been or may hereafter be made by the Commission in any proceedings now pending or hereafter instituted by or against the respective Applicants. Further, our action in this proceeding shall not foreclose nor prejudice any future proceedings or objections relating to the operation of any price or related provisions in the gas purchase contracts herein involved. Nor shall the grant of the certificates aforesaid for service to the particular customers involved imply approval of all of the terms of the respective contracts particularly as to the cessation of service upon termination of said contracts, as provided by section 7(b) of the Natural Gas Act. Nor shall the grant of the certificates aforesaid be construed to preclude the imposition of any sanctions pursuant to the provisions of the Natural Gas Act for the unauthorized commencement of any sales of natural gas subject to said certificates.

(D) The grant of the certificates issued herein on all applications filed after July 1, 1967, is upon the condition that no increase in rate which would exceed the ceiling prescribed for the given area by paragraph (d)(3) of the Commission's statement of general policy No. 61–1, as amended, shall be filed prior to the applicable date as indicated by footnote 9 in the tabulation set forth below.

(E) The certificate issued herein in Docket No. CI68–139 is subject to the following conditions:

(1) The initial rate shall not exceed 15 cents per Mcf at 14.65 p.s.i.a., including tax reimbursement, plus B.t.u. adjustment; however,

(2) In the event the Commission, by amendment of its policy statement No. 61–1, adjusts the boundary between the Panhandle area and the "Other" Oklahoma area so as to increase the initial wellhead price for new gas in the area of the sale involved herein, Applicant may thereupon substitute the new rate reflecting the amount of such increase, and thereafter collect the new rate prospectively in lieu of the initial rate herein required.

(F) The acceptance for filing of the related rate filings in Docket Nos. CI68–105 and CI68–140 is contingent upon Applicants' filing three copies each of an estimated billing statement as required by the regulations under the Natural Gas Act.

(G) Applicant in Docket No. CI68–138 shall submit three copies of a sample billing statement for a month's service as required by the regulations under the Natural Gas Act.

(H) Certificates are issued herein in Docket Nos. CI68–135 and CI68–145 authorizing the respective Applicants to continue the sales of natural gas which were initiated without prior Commission authorization.

(I) The certificates heretofore issued in Docket Nos. G–17009 and CI67–159 are amended by adding thereto or deleting therefrom authorization to sell natural gas to the same purchasers and in the same areas as covered by the original authorizations pursuant to the rate schedule supplements as indicated in the tabulation herein.

(J) The certificates heretofore issued in Docket Nos. G–11969, G–12988, and CI65–522 are amended by deleting therefrom authorization to sell natural gas from acreage assigned to Applicants in Docket Nos. CI68–105, CI68–119, and CI68–116, respectively.

(K) The certificate heretofore issued in Docket No. CI66–1079 is amended to reflect the change in name from Alma Oringderff Schaefer to Alma Oringderff Schaefer, doing business as Alma Oringderff.

(L) The certificates heretofore issued in Docket Nos. G–3609, G–12143, and CI61–227 are amended by changing the certificate holders to the respective successors in interest as indicated in the tabulation herein.

(M) The related FPC Gas Rate Schedule No. 1 of W. G. Haun and Lee Drilling Co., in Docket No. G–3609, is redesignated as W. G. Haun and Elva Armer, et al., FPC Gas Rate Schedule No. 1, as supplemented.

(N) Permission for and approval of the abandonment of service by Applicant in Docket No. CI68–114, as hereinbefore described, all as more fully described in the application and in the tabulation herein, are granted.

(O) The certificate heretofore issued in Docket No. G–18276 is terminated.

(P) Elva Armer et al., shall be co-respondents in the proceeding pending in Docket No. RI65–484, said proceeding is redesignated accordingly,[1] and the agreement and undertaking submitted by them in said proceeding is accepted for filing.

(Q) Elva Armer et al., shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder and the agreement and undertaking submitted by them in Docket No. RI65–484 shall remain in full force and effect until discharged by the Commission.

---

[1] W. G. Haun, Lee Drilling Co. and Elva Armer, et al.

(R) Clarke Corp. (Operator) et al., shall be a co-respondent in the proceeding pending in Docket No. RI60–249 and said proceeding is redesignated accordingly.[2]

(S) Within 30 days from the issuance of this order Clarke Corp. (Operator) et al., shall execute, in the form set out below, and shall file with the Secretary of the Commission an acceptable agreement and undertaking in Docket No. RI60–249 to assure the refund of any amounts collected by it, together with interest at the rate of 7 percent per annum, in excess of the amount determined to be just and reasonable in said proceeding. Unless notified to the contrary by the Secretary of the Commission within 30 days from the date of submission, such agreement and undertaking shall be deemed to have been accepted for filing.

(T) Clarke Corp. (Operator) et al., shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, and the agreement and undertaking filed by it in Docket No. RI60–249 shall remain in full force and effect until discharged by the Commission.

(U) Westmore Drilling Co., Inc. (Operator), et al., shall be a co-respondent in the proceeding pending in Docket No. RI61–75 and said proceeding is redesignated accordingly.[3]

(V) Within 30 days from the issuance of this order, Westmore Drilling Co., Inc. (Operator), et al., shall execute, in the form set out below, and shall file with the Secretary of the Commission an acceptable agreement and undertaking in Docket No. RI61–75 to assure the refund of any amounts collected by it, together with interest at the rate of 7 percent per annum, in excess of the amount determined to be just and reasonable in said proceeding. Unless notified to the contrary by the Secretary of the Commission within 30 days from the date of submission, such agreement and undertaking shall be deemed to have been accepted for filing.

(W) Clarke Corp. (Operator) et al., shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, and the agreement and undertaking filed by it in Docket No. RI61–75 shall remain in full force and effect until discharged by the Commission.

(X) The respective related rate schedules and supplements as indicated in the tabulation herein are accepted for filing; further, the rate schedules relating to the successions herein are accepted and redesignated, subject to the applicable Commission regulations under the Natural Gas Act, to be effective on the dates as indicated in the tabulation herein.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

Docket No. and date filed	Applicant	Purchaser, field, and location	FPC rate schedule to be accepted		
			Description and date of document	No.	Supp.
G–3609 E 6–21–67	Elva Armer et al.[4] (successor to Lee Drilling Co.).	Zenith Natural Gas Co., Aetna Gas Field, Barber County, Kans.	W. G. Haun and Lee Drilling Co., FPC GRS No. 1.[4]	1	.....
			Supplement Nos. 1–5	1	1–5
			Notice of succession (Undated).	.....	.....
			Assignment 3–31–67.[3]	1	6
			Effective date: 4–1–67	.....	.....
G–12143.[5] E 8–8–67	Clarke Corp. (Operator) et al. (successor to Jay Kornfeld (Operator) et al.).	Cities Service Gas Co., McGuire-Goeman Gas Field, Barber County, Kans.	Jay Kornfeld (Operator) et al., FPC GRS No. 2.	1	.....
			Supplement No. 1	1	1
			Notice of succession 8–3–67.	.....	.....
			Assignment 7–27–67.[3]	1	2
			Effective date: 7–23–67	.....	.....
G–17009 D 7–19–67	Graham-Michaelis Drilling Co. (Operator) et al. (partial abandonment).	Phillips Petroleum Co., Hugoton Field, Texas County, Okla.	Notice of partial cancellation 7–17–67.[4][6]	28	4
D 7–19–67	.....	....do.....	Notice of partial cancellation 7–17–67.[4][6]	28	5
CI61–227 E 8–3–67	Westmore Drilling Co., Inc. (Operator) et al. (successor to D. W. Skinner (Operator) et al.	Cities Service Gas Co., Southwest Medicine Lodge Field, Barber County, Kans.	D. W. Skinner (Operator) et al., FPC GRS No. 2.	5	.....
			Supplement Nos. 1–2	5	1–2
			Notice of succession 9–1–67.	.....	.....
			Assignment 8–1–67.[7]	5	3
			Effective date: 9–1–64	.....	.....
CI66–1079 5–31–66[8]	Alma Oringderff Schaefer d.b.a. Alma Oringderff.	Northern Natural Gas Co., Camrick Gas Area, Beaver County, Okla.	Contract 2–24–66	1	.....
CI67–159 C 8–9–67[8]	Sohio Petroleum Co.	Northern Natural Gas Co., Woodward Pool, Woodward County, Okla.	Agreement 7–25–67[10]	128	1
CI68–105 (G–11969) F 7–31–67	Intermountain Petroleum Corp. (successor to Pan American Petroleum Corp.)	El Paso Natural Gas Co., South Blanco-Pictured Cliffs Field, Rio Arriba County, N. Mex.	Contract 1–23–57[11]	2	.....
			Letter agreement 7–6–67.[12]	2	1
			Assignment 7–7–67[13][14]	2	2
CI68–114 (G–18276) B 8–2–67	Mobil Oil Corp.	Natural Gas Pipeline Co. of America, Quinduno Field, Roberts County, Tex.	Notice of cancellation 7–31–67.[8][9]	185	3
CI68–116 (CI65–522) F 7–26–67	PPC Oil & Gas Co., Inc. (successor to J. R. Abraham).	El Paso Natural Gas Co., Tapacito-Pictured Cliffs Field, Rio Arriba County, N. Mex.	Ratified 10–8–64[15]	1	.....
			Letter agreement 12–14–64.	1	1
			Supplemental agreement 10–14–65.	1	2
			Assignment 11–5–66[16]	1	3
			Assignment 11–7–66[16][17]	1	4
CI68–117 A 7–31–67[9]	Charles W. Oliphant (Operator) et al.	Wunderlich Development Co., acreage in Kay County, Okla.	Contract 5–11–66 (Highly Lease).[18]	3	.....
CI68–118 A 7–31–67[9]	Professional Oil Management, Inc.	United Fuel Gas Co., Jefferson District, Lincoln County, W. Va.	Contract 6–8–67[19]	1	.....
CI68–119 (G–12988) F 8–1–67	Wessely Petroleum, Ltd. (successor to Atlantic Richfield Co.).	Colorado Interstate Gas Co., Laverne Field, Harper County, Okla.	Contract 6–25–57[11]	5	.....
			Assignment 5–31–67 (SE/4).	5	1
			Assignment 5–31–67 (NE/4).	5	2
			Assignment 5–31–67 (NW/4).	5	3
			Assignment 5–31–67 (SW/4).	5	4
CI68–120 A 8–2–67[9]	A. C. Radford et al.	United Fuel Gas Co., Elk District, Kanawha County, W. Va.	Contract 7–21–67[19]	8	.....
CI68–122 A 8–4–67[9]	Don Conner, d.b.a. Don Conner Drilling Co.	Consolidated Gas Supply Corp., Center District, Gilmer County, W. Va.	Contract 5–26–67[19]	1	.....
CI68–123 A 8–4–67[9]	P. P. Gunn et al.	Consolidated Gas Supply Corp., Lee District, Calhoun County, W. Va.	Contract 5–19–67[19]	27	.....
CI68–125 A 8–4–67[9]	Erie T. Duncan et al., d. b. a. Erica Oil Co.	Consolidated Gas Supply Corp., Murphy District, Ritchie County, W. Va.	Contract 5–29–67[19]	5	.....
CI68–126 A 8–4–67[9]	Hays & Co., agent for W. C. Wilson Oil & Gas Co. et al.	....do.....	Contract 5–8–67[19]	287	.....

Filing code: A—Initial service.
B—Abandonment.
C—Amendment to add acreage.
D—Amendment to delete acreage.
E—Succession.
F—Partial succession.

See footnotes at end of table.

[2] Jay Kornfeld (Operator) et al., and Clarke Corp. (Operator) et al.

[3] D. W. Skinner (Operator) et al., and Westmore Drilling Co., Inc. (Operator) et al.

Docket No. and date filed	Applicant	Purchaser, field, and location	FPC rate schedule to be accepted		
			Description and date of document	No.	Supp.
CI68-127 A 8-4-67	Theda E. Boyd et al., d. b. a. Boyd & Shriver et al.	Consolidated Gas Supply Corp., North Mahoning Township, Indiana County, Pa.	Contract 8-31-66	4	
			Amendment 10-12-66 [12]	4	1
			Amendment 10-18 66 [12]	4	2
			Amendment 11-14-66 [12]	4	3
			Amendment 11-21-66 [12]	4	4
			Amendment 12-5-66 [12]	4	5
			Amendment 2-7-67 [12]	4	6
			Amendment 2-21-67 [12]	4	7
			Amendment 2-21-67 [12]	4	8
			Amendment 4-13-67 [12]	4	9
			Amendment 5-9-67 [12]	4	10
			Amendment 5-9-67 [12] [13]	4	11
CI68-130 A 8-7-67 [2]	Violet Shrader, agent for Wilco Oil & Gas Co.	Consolidated Gas Supply Corp., Grant District, Doddridge County, W. Va.	Contract 5-24-67 [14]	1	
CI68-131 A 8-7-67 [2]	R. L. Zickefoose, et al., d.b.a. Z Oil & Gas Co.	Consolidated Gas Supply Corp., Union District, Ritchie County, W. Va.	Contract 4-13-67 [15]	1	
CI68-135 A 8-3-67 [16]	Fairman Drilling Co.	Consolidated Gas Supply Corp., Gaskill and Banks Townships, Jefferson and Indiana Counties, Pa.	Contract 1-14-65 [17]	52	
CI68-136 A 8-7-67 [2]	Calvert Drilling & Producing Co. et al.	Mountain Fuel Supply Co., South Baggs Area, Carbon County, Wyo.	Contract 4-24-67 [18]	1	
CI68-137 A 8-7-67 [2]	LeRoy Horton	Wunderlich Development Co., acreage in Sumner County, Kans.	Contract 6- 6-67 [18]	1	
CI68-139 A 8-7-67 [2]	Sinclair Oil & Gas Co.	Panhandle Eastern Pipe Line Co., Northeast Waynoka Field, Woods County, Okla.	Contract 7-17-67 [19]	[11] 381	
CI68-140 A 8-4-67 [2]	Marshall Exploration, Inc.	Lone Star Gas Co., Oak Hill Field, Rusk County, Tex.	Contract 7- 1-67 [18]	2	
CI68-141 A 8-8-67	Fairman Drilling Co. et al.	Consolidated Gas Supply Corp., Young Township, Jefferson County, Pa.	Contract 4-19-66 [17]	53	
CI68-145 A 8-3-67 [16]	F. P. Hurt et al.	United Fuel Gas Co., Wolfe Creek, Martin County, Ky.	Contract 7-26-57 [20]	3	

[1] Elva Armer et al. filed to succeed to the interest of Lee Drilling Co. only, W. G. Haun retains his interest in the sale; therefore, the related rate schedule will be redesignated as W. G. Haun and Elva Armer et al.
[2] Assigns interest of Lee Drilling Co. to Elva Armer et al.
[3] Assigns interest from Jay Kornfeld to Clarke Corp. (Operator) et al.
[4] Covers Phillippe No. 1 Unit, section 34, Township 2 North, Range 12 ECM (Supp. No. 4) and Brady No. 1 Unit, section 71, Block I-T, T & NO Survey (Supp. No. 5), respectively.
[5] Source of gas depleted.
[6] Effective date: Date of this order.
[7] Assigns interest of D. W. Skinner to Westmore Drilling Co., Inc. (Operator) et al.
[8] Amended application filed to reflect the change in name from Alma Oringderff Schaefer to Alma Oringderff Schaefer d.b.a. Alma Oringderff. Certificate issued June 21, 1966, did not reflect such change in name.
[9] Jan. 1, 1970, moratorium pursuant to the Commission's statement of general policy No. 61-1, as amended.
[10] Effective date: Date of initial delivery (Applicant shall advise the Commission as to such date).
[11] Omitted.
[12] On file as Pan American Petroleum Corp. FPC GRS No. 193.
[13] Provides for delivery into El Paso's low pressure system (250 p.s.i.g.) and a reduction of 2 cents per Mcf from the contract price.
[14] From Pan American Petroleum Corp. to Intermountain Petroleum Corp.
[15] Ratifies a contract of May 6, 1963, between Mike Abraham and El Paso; also on file as J. R. Abraham FPC GRS No. 1.
[16] Assigns operating rights from J. R. Abraham to R. A. Bryant, Jr.
[17] Assigns operating rights of R. A. Bryant, Jr., to PPC Oil & Gas Co., Inc.
[18] On file as Atlantic Richfield Co. FPC GRS No. 173.
[19] Adds acreage.
[20] Sale being rendered without prior Commission authorization.
[21] Contract price is 17 cents per Mcf, but Applicant states it will accept a permanent certificate at 15 cents per Mcf subject to B.t.u. adjustment.

Suggested agreement and undertaking:

BEFORE THE FEDERAL POWER COMMISSION

(Name of Respondent _____)
Docket No. _____

AGREEMENT AND UNDERTAKING OF (NAME OF RESPONDENT) TO COMPLY WITH REFUNDING AND REPORTING PROVISIONS OF SECTION 154.102 OF THE COMMISSION'S REGULATIONS UNDER THE NATURAL GAS ACT

(Name of Respondent) hereby agrees and undertakes to comply with the refunding and reporting provisions of section 154.102 of the Commission's regulations under the Natural Gas Act insofar as they are applicable to the proceeding in Docket No. ____ (and has caused this agreement and undertaking to be executed and sealed in its name by its officers, thereupon duly authorized in accordance with the terms of the resolution of its board of directors, a certified copy of which is appended hereto [1]) this _____ day of _____, 196__.

(Name of Respondent)
By _____
Attest: _____

[F.R. Doc. 67-13025; Filed, Nov. 6, 1967; 8:45 a.m.]

[1] If a corporation.

[Docket No. RI67-410]

FRED BOWMAN

Order Substituting Respondent, Redesignating Proceeding, and Accepting Agreement and Undertaking for Filing

OCTOBER 31, 1967.

By order issued September 12, 1967, in Docket No. G-4804 et al., the Commission amended the order issuing a certificate of public convenience and necessity in Docket No. CI62-260 to Jenny Manufacturing Co. (Jenny) by authorizing Fred Bowman (Bowman) to continue the sales of natural gas therefore authorized in said docket in lieu of Jenny. Jenny's FPC Gas Rate Schedule No. 1 was redesignated as Bowman's FPC Gas Rate Schedule No. 3 as of June 1, 1967, the effective date of the transfer of the producing properties. Jenny had filed for an increase in rate under its rate schedule which increase was suspended in Docket No. RI67-410 until May 30, 1967, and was allowed to become effective on said date upon the filing of an agreement and undertaking. Jenny did not file an agreement and undertaking and did not produce gas on May 30 or 31, 1967. Bowman commenced production on June 1, 1967, and has submitted an agreement and undertaking to assure the refund of any amounts collected by him in excess of the amount determined to be just and reasonable in Docket No. RI67-410. Therefore, Bowman will be substituted as respondent in said proceeding; the proceeding will be redesignated accordingly; and the agreement and undertaking will be accepted for filing.

The Commission finds:

It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Bowman should be substituted in lieu of Jenny as respondent in the proceeding pending in Docket No. RI67-410, that said proceeding should be redesignated accordingly, and that the agreement and undertaking submitted by Bowman should be accepted for filing.

The Commission orders:

(A) Fred Bowman is substituted in lieu of Jenny Manufacturing Co. as respondent in the proceeding pending in Docket No. RI67-410, said proceeding is redesignated accordingly, and the agreement and undertaking submitted by Fred Bowman in said proceeding is accepted for filing.

(B) Fred Bowman shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, and the agreement and undertaking filed by Fred Bowman in Docket No. RI67-410

shall remain in full force and effect until discharged by the Commission.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

[F.R. Doc. 67-13099; Filed, Nov. 6, 1967; 8:46 a.m.]

[Doc. No. G-20439, etc.]

CONTINENTAL OIL CO. ET AL.

Order Making Successors Co-Respondents, Redesignating Proceedings, and Accepting Agreement and Undertaking for Filing

OCTOBER 31, 1967.

Continental Oil Co. (Operator) et al., and Clinton Oil Co. (Operator) et al., Docket Nos. G-20439, RI65-231 and RI65-375; Continental Oil Co. et al., and Clinton Oil Co. (Operator) et al., Docket No. RI65-376.

By order issued September 12, 1967, in Docket No. G-4804 et al., the Commission authorized Clinton Oil Co. (Clinton) to continue certain sales of natural gas theretofore authorized to be made by Continental Oil Co. (Continental). In each case Continental's related FPC gas rate schedule was redesignated as that of Clinton or the contract comprising Continental's rate schedule was also accepted for filing as that of Clinton. The presently effective rates under said rate schedules are in effect subject to refund. Clinton has filed a motion to be made a party respondent in each rate proceeding together with an agreement and undertaking to assure the refund of any amounts collected by itself in excess of the amount determined to be just and reasonable in said proceedings. Therefore, Clinton will be made co-respondent in each proceeding; the proceedings will be redesignated accordingly; and the agreement and undertaking will be accepted for filing.

The Commission finds:

It is necessary and appropriate in carrying out the provisions of the Natural Gas Act that Clinton should be made co-respondent in Continental's rate proceedings, that said proceedings should be redesignated accordingly, and that the agreement and undertaking submitted by Clinton should be accepted for filing.

The Commission orders:

(A) Clinton is made a co-respondent in each of the following proceedings, each proceeding is redesignated accordingly, and the agreement and undertaking submitted by Clinton is accepted for filing:

Rate Docket No.	Clinton's certificate Docket No.	Clinton Oil Co. FPC gas rate schedule	Continental Oil Co. FPC gas rate schedule
G-20439	C168-41	[1] 3	[1] 189
RI65-231	C161-1646	[1] 6	[1] 195
RI65-375	C168-41	[1] 2	[1] 188
RI65-375	C168-43	7	[1] 148
RI65-376	C161-1645	[1] 5	[2] 194

[1] (Operator) et al.
[2] Et al.

(B) Clinton shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, and the agreement and undertaking filed by Clinton shall remain in full force and effect until discharged by the Commission.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

[F.R. Doc. 67-13107; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. RI68-15]

FOREE CO. ET AL.

Notice of Extension of Time

OCTOBER 31, 1967.

Notice is hereby given that the time for filing notices of intervention or petitions to intervene, as provided by paragraph (E) of the Order Accepting Contract Amendment, and providing for hearing on and suspension of proposed change in rate, issued July 26, 1967, is extended to and including November 20, 1967.

GORDON M. GRANT, *Secretary.*

[F.R. Doc. 67-13100; Filed, Nov. 6, 1967; 8:46 a.m.]

[Project 1909]

KADIAK FISHERIES CO.

Notice of Application for License for Constructed Project

NOVEMBER 1, 1967.

Public notice is hereby given that application for license has been filed under the Federal Power Act (16 U.S.C. 791a-825r) by Kadiak Fisheries Co., 1826 Exchange Building, Seattle, Wash. 98104, for a license for constructed Project No. 1909, located on an unnamed creek on the east side of Kodiak Island which flows into Shearwater Bay. The project has been under a 25-year license which expired on December 31, 1966.

The existing project consists of: A wooden flume about 60 feet long, a wood penstock, 18 feet long, a wirewound wood pipe line about 3,643 feet long, a powerhouse containing a waterwheel and a 10.5 kw generator; and a short powerline to Applicant's cannery and accessory buildings.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is December 18, 1967. The application is on file with the Commission for public inspection.

GORDON M. GRANT, *Secretary.*

[F.R. Doc. 67-13101; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. CP68-133]

LONE STAR GAS CO.

Notice of Application

OCTOBER 31, 1967.

Take notice that on October 17, 1967, Lone Star Gas Co. (Applicant), 301 South Harwood Street, Dallas, Tex. 75201, filed in Docket No. CP68-133 a "budget-type" application pursuant to subsection (c) of section 7 of the Natural Gas Act, as implemented by § 157.7(c) of the regulations under the Act, for a certificate of public convenience and necessity authorizing the construction and operation of certain natural gas facilities, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks authorization to construct and operate, during calendar year 1968, transportation facilities for the purpose of making direct sales of natural gas to industrial customers located outside of the franchise area of any local distributor. Applicant states that the maximum delivery to any one customer through the facilities proposed will not exceed 100,000 Mcf of natural gas annually and such gas will not be used for boiler fuel purposes as defined by the Commission.

The total estimated cost of the facilities proposed by Applicant will not exceed $100,000, with the cost of any single project not to exceed $15,000, said cost to be financed from cash on hand.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before November 27, 1967.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, futher notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT, *Secretary.*

[F.R. Doc. 67-13102; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. CP67-210]

MICHIGAN WISCONSIN PIPE LINE CO.

Notice of Petition To Amend

NOVEMBER 1, 1967.

Take notice that on October 20, 1967, Michigan Wisconsin Pipe Line Co. (Petitioner), 1 Woodward Avenue, Detroit, Mich. 48226, filed in Docket No. CP67-210 a petition to amend the order issued in said docket on April 24, 1967, as amended August 4, 1967, by requesting authorization to change the service to be rendered to one of its resale customers, all as more fully set forth in the petition to amend which is on file with the Commission and open to public inspection.

Specifically, Petitioner requests that the aforementioned order be amended to allow a change in the service to be rendered to North Central Public Service Co. (North Central). North Central has requested a maximum daily quantity (MDQ) of 16,500 Mcf under Rate Schedule LVS-1 to meet the increased requirements of its customer, Chevron Chemical Co., and an MDQ of 5,500 Mcf under Rate Schedule ACQ-1 to meet all of North Central's other requirements. The requested service will supersede the presently authorized MDQ of 19,000 Mcf under Rate Schedule ACQ-1 and results in an increase in the total MDQ of North Central of 3,000 Mcf. Petitioner states, however, since 40 percent of the MDQ deliverable under Rate Schedule LVS-1 is interruptible, there will be no increase in the maximum day delivery obligation of Petitioner.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before November 27, 1967.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 67-13103; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. RI68-112, etc.]

MOBIL OIL CORP. ET AL.

Notice of Extension of Time

OCTOBER 31, 1967.

Notice is hereby given that the time for filing notices of intervention or petitions to intervene, as provided by paragraph (D) of the order providing for hearing on and suspension of proposed changes in rates, and allowing rate changes to become effective subject to refund, issued on September 13, 1967, is extended to and including November 20, 1967.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 67-13104; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. CP68-136]

NORTHERN NATURAL GAS CO.

Notice of Application

NOVEMBER 1, 1967.

Take notice that on October 20, 1967, Northern Natural Gas Co. (Applicant), 2223 Dodge Street, Omaha, Nebr. 68102, filed in Docket No. CP68-136 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the acquisition and operation of certain natural gas facilities, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks authorization to acquire and operate certain facilities presently owned by Humble Oil & Refining Co. (Humble) in the Gomez Field, Pecos County, Tex. Applicant and Humble executed a contract, dated November 4, 1964, for the purchase of natural gas from the Gomez Field under the terms of which contract Humble had the right to terminate the contract if acceptable certificates were not issued by December 1, 1966. Neither party received certificates as of that date. Humble agreed to extend the period during which the parties could receive proper certificates and, in consideration thereof, Applicant agreed to assume the obligation of gathering, treating, and conditioning the gas produced from Humble's acreage in the Gomez Field. Applicant proposes to acquire from Humble the necessary facilities to fulfill its obligation.

The facilities to be acquired by Applicant from Humble consist of seven well lines and a treating plant. Applicant states that five of the well lines have been completed and the other two are expected to be completed during 1967.

The total estimated cost of the proposed acquisition is $2,991,008, which cost will be financed out of cash on hand, reserve, accruals, and retained earnings.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before November 27, 1967.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 67-13105; Filed, Nov. 6, 1967; 8:46 a.m.]

[Docket No. G-10658]

UNITED FUEL GAS CO.

Notice of Petition To Amend

NOVEMBER 1, 1967.

Take notice that on October 23, 1967, United Fuel Gas Co. (Petitioner), Post Office Box 1273, Charleston, W. Va. 25325, filed in Docket No. G-10658 a petition to amend the order, as amended, issued September 18, 1956, by requesting authorization to extend interim delivery of natural gas to one of its industrial customers, E. I. du Pont de Nemours & Co. (Du Pont), all as more fully set forth in the petition to amend which is on file with the Commission and open to public inspection.

By the order issued September 18, 1956, Petitioner was authorized, inter alia, to sell and deliver to Du Pont at its Belle, W. Va., plant a maximum of 35,000 Mcf of natural gas per day. Pursuant to Petitioner's requests, the Commission, by orders, issued March 13, 1967, and June 29, 1967, authorized Petitioner to transport and deliver, during the period April 1, 1967, through October 31, 1967, up to 70,000 Mcf of natural gas daily on an interruptible basis to Du Pont in lieu of the authorized daily delivery of 60,000 Mcf of interruptible natural gas, as authorized by order amending order issued October 27, 1964.

In response to a letter from Du Pont dated October 18, 1967, Petitioner now requests that the interim delivery period be extended from November 1, 1967 through May 31, 1968, at which time Du Pont contemplates that its new anhydrous ammonia plant at Belle, Kanawha County, W. Va., will be in operation and all changeover problems solved.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before November 29, 1967.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 67-13106; Filed, Nov. 6, 1967; 8:46 a.m.]

OFFICE OF EMERGENCY PLANNING

NEW YORK

Notice of Major Disaster

Pursuant to the authority vested in me by the President under Executive Order 10427 of January 16, 1953, Executive Order 10737 of October 29, 1957, and

Executive Order 11051 of September 27, 1962 (18 F.R. 407, 22 F.R. 8799, 27 F.R. 9683); Reorganization Plan No. 1 of 1958, Public Law 85-763, and Public Law 87-296; by virtue of the Act of September 30, 1950, entitled "An Act to authorize Federal assistance to States and local governments in major disasters, and for other purposes" (42 U.S.C. 1855-1855g), as amended; notice is hereby given of a declaration of "major disaster" by the President in his letter dated October 30, 1967, reading in part as follows:

I have determined that the damage in various areas of the State of New York, adversely affected by severe storms and flooding, beginning on or about September 28, 1967, is of sufficient severity and magnitude to warrant a major disaster declaration under Public Law 81-875.

I do hereby determine the following areas in the State of New York to have been adversely affected by the catastrophe declared a major disaster by the President in his declaration of October 30, 1967:

The counties of: Allegany, Cattaraugus.

Dated: October 31, 1967.

PRICE DANIEL,
Director,
Office of Emergency Planning.

[F.R. Doc. 67-13118; Filed, Nov. 6, 1967; 8:47 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[812-2160]

AMERICAN VARIABLE ANNUITY LIFE ASSURANCE CO. AND AMERICAN VARIABLE ANNUITY FUND

Notice of Application for Exemptions

NOVEMBER 1, 1967.

Notice is hereby given that American Variable Annuity Life Assurance Co. ("Company") and American Variable Annuity Fund ("Fund"), 440 Lincoln Street, Worcester, Mass. 01605 (hereinafter collectively called "Applicants") have filed an application pursuant to section 6(c) of the Investment Company Act of 1940 ("Act") for an order exempting Applicants from the provisions of sections 22(d), 22(e), 27(a), and 27(c) (1) and (2) thereunder. The Fund, an open-end diversified management investment company registered under the Act, was established by the Company on March 21, 1967. The Company, a stock insurance company organized under the provisions of the Insurance Code of Arkansas, is a wholly owned subsidiary of the State Mutual Assurance Co. of America ("State Mutual"), a mutual life insurance company organized under the laws of the Commonwealth of Massachusetts.

The Fund intends to offer, through the Company which is the principal underwriter of the Fund, both group and individual variable annuity contracts, which may or may not include provision for life insurance and guaranteed fixed annuities. The group variable annuity contracts will be offered to public school systems and tax-exempt organizations for annuity purchase plans under which participating employees will be afforded Federal income tax benefits in accordance with section 403(b) of the Internal Revenue Code of 1954 as amended. Individual variable annuity contracts are of three types: (a) Single payments contracts, (b) flexible payment contracts, and (c) stipulated payment contracts. Both the group and the individual contracts will offer fixed, variable, and combination fixed and variable annuity payment options. All interested persons are referred to the application as amended, on file with the Commission, and the Fund's registration statement under the Act (File No. 811-1497) which is incorporated by reference, for a statement of the representations which are summarized below.

Section 22(d). (1) Section 22(d) of the Act, in pertinent part, provides that no principal underwriter shall sell any redeemable security to the public except at a public offering price described in the prospectus. Group variable annuity contracts initially to be offered to the public by the Company will provide for a combined deduction for sales and administrative expenses of 6.5 percent of payments received in the first through the 10th contract years and 5 percent of the payments received thereafter. If special death benefits are included, the foregoing combined deduction are increased by 0.5 percent in the first through the 10th contract years and 1 percent thereafter. Applicants have reserved the right to increase the combined deduction to the maximum cumulative deduction permitted by section 27(a) of the Act. They state that the requested exemption is necessary because it is impossible to identify in advance for each contract the portion of the combined fee attributable to each type of expense.

(2) Applicants request a further exemption from section 22(d) to permit experience rating under its group variable annuity contracts. Pursuant to such a provision the Company would annually determine the combined sales and administrative expenses applicable to each group contract; that is, whether the Company's charges exceeded its applicable costs for the prior year. On the basis of such determination, the Company in its discretion may credit on a nondiscriminatory basis, to the employer in the case of unallocated contracts and to individual participants in case of allocated group contracts, none, some or all of the excess, if any, of the amounts deducted for such charges over applicable costs. No additional charge is made if the deduction fails to cover such costs. Any credit due an employer in the case of unallocated contracts will be applied to reduce the amount of subsequent payments. Any credits due the participants in the case of an allocated contract will be applied, as considered appropriate by the Company, either (a) to reduce the amount deducted from subsequent contributions for sales and administrative expenses, or (b) to increase the number of accumulation units or annuity units, as applicable, by an amount equal in value to the amount of the credit due less any applicable premium taxes, in either case without deduction therefrom of any amount for sales and administrative expenses.

Sections 22(e) and 27(c)(1). Section 22(e) of the Act, among other things, provides that no registered investment company may suspend the right of redemption, or postpone the date of payment of any redeemable security more than seven days after its tender for redemption. Section 27(c)(1) of the Act prohibits a registered investment company issuing periodic payment plan certificates from selling any such certificate unless it is a redeemable security.

Applicants request an exemption from sections 22(e) and 27(c)(1) to permit issuance of variable annuity contracts which preclude their owners from surrendering the contracts for a cash settlement during the annuity payment period. Applicants represent that such an exemption is necessary to maintain the actuarial basis of life annuity contracts. During the pay-in period, the accumulation unit is redeemable.

Section 27(a). Section 27(a) of the Act, prohibits the sale of any periodic payment plan certificate issued by a registered investment company if, among other things, (1) the sales load on such certificate exceeds 9 per centum of the total payments to be made thereon; (2) more than one-half of any of the first 12 monthly payments thereon, or their equivalent, is deducted for sales load; (3) the amount of sales load deducted from any one of such first payments exceeds proportionately the amount deducted from any other such payment, or the amount deducted from any subsequent payment exceeds proportionately the amount deducted from any other subsequent payment.

(1) Applicants propose to offer group variable annuity contracts with respect to plans qualified under section 401 and contracts meeting the requirements of section 403(b) of the Internal Revenue Code of 1954 which may include special death benefits. As stated above, such contracts initially to be offered to the public will provide for a combined deduction for sales and administrative expenses of 6.5 percent of payments received in the first through the 10th contract years and 5 percent of payments received thereafter and if special death benefits are included, the foregoing combined deduction will be increased by 0.5 percent in the first through the 10th contract years and 1 percent thereafter. Applicants request an exemption from section 27(a) to permit a reduction in the combined deduction under such group contracts at the end of the 10th contract year in the manner proposed.

(2) Applicants state that at some future time it may be necessary to offer group contracts which provide for a reduction in the combined deduction at a date following the first contract year which is different from the end of the 10-year period now proposed. In any

case, a modification of the reduction date will not result in a combined deduction which exceeds the maximum cumulative deduction permitted by section 27(a). Applicants request an exemption from section 27(a) to permit such modification with respect to group contracts which may be offered in the future.

(3) Applicants also propose to offer individual variable annuity contracts providing for periodic payments. Initially such contracts will provide for deduction of 35 percent of the stipulated payments in the first contract year, 9 percent of such payments in the second through the 10th contract years, and 5 percent thereafter. Such deductions will include 33 percent, 5.4 percent and 1 percent, respectively, for sales charges and the balance for administrative services. The cumulative deductions for sales load as proposed would be less at any point in the life of a contract than the maximum cumulative deductions permitted by section 27(a). Because the sales load on the payments after the first year are not proportionately equal, Applicants request an exemption from section 27(a) to permit the proposed second reduction in the sales load after the 10th year.

(4) Applicants state that, although the sales load initially proposed on the individual contracts calling for periodic payments will be adequate, they may find it necessary to increase the sales load on such contracts to be offered in the future up to the maximum permitted by section 27(a) during an assumed payment period of 11 years, and to fix another date following the first contract year at which to make the second reduction in the sales load. In the event of any such adjustment, the maximum cumulative deduction will not exceed that permitted by section 27(a). Applicants submit that the assumed 11-year period is a reasonable period for determining compliance with the provisions of section 27(a). If any contract is issued providing for an accumulation period during which the average sales load would exceed 9 percent, an adjustment will be made so that total deductions for sales charges during the accumulation period will be less than the maximum permitted by section 27(a).

Section 27(a)(4). Section 27(a)(4) of the Act prohibits the sale of any periodic payment plan certificate issued by a registered investment company if the initial payment is less than $20 or if any subsequent payment is less than $10.

Applicants request an exemption from section 27(a)(4) with respect to group variable annuity contracts issued in connection with plans qualified under section 401 or meeting the requirements of section 403(b) of the Internal Revenue Code to permit uniform minimum payments including the initial payment between $10 and $20. The Applicants allege that requiring two different amounts as minimum payments places an administrative burden upon the employer to make two payroll adjustments.

Section 27(c)(2). Section 27(c)(2) of the Act prohibits the sale of any periodic payment plan certificate unless the net proceeds of all purchase payments are deposited with a bank having the qualifications prescribed by section 26(a)(1) of the Act and are held by the bank as trustee or custodian under an agreement containing, in substance, the provisions of section 26(a) (2) and (3) of the Act.

Applicants request an exemption from section 27(c)(2) to avoid the administrative burdens and expenses which such custodianship or trusteeship by a bank would entail. The Company represents that it is subject to extensive supervision and control by the Arkansas Insurance Commissioner in all its dealings with contract owners. State Mutual, which will hold Applicant's securities and similar investments under a safekeeping agreement meeting the requirements of Rule 17f-2 under the Act, is subject to similar supervision and control by the Massachusetts Insurance Commissioner.

Applicants consent to the requested exemption being made subject to the condition that deductions under the variable annuity contracts for administrative expenses subject to section 26(a)(2) shall not exceed such reasonable amount as the Commission shall prescribe, and that the Commission shall reserve jurisdiction for such purpose.

Section 6(c) of the Act authorizes the Commission to exempt any person, security or transaction, or any class or classes or persons, securities, or transactions, from the provisions of the Act and rules promulgated thereunder if and to the extent that such exemption is necessary or appropriate in the public interest and consistent with the protection of investors and the purposes fairly intended by the policy and provisions of the Act.

Notice is further given that any interested person may, not later than November 17, 1967, at 5:30 p.m., submit to the Commission in writing a request for a hearing on the matter accompanied by a statement as to the nature of his interest, the reason for such request and the issues of fact or law proposed to be controverted, or he may request that he be notified if the Commission shall order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (airmail if the person being served is located more than 500 miles from the point of mailing) upon Applicants at the address stated above. Proof of such service (by affidavit or in case of an attorney at law by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0-5 of the rules and regulations promulgated under the Act, an order disposing of the application herein may be issued by the Commission upon the basis of the information stated in said application unless an order for hearing upon said application shall be issued upon request or upon the Commission's own motion. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 67-13121; Filed, Nov. 6, 1967; 8:47 a.m.]

CODITRON CORP.

Order Suspending Trading

NOVEMBER 1, 1967.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock, $3 par value, of Coditron Corp., New York, N.Y., otherwise than on a national securities exchange is required in the public interest and for the protection of investors:

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period November 2, 1967, through November 11, 1967, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 67-13122; Filed, Nov. 6, 1967; 8:47 a.m.]

[File No. 7-2766]

GULF AND WESTERN INDUSTRIES, INC. (DELAWARE)

Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

NOVEMBER 1, 1967.

In the matter of application of the Pittsburgh Stock Exchange for unlisted trading privileges in a certain security.

The above named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f)(1)(B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchange:

Gulf & Western Industries, Inc. (Delaware) — File No. 7-2766.

Upon receipt of a request, on or before November 15, 1967 from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25,

D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 67-13123; Filed, Nov. 6, 1967; 8:47 a.m.]

[File Nos. 24B-1452, 24B-1403]

M. M. HUBBARD ASSOCIATES, INC.

Order Vacating Temporary Suspension Order

NOVEMBER 1, 1967.

By order of May 4, 1967, the Securities and Exchange Commission temporarily suspended the Regulation A exemption from registration under the Securities Act of 1933 with respect to the subject notifications by M. M. Hubbard Associates, Inc. (Hubbard), 151 Franklin Street, Newton, Mass. The suspension order was based upon the asserted noncompliance by Hubbard with certain terms and conditions of Regulation A, including particularly the alleged failure of the company's offering circulars to provide accurate and adequate disclosure of certain material facts.

Pursuant to a request of Hubbard filed May 29, 1967, the Commission ordered a hearing on the question whether the suspension order should be vacated or made permanent; but the hearing was deferred at Hubbard's request and has not been held.

Hubbard has submitted an offer of settlement of the issues in these proceedings, which includes an amendment of its Regulation A notifications and a revised offering circular, by means of which Hubbard seeks to make accurate disclosures with regard to the information alleged in the temporary suspension order to have been false and misleading.

It appearing to the Commission, upon the basis of the offer of settlement and under all of the circumstances here present, including the disclosures now contained in the Hubbard's revised offering circular, that it is appropriate in the public interest and for the protection of investors to vacate the temporary suspension order,

It is ordered, That the Commission's order of May 4, 1967, temporarily suspending the Regulation A exemptions with respect to the subject notifications be, and it hereby is, vacated.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 67-13124; Filed, Nov. 6, 1967; 8:47 a.m.]

[812-2177]

MURPHY OIL INTERNATIONAL FINANCE CO.

Notice of Filing of Application for Order Exempting Company

NOVEMBER 1, 1967.

Notice is hereby given that Murphy Oil International Finance Co. ("Applicant"), 200 Jefferson Avenue, El Dorado, Ark. 71730, has filed an application pursuant to section 6(c) of the Investment Company Act of 1940 ("Act") for an order exempting Applicant from all provisions of the Act and the rules and regulations thereunder. All interested persons are referred to the application on file with the Commission for a statement of the representations therein, which are summarized below.

Applicant was organized by Murphy Oil Corp. ("Murphy") under the laws of the State of Delaware on September 21, 1967. Murphy or a fully owned subsidiary of Murphy (which term as used herein means a corporation all of the outstanding securities of which, other than short-term paper as defined in section 2(a)(36) of the Act and directors' qualifying shares, are owned, directly or indirectly, by Murphy) will subscribe for all of the capital stock of Applicant to be issued and outstanding. Murphy has purchased five of the 2,500 authorized shares of Applicant's common stock for $5,000. Murphy will make such capital contributions to Applicant of, or will purchase additional securities of Applicant for, cash, securities or other property as may be necessary in order that Applicant's equity capital will not be less than 20 percent of Applicant's outstanding long-term debt at any time. Any additional securities which Applicant may issue, other than debt securities, will be issued only to Murphy or a fully owned subsidiary of Murphy. Murphy will continue to retain its present holdings of Applicant's common stock and any additional securities of Applicant which Murphy may acquire and Murphy will not dispose of any of Applicant's securities (other than debt securities) except to Applicant or to a fully owned subsidiary of Murphy and Murphy will cause each fully owned subsidiary not to dispose of Applicant's securities (other than debt securities) except to Murphy, Applicant or to one or more fully owned subsidiaries of Murphy.

Murphy is engaged principally in exploration for development, production and sale of crude oil and natural gas, in extraction and sale of liquefied petroleum products, and in refining, transporting, buying and selling crude petroleum and products derived therefrom.

A principal purpose for the organization of Applicant was to raise funds abroad for financing the expansion and development of Murphy's foreign operations while at the same time providing assistance in improving the balance of payments position of the United States in compliance with the voluntary cooperation program instituted by the President in February 1965.

Applicant proposes to issue a 5-year note in the amount of $5 million. The buyer will represent that as to the United States it is a foreign corporation not engaged in any business within the United States, its territories or possessions, and that it is not purchasing the note for persons who are nationals, citizens or residents of the United States, its territories or possessions. The purchaser will also agree that it will not transfer the note to any national, citizen or resident of the United States, its territories or possessions, and that it will obtain a similar agreement from any person to whom it transfers the note.

In the future, as funds are required for investment in Murphy's foreign operations, Applicant intends to issue additional debt securities which may be sold privately or publicly. Murphy will guarantee the principal, interest payments and premium, if any, and sinking fund payments on all of Applicant's debt securities.

It is intended that upon completion of the long-term investment of Applicant's assets, substantially all of the assets of Applicant (exclusive of United States companies all or substantially all of whose business is carried on abroad either directly or indirectly through foreign companies which are, or upon the making of such investments will be (1) majority-owned subsidiaries of Murphy within the meaning of section 2(a)(23) of the Act, (2) companies under Murphy's control within the meaning of section 2(a)(9) of the Act, or (3) companies in which Murphy or Applicant own directly or indirectly, an equity interest of 15 percent or more. Applicant will not invest, directly or indirectly, in companies primarily engaged in the business of investing, reinvesting, owning, holding or trading in securities provided that this restriction shall not preclude investments by Applicant in fully owned subsidiaries of Murphy primarily engaged in the business of owning or holding securities of companies in which Applicant may invest as stated herein. Applicant will proceed as expeditiously as practicable with the long-term investment of its assets in the manner described above. Pending such investment, and from time to time thereafter in connection with changes in long-term investments, Applicant will invest temporarily in debt obligations (including time deposits) of foreign governments, foreign financial institutions (including foreign branches of United States financial institutions) and foreign subsidiaries of Murphy, payable in U.S. dollars or other currencies and in each case maturing in one year or less from the date of acquisition. Applicant will not acquire the securities representing its investments or loans for the purpose of resale and will not trade in securities.

If a public distribution is made through underwriters, the debt securities will be offered and sold under conditions which

are intended to assure that the debt securities will not be offered or sold in the United States, its territories or possessions or to nationals, citizens or residents of the United States, its territories or possessions. The contracts relating to such offer and sale will contain various provisions intended to assure that the debt securities will not be purchased by nationals, citizens, or residents of the United States, its territories or possessions.

Counsel has advised Applicant that United States persons will be required to report and pay an interest equalization tax with respect to acquisition of the debt securities, except where a specific statutory exemption is available. By financing its foreign operations through Applicant rather than through the sale of its own obligations, Murphy will utilize an instrumentality the acquisition of whose debt obligations by U.S. persons would generally subject such persons to the interest equalization tax, thus discouraging them from purchasing such debt obligations.

The common stock of Murphy is listed on the New York Stock Exchange and registered under the Securities Exchange Act of 1934.

Section 6(c) of the Act provides that the Commission, by order upon application, may conditionally or unconditionally exempt any person, security or transaction from any provision of the Act or of any rule or regulation thereunder, if and to the extent that such exemption is necessary or appropriate in the public interest and consistent with the protection of investors and the purposes fairly intended by the policy and provisions of the Act.

Applicant submits that it is appropriate in the public interest and consistent with the protection of investors and the purposes fairly intended by the policies and provisions of the Act for the Commission to enter an order exempting Applicant from each and every provision of the Act for the following reasons: (1) A significant purpose of the Applicant is to assist in improving the balance of payments program of the United States by obtaining funds for foreign operations in foreign countries; (2) the payment of the debt securities to be issued by Applicant, which is guaranteed by Murphy, does not depend solely on the operation or investment policy of Applicant, for the security holders may ultimately look to the business enterprise of Murphy; (3) none of the securities of Applicant (other than debt securities) will be held by any person other than Murphy or a fully owned subsidiary of Murphy; (4) Applicant will not deal or trade in securities; (5) the debt securities to be issued by Applicant will be sold only to foreign nationals and the burden of the Interest Equalization Tax will discourage resale to any U.S. national, citizen, or resident.

Notice is further given that any interested person may, not later than November 16, 1967, at 12:30 p.m., submit to the Commission in writing a request for a hearing on the matter accompanied by a statement as to the nature of his interest, the reason for such request and the issues of fact or law proposed to be controverted, or he may request that he be notified if the Commission shall order a hearing thereon. Any such communication should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request shall be served personally or by mail (air mail if the person being served is located more than 500 miles from the point of mailing) upon Applicant at the address stated above. Proof of such service (by affidavit or in case of an attorney at law by certificate) shall be filed contemporaneously with the request. At any time after said date, as provided by Rule 0-5 of the rules and regulations promulgated under the Act, an order disposing of the application herein may be issued by the Commission upon the basis of the information stated in said application, unless an order for hearing upon said application shall be issued upon request or upon the Commission's own motion. Persons who request a hearing or advice as to whether a hearing is ordered will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 67-13125; Filed, Nov. 6, 1967; 8:48 a.m.]

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster Loan Area 639]

MISSISSIPPI

Declaration of Disaster Loan Area

Whereas, it has been reported that during the month of October 1967, because of the effects of certain disasters, damage resulted to residences and business property located in Harrison County, in the State of Mississippi;

Whereas, the Small Business Administration has investigated and received other reports of investigations of conditions in the area affected;

Whereas, after reading and evaluating reports of such conditions, I find that the conditions in such area constitute a catastrophe within the purview of the Small Business Act, as amended.

Now, therefore, as Acting Associate Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 7(b)(1) of the Small Business Act, as amended, may be received and considered by the offices below indicated from persons or firms whose property, situated in the aforesaid county and areas adjacent thereto, suffered damage or destruction resulting from tornadoes occurring on October 30, 1967.

OFFICE

Small Business Administration Regional Office, Capital and West Streets, Jackson, Miss. 39201.

2. A temporary office will be established at Gulfport, Miss., address to be announced locally.

3. Applications for disaster loans under the authority of this declaration will not be accepted subsequent to April 30, 1968.

Dated: October 31, 1967.

HOWARD W. ROGERSON, *Acting Associate Administrator.*

[F.R. Doc. 67-13126; Filed, Nov. 6, 1967; 8:48 a.m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

NOVEMBER 2, 1967.

Protests to the granting of an application must be prepared in accordance with Rule 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 41162—*Corn and grain sorghums to Morrilton, Ark.* Filed by Southwestern Freight Bureau, agent (No. B-9026), for interested rail carriers. Rates on corn and grain articles, in carloads, as described in the application, from points in Iowa, Kansas, Missouri, and Nebraska, to Morrilton, Ark. (Group 24).

Grounds for relief—Carrier competition.

Tariff—Supplement 12 to Southwestern Freight Bureau, agent, tariff ICC 4748.

FSA No. 41163—*Class and commodity rates from and to Marbledale, Tenn.* Filed by O. W. South, Jr., agent (No. A5065), for interested rail carriers. Rates on property moving on class and commodity rates, between Marbledale, Tenn., on the one hand, and points in the United States and Canada, on the other.

Grounds for relief—New station and grouping.

FSA No. 41164—*Fertilizer and fertilizer materials to points in Wyoming.* Filed by Union Pacific Railroad Co. (No. 130), for itself and interested rail carriers. Rates on fertilizer and fertilizer materials, liquid and dry, in carloads, and tank carloads, from Don and Epco, Idaho, Garfield, Geneva, and Ironton, Utah, to points in Wyoming.

Grounds for relief—Market competition.

Tariff—Supplement 8 to Union Pacific Railroad Co., tariff ICC 5636.

By the Commission.

[SEAL] ANDREW ANTHONY, JR., *Acting Secretary.*

[F.R. Doc. 67-13148; Filed, Nov. 6, 1967; 8:49 a.m.]

[Notice 487]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

NOVEMBER 2, 1967.

The following are notices of filing of applications for temporary authority under section 210(a) of the Interstate Commerce Act provided for under the new rules of Ex Parte No. MC 67 (49 CFR Part 340) published in the FEDERAL REGISTER issue of April 27, 1965, effective July 1, 1965. These rules provided that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date of notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protest must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protests must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 14552 (Sub-No. 27 TA), filed October 23, 1967. Applicant: J. V. McNICHOLAS, TRANSFER COMPANY, 555 West Federal Street, Youngstown, Ohio 44502. Applicant's representative: Paul F. Berry, 100 East Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pipe, tubing, mine roof bolts, and bar stock;* from the plantsite of the Edward Corp. at Warren, Ohio to points in Wisconsin, Iowa, Missouri, Illinois, Kentucky, Indiana, Ohio, Michigan, Virginia, West Virginia, Maryland, Delaware, Pennsylvania, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, and the District of Columbia; Omaha, Nebr.; Kansas City, Kans.; and Minneapolis and St. Paul, Minn.; and *steel mill equipment, materials, and supplies*, from points in Wisconsin, Iowa, Missouri, Illinois, Kentucky, Indiana, Ohio, Michigan, Virginia, West Virginia, Maryland, Delaware, Pennsylvania, New Jersey, New York, Connecticut, Rhode Island, Massachusetts, and the District of Columbia; Omaha, Nebr.; Kansas City, Kans.; and Minneapolis and St. Paul, Minn., to the plantsite of the Edward Corp., at Warren, Ohio, for 180 days. Supporting shipper: The Youngstown Sheet & Tube Co., Youngstown, Ohio. Send protests to: District Supervisor G. J. Baccei, Interstate Commerce Commission, Bureau of Operations, 435 Federal Building, 215 Superior Avenue, Cleveland, Ohio 44114.

No. MC 34767 (Sub-No. 41 TA), filed October 30, 1967. Applicant: GOOD'S TRANSFER, INCORPORATED, 234 Charles Street, Harrisonburg, Va. 22801. Applicant's representative: Thomas J. Wilson, 402 First National Bank Building, Harrisonburg, Va. 22801. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Poultry plant and packinghouse waste products*, from Linville and Harrisonburg, Va., to points in West Virginia, for 180 days. Supporting shipper: Triangle E By-Products Co., Inc., Linville, Va. 22834. Send protests to: George S. Hales, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 215 Campbell Avenue SW., Roanoke, Va. 24011.

No. MC 43654 (Sub-No. 72 TA), filed October 30, 1967. Applicant: DIXIE OHIO EXPRESS, INC., 237 Fountain Street, Akron, Ohio 44304, Post Office Box 750, Akron, Ohio 44309. Applicant's representative: R. E. Gifford (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk and those requiring special equipment), between the plantsite and warehouses of Rockwell-Standard Corp., at or near Winchester, Ky., on the one hand, and, on the other, Detroit, Mich., and points within 25 miles thereof; the intermediate point of Monroe, Mich.; and the off-route points of Flint and Ann Arbor, Mich., over presently authorized routes to Dayton and/or Delaware, Ohio, thence over Interstate Highway 75 or U.S. Highway 25, from Dayton, Ohio, to Detroit, serving the intermediate point of Monroe, Mich.; U.S. Highway 23 from Delaware, Ohio, to its junction with Interstate Highway 75 or U.S. Highway 25 to near Toledo, Ohio, thence over Interstate Highway 75 or U.S. Highway 25 to Detroit, serving the intermediate point of Monroe, Mich., and return over the same routes, for 180 days. Supporting shipper: Rockwell Standard Corp., Winchester, Ky. 40391. Send protests to: G. J. Baccei, District Supervisor, Interstate Commerce Commission, 435 Federal Building, 215 Superior Avenue, Cleveland, Ohio 44114.

No. MC 52579 (Sub-No. 91 TA), filed October 30, 1967. Applicant: GILBERT CARRIER CORP., 1 Gilbert Drive, Secaucus, N.J. 07094. Applicant's representative: Aaron Hoffman (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wearing apparel*, loose, on hangers, from Star City, Ark., to points in the New York, N.Y., commercial zone, as defined by the Commission, for 150 days. Supporting shipper: Spartans Industries, Inc., Box 270, Sparta, Tenn. 38583. Send protests to: District Supervisor, Walter J. Grossman, Interstate Commerce Commission, Bureau of Operations, 1060 Broad Street, Room 363, Newark, N.J. 07102.

No. MC 66562 (Sub-No. 2262 TA), filed October 26, 1967. Applicant: RAILWAY EXPRESS AGENCY, INCORPORATED, 219 East 42d Street, New York, N.Y. 10017. Applicant's representative: Joseph A. Papa, 30th and Walnut Streets, Philadelphia, Pa. 19104. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, moving in express service, (1) Between Washington, D.C., and Richmond, Va., serving the intermediate or off-route points of Newington, Woodbridge, Quantico, Fredericksburg, Milford, and Ashland, Va.: From Richmond over Virginia Highway 33 to junction Virginia Highway 161, thence over Virginia Highway 161 to junction Interstate Highway 95; thence over Interstate Highway 95 to Fredericksburg; thence over U.S. Highway 1 to junction Virginia Highway 3; thence over Virginia Highway 3 to junction Interstate Highway 95; thence over Interstate Highway 95 to junction Virginia Highway 234; thence over Virginia Highway 234 to Quantico; thence return over same route to Interstate Highway 95; thence over Interstate Highway 95 to Washington, D.C., and return over the same route; (2) between Fredericksburg and Milford, Va.: (a) from Fredericksburg over U.S. Highway 17 to junction Virginia Highway 2; thence over Virginia Highway 2 to junction Virginia Highway 207; thence over Virginia Highway 207 to junction Virginia Highway 722; thence over Virginia Highway 722 to Milford; return over same route to junction Interstate Highway 95; thence over Interstate Highway 95 to Ashland; (b) from Ashland over Interstate Highway 95 to Richmond, Va., also, from Milford, Va. over Virginia Highway 722 to junction Virginia Highway 207; thence over Virginia Highway 207 to junction Interstate Highway 95; thence over Interstate Highway 95 to Ashland, Va., and return over the same route, for 150 days. NOTE: Applicant proposes to tack the authority here applied for, to other existing authorities (MC 66562 and Subs thereunder). Supporting shippers: W. Francis Martin, 320 Patomac Avenue, Quantico, Va.; A. M. Bolognese, 306 Patomac Avenue, Quantico, Va.; Ralph S. Gale, 824 Caroline Street, Fredericksburg, Va.; Lena Boutchyard, 900½ Caroline Street, Fredericksburg, Va.; Park & Shop Merchants Association, 1239 Jefferson Davis Boulevard, Fredericksburg, Va.; Charles P. Rhein, Keller Ladders Eastern, Milford, Va.; Royal School Laboratories, Ashland, Va.; Lewis Business Forms, Inc., Watts Division, Post Office Box 72, Ashland, Va.; Electra Motors, Inc., Ashland, Va.; Hanover Shirt Co., Inc., Ashland, Va. Send protests to: District Supervisor Stephen P. Tomany, Interstate Commerce Commission, Bureau of Operations, 346 Broadway, New York, N.Y. 10013.

No. MC 96500 (Sub-No. 3 TA), filed October 30, 1967. Applicant: HARRY'S EXPRESS COMPANY, INC., 545 West 25th Street, New York, N.Y. 10001. Applicant's representative: Martin Werner, 2 West 45th Street, New York, N.Y. 10036. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Radios, clock radios, and parts*, between points in the New York, N.Y., commercial zone, on the one hand, and, on the other, Hackensack, N.J., for 150 days. Supporting shipper:

New York Transistor Corp., 150 Fifth Avenue, New York, N.Y. 10011. Send protests to: Paul W. Assenza, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 346 Broadway, New York, N.Y. 10013.

No. MC 109064 (Sub-No. 17 TA), filed October 30, 1967. Applicant: TEX-O-KA-N TRANSPORTATION COMPANY, INC., 3301 Southeast Loop 820, Post Office Box 8367, Fort Worth, Tex. 76112. Applicant's representative: Paul Healy (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic pipe, plastic tubing, plastic conduit, valves, fittings, compounds, joint sealer, bonding cement, primer, coating, thinner, and accessories* used in the installation of such products, from the plantsite of Universal Pipe & Plastic, Inc., at Hillsboro, Tex., to points in Oklahoma, Kansas, New Mexico, Arizona, Colorado, Arkansas, and Louisiana, for 120 days. Supporting shipper: Universal Pipe & Plastic, Inc., Hillsboro, Tex. 76645. Send protests to: Billy R. Reid, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 9A27 Federal Building, 819 Taylor Street, Fort Worth, Tex. 76102.

No. MC 119164 (Sub-No. 25 TA), filed October 30, 1967. Applicant: J–E–M TRANSPORTATION CO., INC., 509 Liberty Street, Syracuse, N.Y. 13201, Post Office Box 1315, Syracuse, N.Y. 13204. Applicant's representative: Helen S. Morley (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Synthetic resins*, dry, in bulk, in pneumatic tank vehicles, in a coordinated rail-motor service, from the Flexi-Flo rail-motor exchange terminal facilities on the lines of the New York Central Railroad Co. located at Rochester, N.Y., restricted to shipments having prior movement inbound via rail service; for 150 days. Supporting shipper: Allied Chemical Corp., Traffic Department, 40 Rector Street, New York, N.Y. 10006. Send protests to: Morris H. Gross, District Supervisor, Interstate Commerce Commission, Bureau of Operations, Room 104, 301 Erie Boulevard, West, Syracuse, N.Y. 13202.

No. MC 123502 (Sub-No. 19 TA), filed October 30, 1967. Applicant: FREE STATE TRUCK SERVICE, INC., 10 Vernon Avenue, Glen Burnie, Md. 21061. Applicant's representative: Donald E. Freeman, Post Office Box 806, Westminster, Md. 21157. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement clinker*, in bulk, from Security, Md., and York, Pa., to Martinsburg, W. Va.; for 150 days. Supporting shipper: Capitol Cement Co., Post Office Box 5618, Baltimore, Md. 21210. Send protests to: William L. Hughes, District Supervisor, Interstate Commerce Commission, 1125 Federal Building, 31 Hopkins Plaza, Baltimore, Md. 21201.

No. MC 124802 (Sub-No. 9 TA), filed October 30, 1967. Applicant: CURTIS WOMELDORF, doing business as ACE MOTOR FREIGHT, Post Office Box 331, Summerville, Pa. 15864. Applicant's representative: Chester A. Zyblut, 1522 K Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay products*, from Porter Township, Clarion County, Pa., to Newark and Nutley, N.J.; for 150 days. Supporting shipper: New Bethlehem Tile Co., New Bethlehem, Pa. 16242. Send protests to: Frank L. Calvary, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 2109 Federal Building, 1000 Liberty Avenue, Pittsburgh, Pa. 15222.

No. MC 129475 (Sub-No. 1 TA), filed October 30, 1967. Applicant: E. D. CARRELL, doing business as E. D. CARRELL TRUCKING CO., Monroe, Ga. Applicant's representative: William Addams, Suite 527, 1776 Peachtree Street NW. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Molded plastic products;* from Social Circle, Ga., to points in Arkansas, Indiana, Kentucky, North Carolina, South Carolina, Tennessee, Virginia, Alabama, and Pennsylvania, for 150 days. Supporting shipper: Ronthor Reiss Corp., 111 Fourth Avenue, New York, N.Y. 10003. Send protests to: William L. Scroggs, District Supervisor, Interstate Commerce Commission, Bureau of Operations, Room 309, 1252 West Peachtree Street NW., Atlanta, Ga. 30309.

No. MC 129490 (Sub-No. 1 TA), filed October 26, 1967. Applicant: HOLMES DEHAVEN, doing business as FRIGID INSTITUTIONAL DELIVERIES, Route 3, Box 86, Berkeley Springs, W. Va. 25411. Applicant's representative: Charles E. Creager, Post Office Box 81, Winchester, Va. 22601. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Frozen meats* from Chicago, Ill., to points in Alabama, Connecticut, Delaware, Florida, Georgia, Indiana, Kansas, Kentucky, Maryland, Michigan, Missouri, New Jersey, New York, North Carolina, Ohio, Oklahoma, Pennsylvania, South Carolina, Tennessee, Texas, Virginia, West Virginia, and the District of Columbia, for 150 days. Supporting shipper: Frigidmeats, Inc., 3755 South Racine Avenue, Chicago, Ill. 60609, Sidn ey Jaffe, President. Send protests to: J. A. Niggemyer, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 531 Hawley Building, Wheeling, W. Va. 26003.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-13149; Filed, Nov. 6, 1967; 8:49 a.m.]

[Notice 48]

MOTOR CARRIER TRANSFER PROCEEDINGS

NOVEMBER 2, 1967.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 279), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC–FC–69902. By order of October 20, 1967, the Transfer Board approved the transfer to John P. Rodgers, doing business as Rodgers Tours, Hazleton, Pa., of license in No. MC–12556 (Sub-No. 1), issued July 20, 1953, to Victor Craig, Hazleton, Pa., authorizing service as a broker of passengers in round-trip all-expense tours, beginning and ending at Hazleton, Pa., and points within 15 miles of Hazleton, and extending to all points in the United States. Roy N. LaRocca, 1100 Northeastern Building, Hazleton, Pa. 18201, attorney for applicants.

No. MC–FC–69809. By order of October 20, 1967, the Transfer Board approved the transfer to G & J Freight, Inc., Fresno, Calif., of that portion of the certificate of registration in No. MC–125491 (Sub-No. 1), issued to Sierra Distributing, Ltd., a corporation, authorizing the transportation, in interstate or foreign commerce of: Various commodities of a general commodity nature, i.e., iron, steel, iron and steel articles, roofing, building and paving materials, waste paper, paperboard, pulpboard, machinery and parts, petroleum and petroleum products, chemicals, and other commodities, between points in a specified area of California. Marshall G. Berol, 100 Bush Street, San Francisco, Calif. 94104, attorney for applicants.

No. MC–FC–69950. By order of October 20, 1967, the Transfer Board approved the transfer to Yellowstone Park Lines, Inc., Yellowstone National Park, Wyo. 83020, of the operating rights in certificate No. MC–127738 (Sub-No. 2), issued by the Commission December 21, 1966, to Elvin J. Kenda, doing business as Gallatin Canyon Lines, Bozeman, Mont., authorizing the transportation of: Passengers and their baggage, and express and newspapers, in the same vehicle, between Bozeman, and West Yellowstone, Mont., serving all intermediate points. Cordell Johnson, Post Office Box 1686, Helena, Mont. 59601, attorney for applicants.

No. MC–FC–69967. By order of October 20, 1967, the Transfer Board approved the transfer to Violet B. Miller, doing business as Miller's Trucking Service, Shippensburg, Pa., of the operating rights in certificate No. MC–53930, issued May 5, 1950, to Paul G. Miller, doing business as Miller's Trucking Service, Shippensburg, Pa., authorizing the transportation of: Grain, feed, grit, meat, fish meal, oyster shells, fruit, and fertilizer, between specified points in Pennsylvania, and Maryland. Christian

V. Graf, 407 North Front Street, Harrisburg, Pa. 17101, attorney for applicants.

No. MC–FC–69963. By order of October 20, 1967, the Transfer Board approved the transfer to Compton Service Co., a corporation, St. Louis, Mo., of the operating rights in permit No. MC–126270 (Sub-No. 2) issued by the Commission April 12, 1965, to Billy J. Hunt and Hollis Garrett, doing business as Compton Appliance Service Co., St. Louis, Mo., authorizing the transportation of: Kitchen equipment, electrical appliances, new furniture, and various other named commodities, between specified points and areas in Illinois and Missouri. Whitney R. Harris, 225 South Meramec, St. Louis, Mo. 63105, attorney for applicants.

No. MC–FC–69951. By order of October 23, 1967, the Transfer Board approved the transfer to Marion F. Alderman, doing business as Mar-Vel Trucking, Idanha, Oreg., of the operating rights in certificate No. MC–13313 (Sub-No. 2), issued December 18, 1961, to Cummings Transfer & Fuel Co., a corporation, Albany, Oreg., authorizing the transportation, over irregular routes, of wood chips, from points in Marion, Benton, and Linn Counties, Oreg., to Vancouver, Wash., and points within 5 miles thereof (except Camas, Wash.). Earle V. White, 2400 Southwest Fourth Avenue, Portland, Oreg., attorney for applicants.

No. MC–FC–69936. By order of October 30, 1967, the Transfer Board approved the transfer to Northern Equipment Leasing Co., a corporation, Andover, Conn., of certificate No. MC–57943 (Sub-No. 5), issued September 30, 1964, to Highland Industries, Inc., East Hartford, Conn., authorizing the transportation of: Bakery supplies and flour, from East Hartford, Conn., to Holyoke and Springfield, Mass.; flour and bakers' supplies and equipment, between Hartford, Conn., on the one hand, and, on the other, Clinton, Pittsfield, and Springfield, Mass., and between Springfield, Mass., on the one hand, and, on the other, Albany, Claverack, Saratoga Springs, and Troy, N.Y. David C. Wichman, 753, Main Street, Manchester, Conn. 06040, attorney for applicants.

No. MC–FC–69964. By order of October 23, 1967, the Transfer Board approved the transfer to Mazzo & Sons Express, Emerson, N.J., of the operating rights in certificate No. MC–127490, issued November 29, 1965, to J&J Garment Delivery, Dumont, N.J., authorizing the transportation of: General commodities, with the usual exceptions, between New York, N.Y., on the one hand, and, on the other, points in specified counties in New Jersey, and Rockland County, N.Y. Herman B. J. Weckstein, 1060 Broad Street, Newark, N.J. 07102, attorney for applicants.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 67–13150; Filed, Nov. 6, 1967; 8:49 a.m.]

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